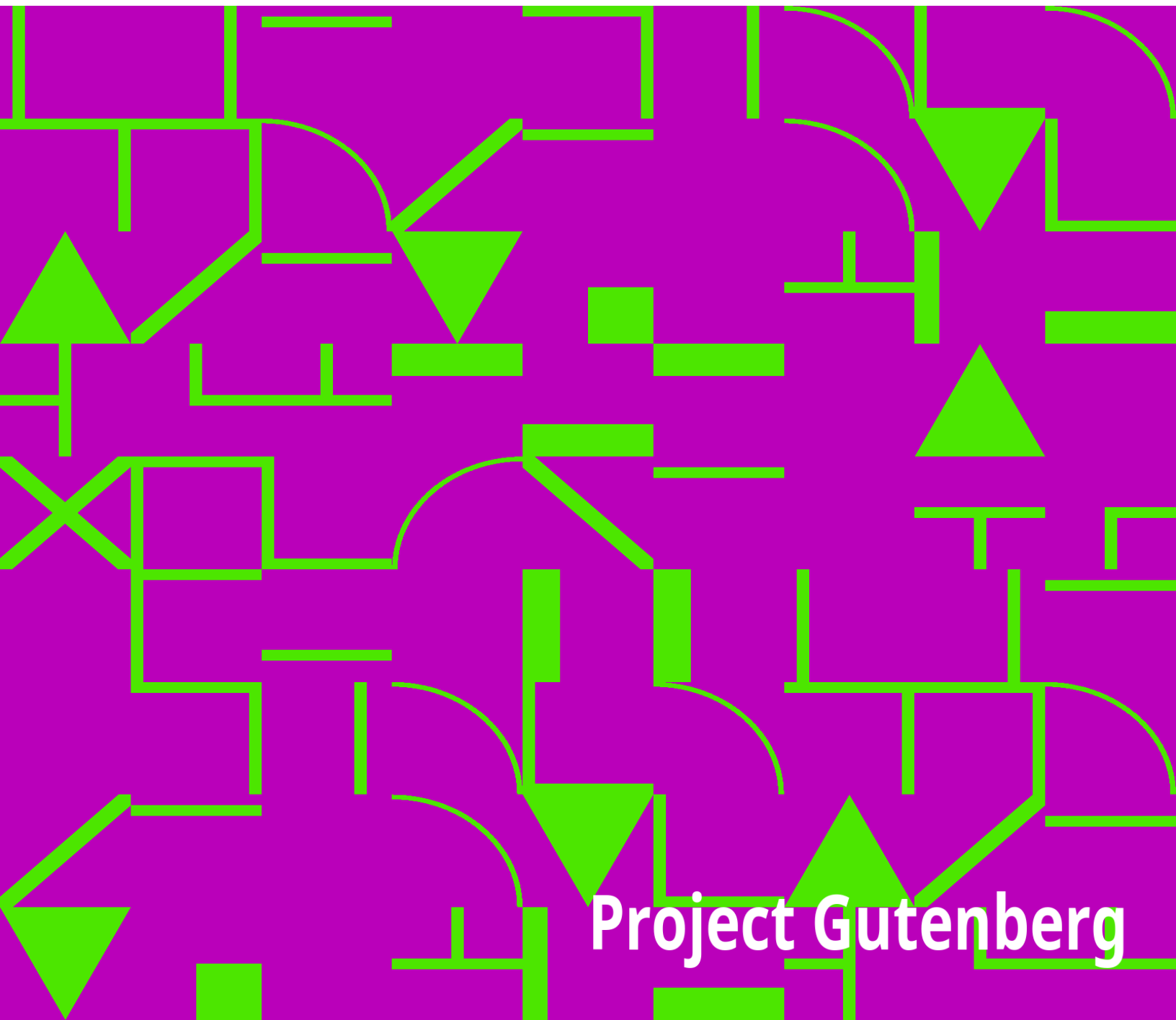


The Philippine Islands, 1493-1898 — Volume 20 of 55

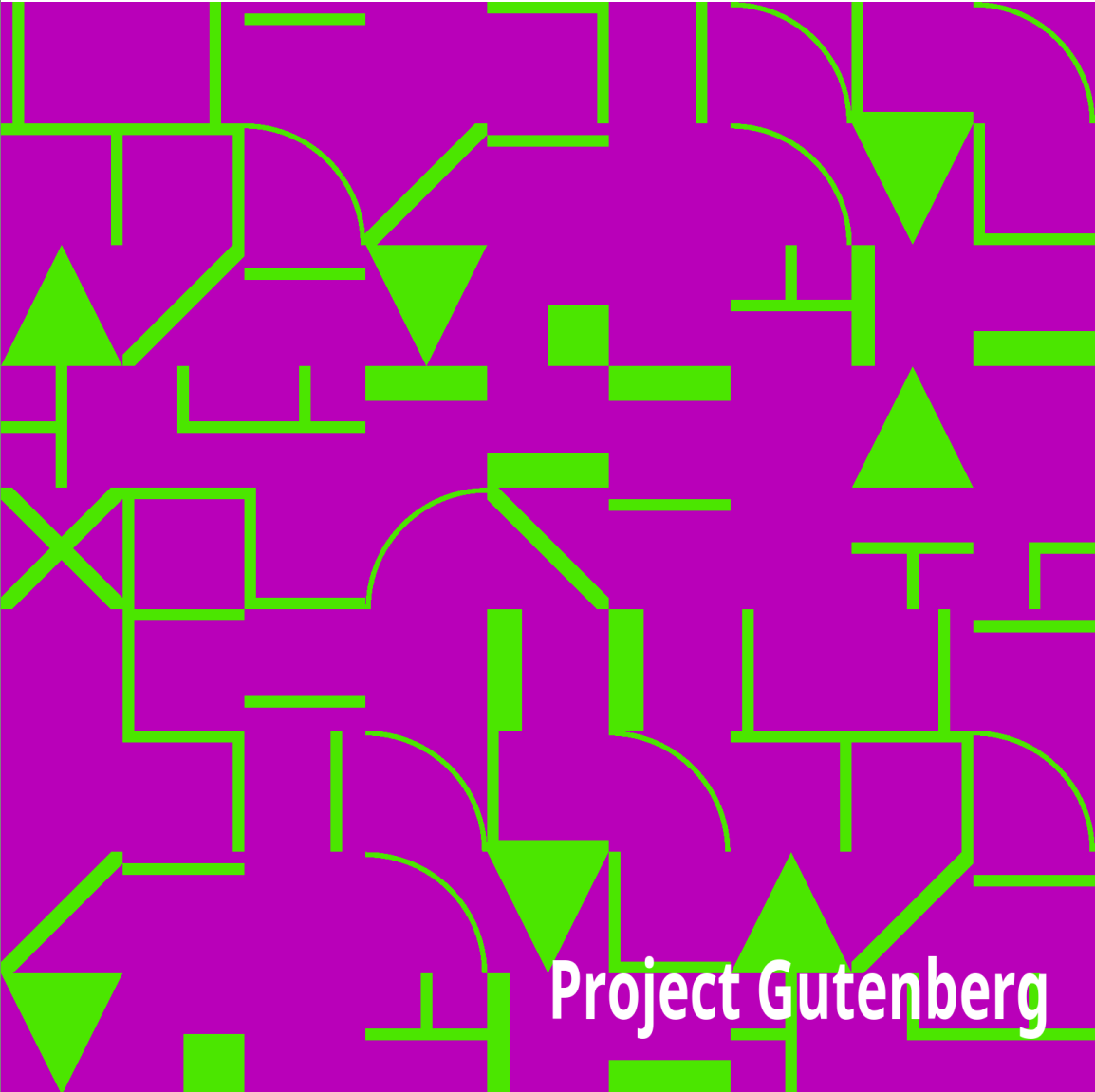
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**The Philippine Islands, 1493-1898 — Volume
20 of 55**

Emma Helen Blair and James Alexander



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The Philippine Islands, 1493–1898

Explorations by early navigators, descriptions of the islands and their peoples, their history and records of the catholic missions, as related in contemporaneous books and manuscripts, showing the political, economic, commercial and religious conditions of those islands from their earliest relations with European nations to the close of the nineteenth century,

Volume XX, 1621–1624

Edited and annotated by **Emma Helen Blair** and
James Alexander Robertson with historical
introduction and additional notes by **Edward Gaylord
Bourne.**

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Preface

The years 1621–24, although not marked by great battles, conquests, or calamities, contain much that is of interest in the internal development of the Philippine colony; and these documents vividly illustrate the ceaseless play and interaction of human interests and passions—especially in the romantic but tragic love-affair of Fajardo’s wife, in which is material for a brilliant novel. The usual conflicts occur between the civil authorities and the friars, and between the governor and the Audiencia; but the records of these controversies furnish an unusual revelation of human nature and its complicated phenomena. The alliance between the Dutch and the English menaces this far Oriental Spanish colony with even more dangers than it has already experienced; and its feeble defenses and insufficient equipment of arms and men keep its people in constant dread and anxiety. For defense against the expected attacks of the heretics against Manila more ships and fortifications are constructed; but this imposes additional burdens on the poor Indians, which the governor tries to mitigate by endeavors to protect them from the oppression that they endure from the Spaniards.

Controversies arise between the various orders, and within that of St Francis, which are settled by the intervention of the bishop and governor. Reports made by the orders show that over half a million of the natives are receiving religious instruction; but the bishop deprecates the favorite missionary policy of gathering the converts into “reductions,” and advises that all the missions should be placed under the supervision of the bishops. The foreign population of Manila still increases beyond the safety-line, and spasmodic efforts are made to restrict it; but corrupt and lax officials render these of little use. The difficulties involved in the Chinese trade and its

economic effects on the Spanish colonies are still discussed, but without any satisfactory solution to the problem. The gold mines in northern Luzón are explored and tested, but with meager results.

A Jesuit at Manila, Alonso Roman, gives the “news from Filipinas” for 1621. He recounts the persecution of Christians that is still continuing in Japan, with many martyrdoms. Various encounters between the Dutch and English occur until, an alliance being concluded between Holland and England, their ships unite to prey on the commerce of China, Portuguese India, and the Philippines. The writer relates several naval encounters, and captures of trading ships. In one of these the Chinese, pouring melted sugar on the enemy, “sent fourteen of the Dutch in a conserve to hell.” Roman concludes his letter with an account of the tragedy in which Governor Fajardo slays his wife and her lover (May 11, 1621)—the latter being a renegade Jesuit, named Joan de Messa. Another account of this affair adds some minor details.

Fajardo sends his annual despatches to the king (July 21, 1621). He describes his measures for the prompter despatch of the trading-fleet to Nueva España, and the recent hostile demonstration made by the Dutch and English at Manila Bay. He takes all precautions for defense against them, but is unable to attack them, owing to his lack of troops—a deficiency which he proceeds to explain. Thus far, the enemy have done little harm, especially as Fajardo promptly warned the Chinese, and other trading countries near by, of their arrival. He learns of other hostile fleets that are preparing to attack the islands, and takes all possible precautions for their defense. He asks that, until the affairs of the islands are in better condition, the Audiencia of Manila may be discontinued, as the auditors embarrass and hinder his efforts, and are not competent to fulfil their duties. The religious also make the governor’s duties a burden; and their exactions from the Indians prevent the latter from serving the crown. The Dutch know better how to deal with the natives; they exempt the latter from tributes, personal services, and religious instruction. Little has been done in opening the Igorrote mines—a task which Fajardo is warned to push forward. He has sent troops and supplies safely to Ternate. He is having much trouble in regard to the residencia of his predecessor, the late Juan de Silva; and complains of the shelter and countenance given to Auditor Messa by the

Dominicans. Fajardo recounts various matters of government and his procedure therein; also the annoyances and hindrances which he experiences from the friars. He commends, however, the Jesuits and their work, suggesting that more of them should be sent to the islands. He is perplexed and hindered by the lack of soldiers, but is doing his best with his small forces. The Council orders the viceroy of Nueva España to send every year to Filipinas all the reinforcements in his power.

The archbishop of Manila sends to the king (July 30, 1621) an account of ecclesiastical and some other affairs in his diocese. He asks permission to hold an ecclesiastical council, and to hold the feast of Corpus Christi at some other and more convenient date than it has on the calendar. He complains of the poverty of the Manila cathedral, and asks for aid; also of the governor's failure to consult him regarding appointments to prebends, and of the incapacity for canonical offices of certain royal appointees. Serrano commends the members of his chapter, some of them individually and by name. The two colleges in Manila are training so many students that they cannot find positions in the church, and the archbishop is greatly pained by their consequent poverty and humiliation. He asks for more competent bishops to be sent to the islands; and for authority to be given to religious ministers there to grant absolution for certain impediments to marriage which render divorces among the natives too easy. The friars who have charge of instructing the natives ought to be subject to inspection by the bishops, and thus various abuses would be corrected. Affairs in Japan are in great confusion, on account of the persecution of the Christians; and Serrano recommends that Fray Sotelo be not allowed to go thither as bishop of Japan. He details a controversy that has arisen between the Jesuits and the Dominicans in Manila over the refusal of confession to the dying Juan de Messa; the archbishop is obliged to call an ecclesiastical council to settle the matter, and they decide in favor of the Jesuits. Trouble arises in the Franciscan order over the appointment of a visitor, which is quelled by similar action on Serrano's part, and the governor's interference in the matter. More laborers are needed for the Jesuit missions, as well as for those conducted by the friars. Serrano urges that the hospital order of St. John of God be established in the islands, as the hospitals there need better care than they are receiving from the Franciscans. He complains that the officials of the orders give letters of recommendation too easily; that the Audiencia

are lax in their attendance at church feasts; that the ships are sent too late to Nueva España, and also return too late to the Philippines: that workmen in government employ in the islands are defrauded of their pay; that the city of Manila is overrun with Chinese and Japanese, far beyond the numbers allowed by royal edicts or regard for the safety of the Spanish citizens there; and that private persons, by collusion with the officials, illegally secure for themselves the best of the Philippine trade with Malacca and other adjacent regions. At the end of Serrano's letter is the papal bull changing the date on which the feast of Corpus Christi may be celebrated in Oriental regions.

A letter from Gerónimo de Silva to the king (August 1, 1621) states that one of the ships to Nueva España has been forced back to Manila by adverse weather, which has caused great distress in the islands. The annual relief for Ternate has been sent; attacks on Luzon by the Dutch and English are expected, but result in the enemy capturing only a few Chinese vessels. Silva mentions the pitifully small forces of the colony for defense, and urges that reenforcements and other aid be sent for this purpose. Undesirable inhabitants of the country are being sent away, especially the Japanese, who are more dangerous than the Chinese. Silva refers to the difficulties between the governor and auditors, and asserts that these are due to the existence of the Audiencia there, which is a costly and useless burden on the colony, and a hindrance to the administration of justice and to the fulfilment of the governor's duties.

Affairs in the Franciscan province of the Philippines are in unsatisfactory condition; an account of them is sent to the king (July 31, 1620) by the provincial of that order, Pedro de San Pablo, in behalf of the province. He states that a visitor has been sent to it from Nueva España who is not one of the discalced, and is therefore *persona non grata* to these (of whom are the Franciscans of Filipinas); also that other friars "of the cloth" have slipped in among the discalced, simply to gain admission to the regions of the East. Hence arise factions, dissensions, and loss to their religious interests and work; and these intruders seek to rule the others. San Pablo asks the king to issue such decrees that only one branch or the other of the order may send religious to the islands; thus "there will be peace." The intruding Observantines have attempted to deprive the discalced of the Japan missions and of the convent of San Francisco del Monte, near Manila; and

the royal authority is invoked to restrain their encroachments. This letter is accompanied by another (July 20, 1621) signed by San Pablo and other officials of his order, further entreating relief and redress for their province; and by still another letter of similar tenor (dated only 1621), complaining of Auditors Messa and Rodriguez for their unjust and arbitrary action in the case of the unwelcome visitor sent to the Franciscans, and urging the king to furnish redress therein and rebuke the auditors.

A letter from Fajardo to the king (December 10, 1621) concerns various matters of administration and business. He explains the late departure of the ships for Nueva España, and the consequent mortality reported on one of them. He discusses the question of diminishing the drain of silver from Nueva España to the Orient, and recommends that the export of silks and other fabrics to that country from the Philippines be prohibited; but he remonstrates against the proposed abandonment of Macao, which would surrender the Chinese trade at once to the Dutch and English, and thus ruin the Philippine colony. Fajardo suggests that only vessels of moderate size be allowed on the Nueva España line, and that more definite measures be postponed until the subject of this trade can be more thoroughly investigated. He denies the assertions that he is interested in the shipments of goods to that country, and places upon the auditors the fault of certain matters in which he, as governor, has incurred blame. He also accuses the Dominican friars of aiding and sheltering his enemies. A royal decree of 1610 has placed most of the appointments of subordinates in the hands of the auditors and fiscals, rather than (as formerly) those of viceroys and governors; and preference is given therein to the descendants of conquistadors and settlers. Fajardo remonstrates against this, adducing various arguments to show how this decree hampers the efforts and authority of the governor, creates difficulties between him and the auditors, disturbs the course of administration in the islands, and injures the public service. Fajardo seconds the demand of the citizens of Manila that the Audiencia be suppressed, alleging that it does more harm than good. He has sent the usual supplies to Ternate, and has despatched a small troop of Spaniards to Celebes to fortify a post there, with some Franciscan missionaries to minister to the natives. He has secured the release of certain Spanish prisoners, and is building two ships. Some of the natives have revolted, and troops have been sent to chastise them; Fajardo tries to keep

the Indians in due subjection, yet to treat them with justice and kindness, and he complains that his efforts to do so are hindered by the oppressive and harsh conduct of the friars (especially of the Dominicans) toward the natives, and by their ambition to rule in all matters. The governor is exerting every effort to maintain the fortifications at Cavite and Oton, and to repair and equip the few vessels at his disposal; he has news that Dutch and English fleets are coming to harass the Spaniards and their Chinese trade.

Fajardo's chief enemy in the Audiencia, Alvaro Messa y Lugo, writes to the king (apparently in 1621), complaining of the governor's official conduct as ruining the country. Messa accuses him of reckless expenditures of public funds; of using these to invest for his own profit in the Mexican trade; of allowing Indian claims for wages to be sold at a third of their value, and cashed in full; of issuing too many licenses to Chinese residents, and using these fees for himself; and of neglecting to audit the accounts of the government. According to Messa, Fajardo intimidates the Audiencia, interrupts the course of justice, recklessly liberates criminals, persecutes citizens who differ from him, neglects to observe the royal decrees, threatens even the clergy and friars, and tyrannizes over the entire community. It may be noted that Messa bases most of these accusations on report and hearsay, without citing any definite authority for his statements. Messa accuses the governor of neglecting his duties, and failing to provide for the defense of the country, while spending the royal revenues lavishly; and even assails Fajardo's personal character. He relates, in tedious detail, various difficulties between himself and the governor, and arbitrary acts of Fajardo against him; and recounts his deliverance from prison through a miracle wrought for him at the intercession of the Virgin Mary. Messa has taken refuge in the Dominican convent, and entreats the king to redress his wrongs and punish the governor and his abettors. He recounts at much length the reasons for which he supposes the governor arrested him. In this connection Messa relates his version of Fajardo's killing his unfaithful wife, adding much gossip of the town that is uncomplimentary to the governor. He also states that the Audiencia is virtually non-existent, and so there is no high court in which justice may be sought. Messa urges the king to send a new governor, and gives his advice as to the character of him who should be sent. He intimates that Fajardo has illegally obtained wealth to the value of

perhaps almost a million pesos, and that even this sum will not repay the claims held against him. Messa gives account of certain residencias entrusted to him, and claims that all his efforts to do this work have been blocked by the governor, especially in the case of Juan de Silva. He complains that the authority of the governor and that of the Audiencia conflict, especially in time of war; and that the former has too wide a jurisdiction in that he may try cases brought against the auditors. Messa recommends that aid for the Philippine colony be sent in the form of men and money, and that the necessary ships and artillery be constructed in the islands. He complains that the Chinese traders are illegally compelled to pay assessments, from which the fiscal, who is nominally their protector, receives additional pay. Messa asks for honors and promotion for himself, by way of atonement for the ill-treatment that he has received from the governor; and closes with the request that Fajardo's property in Mexico be sequestered.

With this letter is another by the same writer, dated July 30, 1622—a postscript to a duplicate of the preceding letter. He relates how Fajardo has summoned him to resume his duties as auditor; but he has no confidence in the governor's sincerity. He accuses the latter of various illegal and crafty acts, among them sending contraband gold and jewels to Mexico. Messa recounts the proceedings in the Santa Potenciana scandal, blaming the governor's course therein. At the end is a letter from the Audiencia advising the king to refuse an increase of salary to the archbishop of Manila, with a note by Fajardo recommending such increase.

The archbishop of Manila, Miguel Garcia Serrano, writes (1621) a report for the first year of his term of office—which, however, he does not send until 1622. He has been occupied in official visitations, mainly in the city of Manila. Among the clergy therein he finds no offenses, save that a few have gambled in public; these are promptly disciplined. The cathedral is the only Spanish parochial church; it cares for two thousand four hundred souls. Another curate is in charge of the Indians and slaves of Manila, who number one thousand six hundred and forty and one thousand nine hundred and seventy respectively; but many of these confess at the convents of the various orders. The Indians should have a suitable church of their own, and Serrano recommends that the king provide one for them. At the port of

Cavite is a parochial church, which ministers to over three thousand souls. The Indians in the archdiocese of Manila are mainly in charge of the religious orders, as follows: Of the Augustinians, ninety thousand souls; Franciscans, forty-eight thousand four hundred; Dominicans, twenty-eight thousand; Jesuits, ten thousand six hundred; Recollects, eight thousand. Besides these, twenty thousand Indians are under the care of secular priests—making a total of two hundred and five thousand. Serrano describes the method of government and administration that is followed in the missions; the natives could be more easily reached and instructed in a few large villages, but the effort to collect them in these “reductions” has proved to be neither satisfactory nor profitable, in the Philippines as well as in Nueva España. Chinese converts residing in the outskirts of Manila number one thousand five hundred souls, in charge of the Dominicans and Franciscans. Among the Japanese who are in the islands there are more than one thousand five hundred Christians. In the bishopric of Cebú are two hundred Spaniards; the Indians and other people under instruction amount to one hundred and nineteen thousand six hundred and fifty. Of these about sixteen thousand are in the care of secular priests; nearly fifty thousand, of the Augustinians; and fifty-four thousand, of the Jesuits. In the bishopric of Cagayán (in northern Luzon), there are but seventy Spaniards; the Augustinians instruct fifty-eight thousand, and the Dominicans seventy thousand, Indian natives. The bishopric of Camarines (in eastern Luzon) has only some fifty Spaniards; eight thousand six hundred natives are cared for by secular priests, forty-five thousand by Franciscans, and three thousand two hundred by Jesuits. The total number of souls of natives under religious instruction in the islands amounts to over half a million—apparently not counting therein the children. But the great number of Indians still unconverted demands many more missionaries, whom the king is urged to send. The archbishop gives some account of the hospitals and their management; he recommends that they be placed in care of the hospital order of St. John of God. He also enumerates the various religious and benevolent confraternities in Manila, with their purposes and revenues; of these the chief is that of La Misericordia. Serrano describes the character and present condition of the two colleges in Manila, San José and Santo Tomás, and of the seminary for girls, Santa Potenciana; for the former he requests faculty for granting decrees to their students, and for the latter substantial pecuniary aid. He states that, in general, the Indians are well

treated by their religious teachers; but he recommends that more power over these ministers be given to the Philippine bishops. The constant menace of the islands by the Dutch enemy, however, lays cruel burdens upon the Indians, in ship-building and in other preparations for war which they are compelled to make by the royal officials. Serrano closes by answering certain questions about prebends, curacies, etc.

A royal decree (December 31, 1622) orders the Dominicans in the Philippines not to meddle in affairs of government. Another of the same date confirms and enforces a previous decree (1603) of Felipe II, ordering that all religious who are missionaries to the Indians be examined as to their competency for such work, especially in their knowledge of the native language, by the archbishop or some person appointed by him. A letter from the king (October 9, 1623) directs Fajardo to push the exploration of the Igorrote mining region, and to send nutmeg from the islands to Nueva España. Various matters mentioned by the governor receive perfunctory and formal answers. On November 27 following, Felipe IV confirms the permission given by the governor and archbishop to the Dominicans to found a college at Manila.

At the close of the year 1623, an expedition is sent to explore and pacify the province of the Igorrotes (in northern Luzon), already famous for its rich gold mines. The report of this enterprise, furnished (June 5, 1624) by its leader, Alonso Martin Quirante, narrates its progress from day to day, the plan of the campaign, the encounters between the Spaniards and the Igorrotes, and the success of the former in repulsing the attacks of the natives and obtaining ore from the mines. Martin describes the country through which he passes; the native tribes, their customs, and their methods of obtaining gold; the mines, and the ore secured from them. He considers the general idea of the richness of these mines incorrect and exaggerated; he examines them, however, carefully, and obtains specimens of the ore from each. Then follows a report of the various tests and assays made thereon, from which the results are not very satisfactory; a table showing the values of the metal obtained in each of the assays; and the action of the Audiencia of Manila thereon—they deciding to abandon further attempts to explore or work the Igorrote mines, and to send to Nueva España for further test the

ores brought by Martin to Manila; moreover, the men now at the mines are to be sent to Nueva Segovia, to subdue the revolted Indians there.

THE EDITORS
September, 1904.

Documents of 1621

- [News from the province of Filipinas](#). Alonso Roman; [July?].
- [Death of Doña Catalina Zambrano](#). [Unsigned]; July.
- [Letter to the king](#). Alonso Fajardo de Tença; July 21.
- [Letter from the archbishop of Manila to the king](#). Miguel Garcia Serrano, O.S.A., July 30.
- [Letter to the king](#). Geronimo de Silva; August 1.
- [Affairs in the Franciscan province](#). Pedro de Sant Pablo, O.S.F., and others; 1620–21.
- [Letter to the king](#). Alonso Fajardo de Tença; December 10.

SOURCES: The first of these documents is obtained from a MS. in the Real Academia de Historia, Madrid; the second, from the Ventura del Arco MSS. (Ayer Library), i, pp. 509–514; the remainder, from MSS. in the Archivo general de Indias, Sevilla.

TRANSLATIONS: The first of these documents is translated by Arthur B. Myrick, of Harvard University; the second, fourth, fifth, and sixth, by James A. Robertson—except the Latin bull in the fourth, translated by Rev. T.C. Middleton, O.S.A.; the third and seventh, by Robert W. Haight.

News from the Province of Filipinas, This Year, 1621

By letters which we have received from Japon this January, 1621, we heard how bitterly the persecution of God's religion is carried on in Boxu, the country of Masamune,¹ who has been accustomed to send embassies to Spain in past years. The spread of the holy gospel and uninterrupted preaching went on until the return of the ambassador. Hitherto Masamune had dissimulated for reasons of state, hoping that he would be allowed to send one ship from his kingdoms to Nueva España, where he had large interests. Seeing that this would not be conceded, he commenced to persecute Christians openly and secretly. On the twentieth of September, 1620, he ordered prohibitions and edicts to be issued in various places, in which it was ordered that no one should receive the religion of God; and that all those who had adopted it should abandon it, under penalty of being deprived of the property and incomes which the chiefs of equal rank hold from the tono [*i.e.*, daimio], while in the case of the common people, the plebeians, they should be put to death. He also commanded that any person having any knowledge of any Christian should denounce him; and that all preachers of the holy gospel should leave his kingdom and state. In case that they would not abandon the religion which they preached, the officials of Masamune commenced to execute their orders. Many were therefore banished and dispossessed of their property, others abandoned the faith, and to six fell the best lot of all in giving up their lives, being beheaded for this reason.

In the city of Nangasaqui, as all its people are Christians, the persecution is directed not so much against the Christians, for that would utterly destroy the place, as against those who conceal the religious who are under penalty of death.

On the seventeenth of December, they arrested two religious of St. Francis, one a priest named Fray Pedro de Avila,² and another a layman, Fray Vicente. On the twelfth of February they beheaded two leading natives for their faith. On the thirteenth of the same month they bound to the stake, in order to burn alive, a man who had two religious in his house. On account of his anxiety to escape the fire, he confessed; and leaping from it (they say) he begged them not to kill him, saying that [*illegible in MS.*]. They cut him to pieces, however, without mercy, and he was sent to the Lord.

At this same time they seized in Nangasaqui a servant of the father provincial, Matheo Couros, who was washing his clothes. When he was thus recognized, they inflicted sharp torments upon him, to make him disclose what he knew; but he, although mangled, bravely gave up his life in the torture rather than betray the father. There are at present in Japanese prisons [*MS. torn*] of religious and Christians: of the Order of St Francis there are five; of that of St. Dominic, three or four; of the Jesuits one, Father Carlos de Espinola. There were three, but one was burned alive for his faith; and the other, who was a Portuguese brother, [died]³ with the hardships of the prison, and it is thought to be certain that [his death was hastened] by poison.

The Dutch and English seized, on board a Japanese ship which sailed from Manila for Japan, two religious—one a Dominican, and the other an Augustinian—who were identified by letters and papers that they had with them.⁴ The letters [*MS. torn*] nevertheless, presented at court, for it was not considered wrong for them to have [*MS. torn*] a ship of Japanese, who extended them a kindly welcome to their kingdom. They jointly presented a petition, stating to the emperor that until [*MS. torn*] destroy Manila and Macan, there would be no lack of religious in his [empire]; and that they should deliver over to them in orderly manner two or three thousand Japanese, who [*MS. torn*] will destroy these two cities. This petition was not granted them; instead, decrees were issued in which the emperor ordered the governor of [Nan]gasaqui to notify the tonos of Firando and other places that under pain of [*MS. torn*] they should allow no Japanese to embark with the Dutch and English. [*MS. torn*] It was observed and carried out even against the wishes of the heretics, who wished to assist [*MS. torn*] of them against us.

On the twenty-sixth of July there arrived at the port of Firando, two Dutch [vessels] with some of their men wounded and their masts pierced by shots; [*MS. torn*] they had fought in the Philipinas with the ships that had come from Nueva España, and had sunk one of them. The truth of the affair was afterward found out, that [*MS. torn*] fought with ours, and it is presumed that one was sunk. [*MS. torn*] Not more than two arrived at Firando, to the great pleasure of the Christians of Japan when they heard the truth and the evil deed of the enemy.

A Dutch ship and patache sailed from Japan in February, 1620, with the intention of lying in wait for the Chinese ships that were going from Manila, laden with the silver which they had received for the goods which they had sold, but during a heavy storm the vessel with all its cargo was wrecked on Hermosa Island. Six of the Dutch were drowned. Those who escaped seized two boats that they found on the shore, and robbed three Chinese ships of more than three hundred thousand pesos. The patache was never seen again, and there is not much doubt that it was lost with all hands on board. They sent another large ship to Bantan, where they have a factory. This vessel, loaded with supplies, went ashore and was lost; and one hundred and twenty Japanese and three Dutchmen were drowned.

The English and Dutch being on the point of settling their quarrel by fighting a pitched battle off Bantan near China in which both parties must have been destroyed, chance would have it that two despatch-boats arrived, one from Ynglaterra and the other from Olanda, bringing the news of the confederation which had been formed between those two states,⁵ so that their quarrel was converted to rejoicing and merriment. Then they sent off sixteen English vessels and ten Dutch ships. One English ship was lost on the coast of China, as a result of trying to capture a Portuguese vessel which was on its way from India to Macan. Nothing was ever heard of three of the Dutch ships; but the others came to lie in wait for the Portuguese galliots loaded with silks which the Portuguese import into Japan. They followed these as far as Nangasaqui without being able to chase one of them, because they were too light, whereupon the enemy took shelter in their port of Firando. The agreement of the confederation was as follows: In order to avoid dissensions on both sides, they were all to come into the English Company, and they should render accounts of what either side had lost in the wars that they had waged; and whatever was over and above, the other side was to pay. *Item*, that both parties could alike enter the regions conquered by them, with ships, men, and supplies; and that anything that they should acquire by conquest should remain in the form in which the said States [of Holland] and the English Company had there agreed. *Item*, that the spice trade should be equally divided, each loading as many ships as the other, and that they should go shares in their seizures; finally, that an English captain was to be commander of the whole fleet this first year, and the next a Dutchman, and so on alternately in succeeding years. This is their

plan, which meanwhile is to redound to our injury, since they intend to make themselves masters of the Philipinas, the Malucas Islands, India, and the whole of this archipelago. There is cause for alarm when they bring one hundred and ten ships into these seas without any means of resistance on our part.

These pirates were fitting out an armada in great haste in Japan. The report was current that they were going to attack Macan, while others said that they were coming to the Philipinas, of which we had information. The people at Macan were also warned that trip English and Dutch allies were coming to attack them, whereupon they set about providing supplies, and dug some trenches, which the Chinese quickly dismantled, fearing lest that fortification was made against themselves; for they have never consented to wall the city, cast artillery, or make other preparations for war. The Portuguese, seeing themselves ill-prepared for defense, decided to send out a ship with Father Geronimo Rodriguez of the Society of Jesus, who had been rector in the college at Macan, to ask our lord governor for some heavy guns for their defense. He arrived at Manila toward the end of December. He explained his errand, and the lord governor gave him six pieces of artillery—one thirty-pounder, three twenty-five pounders, and two eighteen-pounders—together with a good ship to convey them there. It was sent away on the last of January. When they sailed out of the bay they caught sight of the enemy's fleet, which was headed for these islands. One of the enemy's ships followed it, but seeing that they could not overtake it they retired; and our ship continued its voyage, and in a short time arrived at Macan.

The assistance which went this year to Maluco, arrived within sight of our forts, where three Dutch ships were waiting to seize it or cut off their passage; but the captain of one of the largest of our ships approached the enemy to keep him busy fighting, while the reenforcements entered under the fire of our artillery. He fought for three hours, at the end of which time, having seen our ships in safety, he squared away and left the enemy tricked, because he had a very fast vessel.

We had some trouble with the Tidorans, who have been our friends and the enemies of the Dutch; whereupon they poisoned a well where the men came

to drink. The crime was immediately discovered, and so no harm was done. We have made friends with them again, and we continue as before.

With six galleons the Dutch came to the Solor Islands, which are near the Malucas, where the Portuguese have a fort. They landed more than six hundred of their men and more than one thousand Moros of the country, who also came in their ships. The Portuguese, who numbered perhaps thirty soldiers, defended themselves so well that they killed over seventy Dutch and many Moros, while many were wounded.

Another Portuguese captain, who went out to sea with some vessels, captured some of the little galliots of the Moros and some Dutch lanchas. They retired at this loss, the Portuguese remaining victorious.

A Dutch ship went aground on a shoal on the island of Jolos, near these Philipinas Islands. Being seen by the Indians and natives of that land, the latter attacked them, and put them all to the sword, leaving only the captain alive for the ransom that they can get for him. For two years there have been such droughts in the Malucas Islands that many clove-trees have been destroyed, causing a great famine.

In the beginning of February of this year, 621, nine hostile ships arrived in the bay of Manila, five Dutch and four English, who seized the passage by which enter the ships of all these islands from Japan, China, Macan, Maluco, and India. The commander of this fleet was an Englishman, according to the agreement between them. They sighted our forts and saw how few ships we had to oppose to them; thereupon they sailed in as if on their own seas and in a safe port. The greatest resistance which could be made against this enemy was to take care that they did not seize any of the China ships aboard of which much of our wealth comes to these islands. So two ships were despatched with all haste to the coast of China, in order to inform them of the enemy, and warn them not to sail at such a time that they would fall into the hands of the enemy. They did not arrive in time, so that some of the vessels had sailed, three of which were captured by the enemy. These were of little value, but two of some importance were taken. One of them was sighted by a small patache belonging to the Dutch, who were under difficulties in attacking it, because the Chinese after their manner of fighting—with caldrons of melted sugar, and stones, and clubs—defended

themselves so well that with their boiling sugar they sent fourteen of the Dutch in a conserve to hell. Finally it was surrendered, after the death of one hundred and twenty Chinese. The English commander ordered the other ship, which was the fifth, to be set afire, because of quarrels between the Dutch and English over the capture and division, so that their booty was diminished. The enemy, as I have said, being masters of the sea, and the inward passage, God chose to allow an entrance to our fathers (who were coming to a meeting of the congregation), by permitting them to come. Scarcely had they entered when the enemy returned to occupy his position. The same thing happened after the meeting, and the return of the fathers, a remarkable providence of the lord.

A few days after, three galliots arrived from Macan, laden with a rich cargo of silks and other merchandise. They entered without finding any obstruction, because the enemy had gone out to sea; and the four hours of their absence were enough to enable the galliots to enter. They had news of it, and returned at dawn the next day to see if it was true; and were furious at seeing them anchored in our harbors. At this same time the king's ship arrived which had carried to Macan artillery for the defense of that city, and it brought back a cargo of silks. Being informed that the enemy were lying off the entrance to the port of Manila, they rowed over to an island near here, and collected a quantity of green boughs and trees, putting bunches of palm-leaves on the tops of the trees, so that they seemed to be cocoa-palms, of which there is a great abundance on that island. The stratagem worked, because the ships went about from one tack to the other without being seen by the Dutch. In the same way, another Portuguese galliot, also of Macan, escaped, although it cut down its masts. The Dutch, having seen that they were likely to get little booty on this coast, made sail for that of Macan, to lie in wait, as we understood, for ships from India.

Last year two ships sailed from these islands for Nueva España. The almiranta, while sailing out of a strait where these islands come to an end, encountered seven hurricanes, so furious that it seemed as if the sea would swallow it up; and those who were aboard gave themselves up a thousand times for lost. They tried to make port in Japon, but it was impossible; and they finally arrived at Manila, rounding Cabo del Bojeador. The men arrived in very bad condition, and many of them blinded with the salt water

which had dashed into their eyes. Three days before these tempests commenced they sighted the capitana, but never saw her again. We do not know here what became of her, whether she was lost or arrived safely in Nueva España.

At nine o'clock in the evening on the eleventh of May, there was an occurrence in this city as pitiable as it was unfortunate, the cause of it being a man who had been expelled from our Society. After having been a member of it for seven years, he left the Society, and was married three times, although he was not yet thirty years old. Our Lord often brought him back, warned by bitter experience of troubles and remorse of conscience; so that for a long time he did not dare to go to sleep without first confessing himself—especially on the long trip from Nueva España to these islands, where he was wrecked on a ship which was on its way with silver and other wealth belonging to these islands. The vessel escaped miraculously, with sails torn by shots from three Dutch vessels, which they took for one of their own. They ran aground, but all the silver was saved. Among others Joan de Messa (the name of the outcast of whom I have just spoken) removed all the silver and goods, to the value of thirty thousand pesos or more, belonging to people in Mexico. It had been entrusted to him, and he kept it, as was done by all, in a house and church of one of our residences, situated where the ship happened to halt. While he was there he proceeded as if he were a religious, both in example and in frequenting the sacrament, until he came to this city of Manila—where, with certain curious articles, he obtained entrance to and communication with the wife of the governor of these islands, Doña Catalina Sambrano, who had little care for what her position and her dignity demanded. Their sin began on Holy Thursday, with so little secrecy and so bad an example, that the affair was beginning to leak out. So badly did it appear that certain persons came to one of our fathers, advising him to warn Joan de Messa that they would kill him. The father did, but Messa took no notice of it. The governor, meanwhile, was informed of his wife's evil conduct; and, wishing to detect them, he pretended to go down to the harbor and fort of Cavite, situated two leguas from here. He had been wont to do this on other occasions, because the enemy with nine ships was within sight of the fort. He retraced his steps, leaving his entire retinue about a legua from here. He entered the city with the intention of accomplishing the deed (which he did later) in his own house; but before

entering it he was informed by a page that his wife had gone, disguised as a man, to the house of Joan de Messa, where she had often gone in the same dress. After receiving this information, he sought his retinue, taking counsel with his servant and three captains, whom he placed in four streets in order to let no one pass. The governor alone arrived at the house at the very moment that his wife entered, and was going upstairs with Joan de Messa, and behind them a very noted pilot, on account of whom the ship that I mentioned above was celebrated. The governor attacked him and pierced him with a mortal thrust. With that he rushed out of the house, calling for confession; but, those who guarded the street, not giving him time for that, put him to death. Immediately Messa went up the stairs, and safely reached a large room where two candles were burning on a buffet. If these had been extinguished, he might have escaped. He drew his sword and defended himself for some time. As the governor perceived that he was clad in armor, he aimed at Messa's face and pierced him through the neck, so that he fell down stairs, where he who guarded the door tried to finish him; but as Messa was well-armed he could not do so readily until he wounded him in the face. During all this time Messa was not heard to ask confession or even say "Jesus," or any other words, except: "Whoever you are, do not kill me; consider the honor of your lady." While this was going on in the street, the governor found his wife in hiding. After wounding her three times, she asked confession; and he, as a knight and a Christian, went out to look for a confessor, and brought one. He resigned her to the priest, urging her to confess herself well and truly, which she did for some time, until the confessor absolved her. With three or four more wounds, and the words with which he aided her to die, he finished with her. The three dead bodies remained there until seven or eight o'clock in the morning before anyone dared to remove them. The master-of-camp, Don Geronimo de Sylva, who had been governor of Maluco, and was a knight of St. John, had the body of the governor's wife removed to her house, to wrap it in a shroud; and that night she received solemn burial by the Recollects of St. Augustine. The two bodies of Joan de Messa and the pilot remained in the street all day, while a multitude of people, of the various nations who are in this city, collected to gaze at them, manifesting awe at seeing a spectacle so new to them, and one never seen before in these regions. At night, some members of La Misericordia carried them away, without clergy, lights, or funeral ceremony. They carried the two bodies together on some litters, and buried

them both in the same grave. This was the disastrous end of a poor young fellow, upon whom our Lord lavished many and most gracious gifts—although he knew not how to profit by them, but offended Him who had granted them. Those who will feel it most are the owners of the property [confided to him]; for God knows when they will collect it, because it is sequestrated. Will your Reverence communicate this to Brother Juan de Alcazar.

ALONSO ROMAN

¹ According to the *Diary* of Richard Cocks, this prince was the father-in-law of Calsa Sama, the youngest son of the shogun Hidétada.

² Pedro de Avila joined the Franciscan missions in the Philippines in 1616, and immediately requested from his superiors permission to go to Japan. This was finally granted; he went there in 1619, but was imprisoned for preaching the faith, in 1620, and, after nearly two years of most painful and wretched imprisonment, was burned at the stake at Nangasaqui, on September 10, 1622, at the age of thirty years.

³ The original MS. of this document is badly worn, in places; and the words enclosed in brackets, in the two following paragraphs, indicate the conjectures of the transcriber.

⁴ These priests were Pedro de Zuñiga, an Augustinian, and Luis Flores, a Dominican. In 1622, they, with the Japanese captain of the vessel, were burned to death by a slow fire, and the crew were beheaded. The Japanese shogun appropriated the cargo of the ship, leaving only the empty hull for the Dutch and English. (See Cocks's *Diary*, i, pp. xxxvi and xxxvii.)

⁵ As a result of this alliance, the English and the Dutch East India Companies were united; "a combined fleet of English and Dutch ships, sailing under the modest name of the Fleet of Defence, was equipped for the purpose of endamaging the common enemy and diverting the trade of China from the Philippine Islands to the Dutch and English settlements; in other words, to blockade the Spanish and Portuguese ports and seize as many of the Chinese trading junks as possible. In the two expeditions to the Philippines undertaken by the fleet before the English and Dutch again separated, they captured many prizes." (See E.M. Thompson's preface to Cocks's *Diary*, i, pp. xxxi–xxxvi.)

Death of Dona Catalina Zambrano

May 12, 1621, occurred the unfortunate death of the governor's wife, which I intend to relate here, as it is a peculiar case. The governor of these

Filipinas Islands, Don Alonso Fajardo de Tenza, suspected that his wife, called Doña Catalina Zambrano, was not living as was fitting for such a personage. One afternoon, that of May 12, he pretended that he was going to the port of Cavite, where he generally went because the Dutch enemy were in this bay with their fleet. The governor went, but, leaving all the men who accompanied him, returned alone. Entering the city secretly, he concealed himself in a house, where a captain in his confidence brought him a young page who was in the service of his wife—the one who carried the messages, and knew everything that went on. The governor placed a dagger to his breast in order to get him to tell what he knew of his wife. The page openly confessed that she was maintaining a sinful alliance with a clerk, an ordinary person, called Juan de Messa Suero, who had been a member of the Society of Jesus for some years at Coimbra; and that his wife was dressing in the garb of a man, in order to go outside of the palace, as she had done at other times. Juan de Messa came with a very eminent pilot. The governor's wife left the palace clad as a man, with her cloak and sword and all went together to the square. Thence they began to walk toward a house of Juan de Messa. The governor, with three other men who accompanied him, went on ahead of them, and awaited them near the door of the said house, hidden in a recess. The governor's wife entered first, then Juan de Messa. Then the pilot stopped to shut the door. Thereupon the governor attacked him alone, and giving a violent push on the door, opened it. He entered, and found himself with the pilot alone, for the other man, Juan de Messa, with the governor's wife, on hearing the noise, fled up the stairs. It appears that the governor stabbed the pilot in the breast. The latter left the portal of the house, whereupon those who accompanied the governor and had remained to guard the door, attacked and killed him there. The governor went upstairs and found Juan de Messa in the hall. He chased the latter around a table that held two lights. The governor made a strong thrust at him, which almost knocked him down; but showed that he was clad in armor. By the force that the governor exerted in the thrust, he felt that he himself was wounded in the hand. Apparently the pilot had given him that wound, and he had not felt it before that. The governor's sword began to grow weak, and he said: "Ha, traitor, thou hast wounded me." Juan de Messa lost his head, and ran down stairs, thinking that his safety lay there. The governor attacked him, and on the way down stabbed him in the neck, with such force that he tripped and fell down. Below, the governor

and the guard finished killing him. The governor would have been in great peril, both with the pilot and upstairs with Juan de Massa, had not the miserable man lost his head. Had he at least extinguished the candles, and stationed himself on the stairway, which was narrow, he could have prevented the governor from ascending, and could even have killed him. The latter went immediately to look for his wife, and found her hidden in an attic, hanging to a beam. He stabbed her from beneath, and passed half of his sword through her body, and at that the poor lady fell. She requested confession. The governor restrained himself, and said that it was a timely request. Leaving the three men whom he brought with him as a guard, he in person going to the Franciscan convent, which was near by, to summon a confessor, met a secular priest on the way, who had left his house at the disturbance. He took the latter with him and told him to confess “that person.” He confessed her very slowly, delaying more than half an hour. The governor, in the meanwhile, was walking up and down. When the father had finished, he stabbed his wife, telling her to repent of her sins and to confess to God who would pardon her. This happened at nine o’clock at night. A large crowd gathered immediately, and the alcaldes made investigation of what was passing. The dead bodies of the two men were guarded until next day, for justice to do its duty. That of the governor’s wife remained there until eight in the morning, when the master-of-camp, Don Geronimo de Silva, of the habit of St. John, ordered it to be taken up and carried to his house, in order to have it buried from there, according to the rank of her person, and not according to the so disgraceful event and death that had happened. They buried her body in the Recollect convent, with the greatest pomp possible. Then the two bodies of the men were buried, carrying them together from the street to the grave. The royal Audiencia took charge of the matter. They found almost two hundred notes from the governor’s wife in Juan de Massa’s possession, and in hers a great number from him. A report was made of all and sent to his Majesty. It was the first instance in which a so common person had an alliance with so powerful a lady, who was here as is the queen in España.¹

Manila, July, 1621.

¹ La Concepción (v, pp. 106, 107), in reporting this incident says that the amour of the governor’s wife was with a “distinguished subject of this community,” that is, Manila, and that the latter was not

killed but escaped across seas. Montero y Vidal (*Historia*, i, pp. 177, 179), who had evidently not seen the documents of the text, and partially following La Concepción's error and improving on it, lays the time of Fajardo's vengeance in 1624, and says that the paramour was unknown and escaped by jumping from a window, later probably finding means to get to America. Montero y Vidal is usually more careful of his dates.

Letter from Fajardo to the King

Sire:

Although at present, up to the nineteenth of June, the ship "Sant Andres," the capitana, has not arrived from Nueva España, even at this late date, which is the one that I despatched last year to that province, and I have no letters from your Majesty to answer, I am making a beginning of this one in order to gain time in the despatching of those ships, so that it may be somewhat earlier than usual in past years—although at present, having the war on our hands which we have, and as the ships are later from China than is usual, and there are very few that come for fear of the war, there will be more difficulty and labor in the despatch. [*In the margin*: "Council; examined."]

According to the despatch which the said ship carried, measures were to be taken to secure its preparation and departure from Acapulco for this country without waiting into the month of April, or without delaying more than two or three days in that month; and it was not to depart later because of the danger of encountering contrary winds in its voyage here, or being forced into the ports of Japon—and likewise because this was the best, considering the course which it must steer to make the port it was ordered to; for it was understood that the enemy were coming back again, as they did last year, to Cape Spiritu Santo, with a larger force of ships. This route was decided upon with the advice of the pilots and other persons of most experience on these seas, each one giving and signing his opinion separately, without any one of them knowing that of the others, or any one of them knowing which one I chose. This order I gave secretly and sealed, and it was to be opened seventy leguas before arriving at the said port; in which manner I have taken the precaution and preliminary steps in so far as I have been able for

its reception and protection. Hitherto this plan has not been made known here, which has been of no small importance in order that the enemy should not be aware of it. [*In the margin*: “This is well, and the course which he has marked out for these vessels has appeared good; accordingly let him exercise in the future the care which he has shown in this, in order to keep informed of the design of the enemies; as for the departure of the ships, have a letter written to the viceroy directing him not to let it run into April, as he says.” *In another hand*: “Have a letter written to the viceroy of Nueva España to the effect that the despatch of the ships for the Filipinas shall be accomplished in any event by the end of March, so that it shall not run on into April, on account of the great importance of their arriving thus early, and not having them go with those despatched later—thus compelling them to take refuge in other ports, or be wrecked.”]

In command of these ships is placed Don Fernando Centeno Maldonado, who has served in the position of commander of the galleys both there and here, and has served many years in these islands (most of the time in the Maluco Islands); his services are of high repute, as are his merits and good qualities. I am sure that your Majesty has been informed of them, on account of the favors which he has received from your royal hand; and in the same way I am certain that you know of the good qualities of Captain Francisco de Salazar, who is filling the office of admiral on the said ships. [*In the margin*: “Examined.”]

Besides what I wrote your Majesty last year by way of Nueva España, with the duplicate which I send by way of India, I have added what occurred to me in the despatch which I sent with Captain Gregorio de Vidaña, regidor of this city, having decided to do so on account of the accounts and news which I receive, and which your Majesty will already have learned—of all which I now send another copy with this. [*In the margin*: “Examined.”]

The news of the confederation of the Dutch and the English proved to be correct; and on the second of February they arrived on these coasts, with nine ships of war—seven large and two of moderate size, five of them being Dutch and four English—with the number of a thousand to twelve hundred men of both nations, exclusive of the servants and Japanese; they carried between forty and forty-four pieces of artillery, in each of the large ships,

and the others each according to its capacity. It has been learned that this is true from the depositions of two prisoners, and from Chinese who were in their ships; from Japanese who, while coming from their land with provisions and supplies for this country, passed by the enemy, saw them, and entered their vessels; and likewise from the advices which I have received from Japon.

This matter found me well advanced in the preparation, because I had so anticipated the news that, although they entered the bay and port at Cavite with their fleet, they did not dare—as I had caused to be made several trenches with stockades, and bastions with batteries of artillery, which appeared to me sufficient; and had placed sufficient artillery in the two vessels which were fit to receive it—to resolve to do anything against either the ships or the land; and when they found out that these defenses were there, and had seen them, they went out of the bay with all their boats. Having come back to it a few days later, and seen that the preparation of the capitana and almiranta galleons was in good condition; and that we had also a moderate-sized ship, another smaller, two galleys, and another on which the work was more backward (which are the vessels that can be made ready), they went out again—going now along the coast, and now in the mouth of this bay, without separating or dividing the fleet so as to be out of sight of one another. If they had done this without guarding against encounters, I would have engaged him with the capitana and almiranta galleons, which are the ships that could be manned, although with difficulty on account of the few men whom I have here; for I had to leave the maimed and sick, and some as guard for the gates of the city, which takes as many as are necessary for all the vessels. Even if they were not divided, I should have tried my fortune with him, but having made all preparations and efforts, and issued proclamations to assemble the Spaniards who could be found for this purpose, those who gathered in Cavite, aside from the paid soldiers, would not number seventy; nor were there more than four hundred soldiers outside of the maimed and sick, and one company and a detachment from another—amounting to about a hundred men, more or less, who remained in this city, prepared also to embark. These had been brought as detachments of the companies from Nueva Segovia, Cibu, and Oton—all of which will appear by the depositions of paid officers and the secretary of the governor, which accompany this, with the papers referring

to the above mentioned matter. [*In the margin*: “The matters contained in this clause are the concern of the Junta, and have been examined there.”

“Examined; the Junta is taking care to send reinforcements; and let him be careful to maintain what he has there in so good condition as may serve for whatever occasion may arise there, as is expected from him. Have a letter written to the viceroy of Nueva España, telling him to send all the best part of the troops which he can, considering that the governor writes that in past years so few troops have gone there that he is now almost without any in the service; and accordingly he should decree that it be such which he sends. Advise Don Alonso of what is written to the viceroy of Nueva España.”]

The reason for there being so few troops is, that after the year one thousand six hundred and sixteen, when a ship called the “Angel de la Guarda” came, in the following year, sixteen hundred and seventeen, there came no reinforcements of infantry, but only a patache called the “Sant Geronimo,” with the archbishop Don Fray Miguel Garcia, and a number of friars; and in that year there died in the engagement which Don Juan Ronquillo had with the enemy, and were drowned in the six galleons, more Spaniards than I brought in the year one thousand six hundred and eighteen. Since my arrival I have sent almost four hundred soldiers to Terrenate, and this number has not come in the two reinforcements from Nueva España which arrived in the past years of nineteen and twenty. Then besides these—and a number who have left with good cause and permission (although these are few), and others who have managed to flee without permission, and others who have turned friars—there are so many who have died in the hospital and outside of it, that it may be said that all the soldiers in the country are found in this jurisdiction [of Manila.]. I have wished to give your Majesty an account of this so that it might be fully understood, and that you may learn the truth of it; and that you may know how great is the lack of men here, as I say. That of vessels is not so great as some people here say, who know nothing of this matter, or who desire to build them, on account of the money which they usually obtain from this work, or which is paid to them—without considering the loss to the natives, or whether the work is necessary or not. [*In the margin*: “Examined.”]

The enemy having seen that the equipment of the vessels which he saw in Cavite was making progress, and not having separated his vessels, or despatched them to get booty—on account, moreover, of the warnings that I gave in various parts of this archipelago whence vessels came to this place, and particularly at Macan and several ports of China—thus far, thanks be to God, he has taken nothing more than five Sangley ships from that country. One of these disappeared with the guard which he had placed on it, and they have not been able to find it again, and another of them was burned, so that he has not taken more than three, and two of them of almost no value, and the other not very valuable; for the rich ones remain in China, and those that made bold to come kept to the course which I marked out for them, and have arrived safely, making ports in this island. Even if they arrived here, which is possible, this will be of importance, in order to make merchandise cheaper; nevertheless, even if no goods arrive on the ships which have come from Macan, there is more cloth than money in the country to buy it; and, besides them, we are expecting others from Camboja and Sian, and from Yndia, which, if God bring them in safety, will also be of importance. [*In the margin*: “Examined. It is hoped in God that this and other worse things will have happened to the enemy; and let him take the greatest care to advise the Chinese and other merchant ships which go there, marking out the course which appears safest for them, according to the information which they have, so that in regard to them the enemy may fare as they have been doing, according to this statement.”]

The fleet of the enemy left the place where they last halted, and came in sight day before yesterday in the morning. Some vessels were sent in pursuit, in order to bring me word of the course which they steer, and whether they are together or separate, [*In the margin*: “This is well, and let him take good care until the news from them be known.”]

I have received a letter from Malaca, which Antonio Pinto de Fonseca says that he received from your Majesty, with notice and order to give it to me, to the effect that there and in these regions the confederated Dutch and English were about to come with fifty-one ships—sixteen of which had already left, and thirty-five were in two squadrons which were being equipped. Of these the sixteen which had left Holland have already arrived at their factories in Sunda, whence, likewise, it was learned that they say

they are expecting this year the remainder. Fadrique Lopez de Soysa, commandant of that city [*i.e.*, Malaca], gave me almost the same information. Conformably to this, and to several advices which I have had from Japon, and to others which I have been able to secure through my own investigations, it appears that these enemies are considering carrying on this war in earnest and with energy; for with these ships which have arrived, those which are expected, and more than sixty which I wrote to your Majesty in the last despatch that I understood they had, those of both nations amount to more than a hundred, without counting those which the French have. If I had the eighth part of that number, and sufficient men to man them, and to keep this city and the important posts and forts of this island garrisoned, it would not trouble me much to see them involved in the cost and expense of such a fleet; for if I had the means with which to withstand their first attack, or to inflict upon them some severe blow; or if they did not know my position, and I could cause them anxiety or divert them from their object—there is no doubt that their fleet itself would be disarmed and destroyed. But since I lack such resources, and the time is passing in which I expected the aid which your Majesty has offered to these islands—having sent the pilots to Malaca to guide and bring them here from there—I shall be obliged to make the best of the little which I have, and to take the best precautions that I can. I am raising and fortifying a few stretches of wall which are necessary, expelling the Japanese, and lessening the number of the Sangleys—who, although there appear to be a great many of them, will certainly, by the proper management of the licenses, and care in obliging the Sangleys to secure them, be much fewer than I found here, and than have been here for many years, on account of those who have died and left the country and the few who have come in my time. In every way I shall do my best to drive out as many as I well can so that the country may be less burdened with suspicious people; and shall likewise take other necessary precautions which may be in my power. In these efforts I feel sadly the lack of money; but in times of such need I have been obliged to try to obtain it in the most guarded and cautious ways. I am not a little glad to have with me at such a time Master-of-camp Don Hieronimo de Silva, both on account of his good counsel and aid, and likewise because if I should fail in this country there would be someone to defend it; and your Majesty may be certain that he will do this with the favor of God, and that with this everything will turn out well. I beseech your Majesty that,

confident of this, you will continue sending the said reenforcement, and will hasten its coming by way of Nueva España to Panama—sending infantry and money, the things which cannot be supplied here. [*In the margin*: “This is well; and let thanks be given him for the excellent courage which he shows. As for the information that he gives, he has learned the reason for the fleet not leaving, and the accident which happened to it; accordingly, let him exercise all care to take what precautionary measures are there necessary, as he is expected to do. As for the Japanese and other nations that are there, let him decree what shall seem most expedient to him for the service of God and his Majesty, and the good of the commonwealth, as well as its guard and preservation.”]

As we have to carry on the war in this way, so that the expense and labor may bring the best results, I beg your Majesty that while it shall last you may be pleased to discontinue the Audiencia here, as it is this that most hinders and opposes the administration and the government, as will appear by several depositions which accompany this. This is the enemy which most afflicts this commonwealth, and most causes dissensions, parties, factions, and hatreds between the citizens—each auditor persecuting those citizens who are not wholly of his own faction, especially those who extend aid and good-will toward the governor, against whom, as it seems, they show themselves always in league. They always make declarations of grievances [against him], because they are not each one given, as used to be and is the custom here, whatever they may ask for their sons, relatives, and servants; and they habitually discredit the governor by launching through secret channels false and malicious reports, and afterward securing witnesses of their publicity. They even, as I have written to your Majesty, manage to have religious and preachers publish these reports—to which end, and for his own security, each one of the auditors has formed an alliance with the religious order which receives him best. As I have given your Majesty an account of this matter and of the actions of the said auditors—which in God and my conscience I know to be true, and which will be evident by the depositions and papers which I have sent and am today sending with a letter and relation giving particulars regarding this matter—I shall not go more into detail thereon in this letter; I refer you for its substantiation to the said documents, and to the fact that I consider this government much more difficult, with the auditors of this Audiencia, than it is or would be even if

there were more war, for that war which they cause within its boundaries appears beyond remedy, on account of their abilities and rank. If your Majesty be not pleased to withdraw them from here I beg you, as I owe it to your royal service, that you will take measures so that in no way and at no time shall they be able to succeed to the government of this land; for I hold it beyond a doubt that they will bring it to ruin, and destroy it in a very short time, even though there came to it no more enemies than that of their own tendencies. If I wrote to your Majesty, in the first days after my arrival here, that the auditors were not necessary except for the Audiencia sessions, I beg now that more be added. It appeared to me that for the citizens and for the affairs of these islands, those who were here were sufficient; at present I am of the opinion that if the presence of this tribunal must be continued, more members are necessary, in order to avoid the difficulty which has been found to result from the alliance of Doctors Don Alvaro de Mesa, and Don Antonio Rodriguez, for neither more nor less justice can be secured than they choose, and they are even disturbing the government and good order which ought to prevail. Even if I should not attain and enjoy the benefit of this improvement, I beseech your Majesty that, if more auditors are to be sent, they may be persons of tried experience in Audiencia duties—to whom it would be well to give senior rank therein, for those who are in it now are totally ignorant of its procedure, never having had any experience in so responsible positions, so that they could know how to act. If they had only been able to learn from the licentiate Alcaraz, who was experienced and very prudent! but they were estranged from him, or rather they estranged themselves with their singular behavior—so that, a long time before he died, he took an oath not to return to the Audiencia, and kept it. And I myself, if I could, would do the same, for the reasons I have given and for many others, which make me desire to merit that your Majesty would be pleased to use me in some other way, away from this country. To such a point has it gone, that if this country were not involved in the perils of war as it has been, and as they are still threatening it, I should beseech your Majesty to place it in charge of some other person, who would be more interested in documents. But may God not choose that I should be relieved from the service of your Majesty, in which from the age of fifteen years I have been engaged; and I offer this so heartily that if your Majesty were pleased to send another governor who should labor somewhat, and I might aid and assist him some little time, I would do so with the greatest

good-will. It would be no little pleasure to me to be employed in naval and military affairs, and other things in which, with my counsel and my personal aid, I might be able to help; and to know that the matter of auditors and their demands, their rivalries, and their faultfinding, should concern another, and that he would have to oppose and resist those things, which would be not a little. Nor would there be overmuch time to satisfy, quiet, and render content the many religious—which is another labor and servitude, with which there is no way to deal; for it is without remedy, since each one wishes to be the sole distributor of goods and favors, the moderator and judge of punishments, and the governor of the governor, or else his persecutor. [*In the margin*: “Not to be read in the Junta. Join with it the letters which the auditors write against Don Alonzo Faxardo.”]

In so far as concerns the Indians, no more help can be drawn from them for the service of your Majesty, on account of what the fathers demand. Nor can they be exempted from labors and penalties if the latter need their services, or wish to punish them; and may God will that this bring not loss some day. For one of the ways with which the enemy best succeeds in winning over the natives is that, besides exempting them from tributes and personal services, they will not have to support religious instruction or ministers. Although there are many good Christians, not all are so forward in this matter. In the same manner in which I have already stated this, I can declare, and assure your Majesty, that there are in all these religious orders men of most holy and exemplary life, who have gathered a great harvest of souls, [*In the margin*: “If there are several papers on this matter, let them be joined together and brought in.”]

In the prosecution of the work of pacifying, reducing, and subduing the Indians who are called Ygolotes, and gaining thorough knowledge of the mines of gold that are in those countries, the riches and profit that might be obtained from there could not be secured this year, after the death of Captain Garcia de Aldana, who understood these matters and had them in charge. This is due both to the loss of his personal supervision, and to the lack of troops at this time, when the enemy’s fleet were so near; but, if it be possible, nothing shall be lost. [*In the margin*: “He was written to concerning this last year, as far as the matter was examined; at present let him again be charged to continue all the care which he has been taking in

the working of these mines, and, since he sees the importance which lies in this, let him do all in his power to find persons in every way satisfactory to go there. Let him inform us every year of what he may be doing; for he knows in what great straits the royal estate is, and how much is being spent in those regions, without there being any results from it, while so much profit lies in those mines, as we have been informed, and as has been written to him. And let him again be charged to take the care which is expected of him that this may have the result; let it be known what he has done in cultivating and improving a matter of so much importance.”]

On account of word that I had of the distress in which the city of Macan was, with the news that had been received there that the Dutch and English were about to sack the place, and as they sent from there to ask me to help them with six large pieces of artillery, I sent it, and the aid reached them. The people of that city have shown themselves grateful for this, and send in return the value of the said pieces, invested in useful and necessary articles for the service of your Majesty, which have already been received. Immediately upon sending the guns I had six other larger ones cast, for from twenty-five to thirty-pound balls, and incomparably better. For we are continually becoming more skillful in foundry-work and in working the metals; so that, of almost forty pieces which have been cast in my time, with the assistance and care of Don Hieronimo de Silva, commander of the artillery, only one has been a failure. [*In the margin*: “Let him be thanked for what he mentions here, and let him continue to act thus when occasion may arise. As for what he says of the artillery, it has seemed very satisfactory; and let him continue to cast pieces as he may have need of them, as he says he is doing.”]

The reenforcements which this year went to Terrenate arrived there safely, thanks be to God; and a small ship which routed the enemy with two or three large ships of war, which he keeps there at the entrance to those forts, came back thence with Captain Antonio Gomez, who had the responsibility of conveying the succor, and collected and made it ready very well with one galley. [*In the margin*: “This is well, and let him always try to send to these places as much as he can, both of troops and other things which are ordinarily sent; for he knows how important a thing it is to keep the forts there in proper condition.”]

With this was sent the ordinary quantity of rice and provisions, and even considerably more; and likewise arms, munitions, clothes, cloth, and money, and more than a hundred and twenty Spanish soldiers, who are to remain there. This year I shall try to send more and better relief than I was able to this time—and earlier than ordinary, for then it will run less danger from the enemy.

The master-of-camp, Don Luis de Bracamonte, writes me from those parts that he has news of many vessels of the enemy, and that he has put those places into the best state of defense that he could—although there was not much that he could do, because they were in good condition before, and never so well supplied with troops, money, and other necessary things as they have been at this time. [*In the margin*: “Examined.”]

He told me of nothing else of any importance except that he gave the present or gratuity which is usually given in your Majesty’s name to the king of Tidore and his son, and that they are quite peaceful and well disposed. [*In the margin*: “Examined.”]

He also tells me that he has negotiated and agreed with the Dutch for the ransom of Martin de Sosa de San Pago, governor and commandant of Fernanbuco, and Doña Angela Benegas, his wife, and their children; of Captain Sequera y Miranda, and a father of the Augustinian order; and of other prisoners, soldiers, and sailors, in exchange for some of theirs, whom we had in our power. [*In the margin*: “Examined.”]

The purchase of cloves which was ordered was made in those islands—which, according to the hopes that have been held out to me, must have amounted to even more than two hundred and fifty baras of six hundred and forty libras each. I am told that it could not be secured in so great a quantity as I wished to send your Majesty, on account of a crop failure, and small harvest; and the little which was bought was used for the needs of those forts, and to have means to satisfy and confer favors on the Portuguese—who, with their galliots, aid our people with rice and other things. [*In the margin*: “What he says here is well; and as he has already been told at various times how important it is that this [*i.e.*, the cloves] should be brought here, let him again be charged to continue the endeavors that he has exercised, in such manner that he may bring this about, since it is so

important a matter; and let him charge the governor of Terrenate to maintain this [trade], so that it will not there be applied as he says it is. Let him use all possible care in this, and advise us of what he does.”]

I shall take care that the accounts of Governor Lucas de Vergara Gaviria shall be ready; and no more has been possible on account of the many things which I wrote in regard to this matter, as will appear to your Majesty by the copy which is brought by Captain Don Jacinto de Quesada Figueroa. [*In the margin*: “This is well; let him advise us of what he is doing, and tell him that those papers have not arrived.”]

Of the residencias which are entrusted by your Majesty’s orders to the auditor, Don Alvaro de Mesa, he has just finished despatching that of the fiscal, Don Juan de Alvarado Bracamonte. Unreasonable demands have been made upon the latter, and he has suffered more than I can tell—for as it were, behind enmities and oppositions Don Alvaro has taken him under his jurisdiction, and has given him very good cause for merits. [*In the margin*: “It is well.”]

As for the residencia of Governor Don Juan de Silva, my predecessor, I have not wished [Don Alvaro] to undertake or begin it, because that business would prevent him from going out to inspect this country; and, as this is very necessary, I had assigned that duty to him, in order that he might accomplish it. For this reason, and for others arising from his fearful and obstinate temper, his behavior became so furious that one session day, the last before Palm Sunday, he drove me to such an extremity that, losing somewhat my self-control and moderation, we might both have ruined ourselves. But God held me in His hand, and I am satisfied, in so far as that matter concerned me, with the remonstrance and sufficient correction which was necessary for his presumption, leaving it for a later time to write of it, and begin a process in the matter, conjointly with the alcaldes-in-ordinary, as your Majesty commands. This is being done, although in his absence and with his opposition; for he broke from his imprisonment in the buildings of the cabildo of the city, in which he resided, and retired to the convent of St. Dominic, where he has been joined by a certain Pedro de Lussarra and another named Pedro Alvarez, who was in that of St. Francis—who were also absent, as I have written to your Majesty in other letters. All three are

there sowing discord, stirring up feeling, and trying to make people envious of me, and write down their envious complaints; and for this end they employ means which ought not even to be written. They also avail themselves of the religious of St. Dominic, and likewise in order to make and forward such papers and despatches from the shelter and covert of the tribunal of the Holy Office, the commissary of which here belongs to this religious order. It is not hard to accomplish it in this way because they have always done so, and lately with Don Joan de Silva, my predecessor—against whom, among other despatches, they made one with full and authenticated documents, which a friar of their order, named Fray Francisco de Sant Joseph—who was carrying the papers, and whom they considered a holy man—being at the point of death, and having scruples of conscience, ordered to be thrown into the sea. As I am making, in another letter, a longer report to your Majesty in the matter above mentioned, referring to the auditor Don Alvaro, I shall add nothing more in this, except to say that his case must be dropped, and the Audiencia will be obliged to do so, through its need of judges. The auditor Don Antonio Rodriguez has not been present at it for a long time, although I have warned and commanded him to do so. He gives as his excuse that he is in ill health; but it is certain that that does not fail him for being present almost regularly for the documents and councils made by the said doctor Don Alvaro, and with the same intention and wish, influenced by their alliance—which is known certainly by an investigation which I have made for your Majesty's information, and send with this, concerning his trading and trafficking in merchandise, with so much greediness and meanness of spirit that that and other things which are told about him, and are said to be well authenticated, would appear to besmirch the honor that the robe and insignia of his office carry with them, which makes him unworthy of it. But, as you wish me to tell what is true, I promise myself honors and favors from your Majesty, and punishment to him who dares to write or to say what is not true. This does not give me so much trouble as the preparation and disposal of military affairs, and other obligations of my office, which I could not fulfil if I had to go about conjecturing what ill-affected persons do and write against me, as in this case; and in verifying the facts time would be lost. I do not know whether he will leave, even if nothing else should be done, [*In the margin:* "Have the letters and documents in regard to this matter joined together."]

As there is a lack of money in the royal treasury, and great need thereof for the maintenance of all the paid sailors and troops, measures to supply this need were decided upon in the session of the Audiencia, for this and other objects for the service of your Majesty—to the effect that thirty thousand pesos could be drawn from the treasury of estates of deceased persons, lent for this purpose. Although the orders and documents proper and sufficient for this were despatched, the auditor Don Alvaro, judge for the said estates, would not transact the business which pertained to his office, and what he is under obligation to do for this purpose. Accordingly it was necessary that the lock (of which he held the key) be broken open. Of the acts and measures taken in this case a copy is sent in this despatch. It is understood and likewise said that the opposition shown by the said doctor Don Alvaro in the case referred to, was because he was indebted for some deficiency, to be placed in the said funds, of what should have been therein, or had been taken from it—a thing which I do not assert, and which indeed I do not believe (although appearances indicate it), until I am more certainly informed. [*In the margin*: “See whether there are documents in regard to this, and have them brought.”]

The documents that are drawn up commanding that, for the present, the license fees of Sangleys who are baptized without cutting their hair should be paid, I send with this, as I offered to do in the last letter to your Majesty, that you may be pleased to command that what is the most just action in this matter shall be decided upon. I likewise send a sworn statement of the money which various people have imported, and that all of it has been carefully placed in the royal treasury, [*In the margin*: “Have these papers joined and brought.”]

On account of my continual occupations at various times, and other delays due to the obstacles made by the auditors to whom this duty belongs, whom I appointed for the council on accounts, some time has passed since I have been able to audit the accounts. Together with the work done thereon by the accountant and inspector of them, they were despatched in the last session of the council up to the accounts for the year past, nineteen. They are sent sealed with this despatch to Nueva España. [*In the margin*: “It is well; and let him continue this diligence, always sending the accounts to Mexico, as usual.”]

The office of clerk of the court is about to be sold, having been placed at fifteen hundred pesos. He who served in it during the last eleven years, since the death of the proprietary incumbent, had been treasurer and chief official of the said office since the time the Audiencia was founded, and was the most competent and best fitted person for it who is known in these islands, as well as a settler of thirty years' standing here. After months of bidding, during which there was no one who would pay the price set on it, a man obtained it who was incapable, and lacking in talent and knowledge of the law; wherefore he has been indicted and accused, as will be seen by the documents of the case, which I shall try to send with this. At one stroke the price was raised to eight thousand pesos, with the aid and encouragement of the auditors, wherein each one of them personally aided him, in order to hold the new clerk on his side, and to drive out from the Audiencia a man of integrity and faithfulness. Although the trouble which will result to them from transacting their business with such a man as is he whom they are trying to place there will be enough punishment for such guilt, yet looking more to the service of your Majesty and the prompt despatch of the administration of his royal justice, I did not interfere in the matter; but rather I think that, if there is no other more competent person, it should be given by purchase to him who was serving in it, even though it were not at so high a price, because his competency and knowledge of the law for the service of your Majesty will be very much greater. With this object in view, he has been continually paid his salary from the judicial expenses. [*In the margin*: "Let this clause be taken to the fiscal. This has been done."]

The income which your Majesty orders me to give to Don Miguel de Legaspi, grandson of the former Miguel Lopez de Legaspi, I have now given him, assigning him an encomienda with what appeared to be a sufficient number of Indians. [*In the margin*: "It is well."]

For some time past I have withheld the appointment to several encomiendas which have been vacated, not only for the aid which resulted from their tributes to the expenses of the royal treasury, but particularly because their number was not sufficient to satisfy and render content so many claimants as there are here—some of them deserving, and others with a backing of auditors, ecclesiastics, and religious. These latter are the ones whose demands are most pressing, and who make the most outcry with their

claims and complaints—going so far as to murmur and consider it unjust that such rewards are given to those who have not been here so long—although the services of the latter were rendered in Terrenate, under such hardships and during war—desiring that their longer residence in this city should be preferred to the services of the others. [*In the margin*: “Let him deal out justice as seems most fitting to him.”]

The bishop of Camarines, Don Fray Diego de Guevara, died in his bishopric. He had ardently desired, as he explained and told me many times, to leave it and go to España to beseech your Majesty to approve his departure from this country—for it appeared to him that no bishop was necessary in that region [of Camarines], nor so many in so small a country as are these islands—if it were not that the disagreements and difficulties which he had with the friars of that province obliged him to remain. There was lost in his person one of the most zealous for the service of your Majesty that were here; and one who labored for it with most affection, good sense, and integrity, without aiming at private ends or his own aggrandizement. [*In the margin*: “There is already a person appointed in his place.”]

The bishop of Cebu, Don Fray Pedro de Arce, is likewise little or not at all desirous of greater honors. On the contrary, according to his own words, he desires the quiet of a cell, with scant alms from your Majesty, for the repose of his old age; and we all believe this, for we regard him, as he is generally reputed, as a holy man, as humble as the latest novice of his order. [*In the margin*: “It is well.”]

The archbishop of this city, Don Fray Miguel Garcia Serrano, showing his zeal for the service of your Majesty and for procuring the assistance and welfare of these islands, planned and offered himself to go to that court [of España], laying aside his own repose for the hardships of so long a voyage. In this matter, I think that the officials of his church did not divert him from the exercise of his office—this being my opinion, and that of many others—in order to leave themselves freed from so much domination and authority as this office entails, and with more free will, as they were wont to be before [he came]; and for this reason I will not say that they were making illegal use of that office—although they have discussed my affairs in an

unfriendly way, at the instance of someone who induced them to do so; but, on the other hand, they have acted with great virtue and as very good ecclesiastics. When I had consulted the Audiencia, in their session, about the purpose of this voyage, it appeared that it was not quite necessary, and that your Majesty therefore might not approve of it; accordingly, this opinion was stated to the archbishop, with many thanks for his zeal and his kind offer. According to what I have heard, he was hurt by it; so it appears that he would have liked better that his desires should be realized. [*In the margin*: “Examined.”]

I wrote to your Majesty concerning the auditor, Hieronimo de Legaspi, immediately upon arriving here and making his acquaintance, what I heard and saw of his proceedings; I will therefore dispense with repeating that, since I am fulfilling my obligation by what I have already written concerning him to your Majesty, and what I am doing here, on my own part, and shall do, to curb him in his way of life and his lawless acts. And I do not repeat what might be added, as it is almost all of the same sort as those of which I have written—being the effects of a depraved character, as is evident, for his will is governed by unfitting motives. He has, moreover, a son who is accustomed to argue with him, increasing his covetous disposition, although there is no need for that. [*In the margin*: “Let the papers in regard to this matter be examined.”]

[In accordance with] what your Majesty has commanded that the archbishop and I should do, calling together the provincials of the orders resident in these islands, notice has been given them concerning the things which your Majesty mentions concerning their methods of procedure, and the incidental exactions and excessive fees which some of them levy upon the Indians—for masses, burials, and suffrages;¹ for the building of vessels, and of churches and their houses; and for repartimientos and new impositions with which they were loading down and harassing the natives; and charging them with the reformation of this. It did not seem necessary to the archbishop, but for my part I shall nevertheless carry it out, informing each one of the provincials separately, and trying to further the royal will of your Majesty, without allowing scandal to result by making this public, and difficulties from such things becoming known. I would already have done so if I were not waiting for an opportune occasion when I should be free

from the occupations that I have had—encounters with enemies, the equipment of vessels, procuring supplies, and the many other things for the service of your Majesty. These can be attended to only with great difficulty, lacking the favor of the religious orders, [which much be considered] in order not to annoy them; for most of them are very easily irritated, especially those of the Order of St. Dominic. For, even when they have no cause for displeasure, there is no one who can bring them to reason, since it appears that they regard it as their vocation to be opposed to the government and to the governors, as they have done since their establishment in these islands, without a single exception—unless only it be Don Luis Perez Dasmariñas, whom, with the asperity on which they pride themselves, and their tyrannical ways they subjected in such manner that they ruled him. In order that those who succeed me may continue attending to the service of your Majesty without the difficulties and quarrels which we, the former governors and I, have experienced, it will be expedient that your Majesty order them not to interfere so much in the government, and that they must restrain their audacious and insolent mode [of speech]. For this is so uncurbed and terrible that any honorable man would fear it on account of what the friars cast at him, to the prejudice of anyone who acts contrary to their wishes; and this they do not only through the pulpits, but by various other means, as I have said they did with the past governors—and particularly with Don Juan de Silva, my predecessor—and which I also have sufficiently experienced and suffered. [*In the margin*: “Let him exercise care to do what is ordered in this matter, and have it done at the first opportunity.” *In another hand*: “Write a letter to the provincial of St. Dominic, telling him that the insolence which his friars display is known, and what Don Alonso says here, and accordingly the provincial must convene and reprimand them, obliging them to look after the affairs of their order alone, and the conversion of souls, as is their duty (which is the principal reason why they went there); and let them not mix in government affairs, or any others not concerning their order; and have him advise us of what he shall do.” *In another hand*: “Write to Don Alonso that such a letter has been sent to the provincial of St. Dominic, that he may be aware of it.”]

None of these things of which I have informed your Majesty and have just written about are meant to comprehend, nor can they concern, the fathers of the Society of Jesus; for they are judicious, prudent, and moderate men,

and, without in the least failing in their obligation to the service of your Majesty, they attend to those of their vocation, and to the protection of their Indians, so that each of them is suitably occupied. To spare what I might write concerning their well-ordered procedure, I will say that these fathers who are here are of the same [character] as those who are under the inspection of your Majesty and that of the supreme pontiff. They are religious who reap a great harvest among souls in this newly-christianized land. It would be expedient for your Majesty to order their general to send [more of] his men here, increasing the number of them; for they are greatly needed for the mission villages that these fathers have in their charge, and the work which they accomplish therein, and the other duties of their office. Nor is there anyone of that order who talks of going back to those kingdoms without the most urgent reason making it necessary. [*In the margin:* "Examined."]

I have understood that several auditors of this Audiencia, meeting outside of the sessions and by themselves, have written to your Majesty, and have caused various persons to write by different methods and routes, things against me, [accusing me of acts] unworthy of my office, and even incredible of my character. Perhaps [they do this] on account of what I have written to your Majesty concerning their actions, and to satisfy their unjust resentment, uniting [against me] for this reason and to justify themselves. As it would not be just that, relying upon the great distance and the long time which is necessary to clear up the truth, and on the changes and innovations which in the course of time usually occur, any one should dare to write letters not true of persons like myself, and especially to your Majesty, I beseech you humbly to be pleased to entrust my residencia and those of the said auditors to a person who would take it from all of us, with authority to prove the facts and inflict such punishment as shall be necessary. Copies of what has been written against me, and of what I have written, should be produced, so that whoever shall not prove his statements may be punished as the crime deserves, for informing your Majesty maliciously against other people's reputation. On account of the importance of this, whoever is to take the residencias should be a person not belonging to this country, and who will not have to remain here, living with these auditors, or the auditors with him. Whether he shall find me with much or with little property, I pledge whatever I have; whatever may be lacking for

it will oblige me to pay the cost of an inspection, and the condemnation of the guilty. But I have no more than what I inherit, tied up with so many debts from this voyage that I have not been able to pay them, nor even to acquit myself of the two-thirds of my [first year's] salary which I owe to your Majesty, as I was forced to make use of it for my living. Although all will not be pleased at the inspection, I assure you that, if it could be general for all classes, there would be found plenty of things to be regulated, and much more in the man who thinks that he is the one most secure therefrom. With this I will end this letter, leaving it in this state until it is time to seal it, in case anything should occur to be added. [*In the margin*: "Have this clause taken to the fiscal." "It has been done."]

When I had written this, and the despatch of these vessels was so far along that they would, with the help of God, pursue their way when moon and weather should favor the voyage, His Divine Majesty (to whom be thanks!) was pleased to rejoice and encourage this land by bringing safely to a port of this country, near the point of Balinao, in this neighborhood, the capitana "San Andres" which was expected from Nueva España. Although thus far we do not know how much money comes in her on your Majesty's account for the maintenance of affairs here, with it in this country, however little it may be, things will go much better than without it, and with the anxiety over its delay. [*In the margin*: "It is well, and we thank our Lord for this news, and hope in His Divine Majesty that we shall have other and better news from those islands."]

The reenforcement of soldiers is so scant that, even if all went to Terrenate, there would not be many; for the enlistments of those who came in two companies do not amount to a hundred and ten, besides seventy convicts [*forcados*] who come for service, and I know not how many galley-slaves. The number of those who die here ordinarily is very great, as I have already explained, whereby the lack of troops—which is what we most suffer from here, and can least be supplied—becomes every day greater; and in the same degree my labor and anxiety increase, adding to this and my obligations the fulfilment of so many duties as this government entails, with so little means to carry them out, and with so much as must be done to carry on war with so many enemies as there are in these regions. With this, and the knowledge of the misfortune and loss of the fleet which was coming to

help us, we have already ceased to consider what we may have to bear. But nevertheless, with the help of God, I hope that the enemy, when they come here as they have hitherto done, may lose more than they gain. In the meantime we will exercise skill, care, and vigilance in this matter, until the reinforcements which I am expecting are added to our forces here, to punish the enemy, and better results are obtained than in the past. I will not repeat again the many things which are necessary, as I have already done so sufficiently; nor again state the better facilities for sending aid regularly by way of Panama, which is the most important thing. This must have been already examined and considered, if the letters in which I discussed it at length have not been lost. I beseech your Majesty to be pleased to have executed immediately what is most expedient for the royal service in this matter. [*In the margin*: “Write to the viceroy of Nueva España, sending a copy of this clause, so that he may see how few troops are being sent to the governor; accordingly, let him be charged to reinforce him with all the soldiers that he can, since he can see how important it is that that country be fortified and have troops; and entrust it to his care and zeal that this year there shall be sent sufficient help, as has been written to him, and let him continue this every year.”]

The letters of your Majesty have not arrived, but we are waiting for them and hope that in time they will come, and that these ships will not lose the favorable weather necessary for their voyage, on account of the great importance of securing it. If they should come with the promptness with which I charged the person whom I sent for them, I shall answer them in the most important matters. If not, I shall do so as soon as possible, as befits the importance of what is contained in them, and the service of your Majesty. [*In the margin*: “Examined.”]

I have ordered in the session, several times, that careful abstracts should be made of the enactments made therein of which it is desirable that an account should be given your Majesty. Thus far it has not been possible to carry this out, in which matter I did not choose, merely in order to avoid trouble with them, to employ any repressive measure, which might increase their ill-humor; and likewise because I do not know that anything more has happened than what I write to your Majesty. The reason for the auditors neglecting this matter is well known to be that the definite account which

we must make to your Majesty from this Audiencia may not clash with that which the auditors who met together separately have made to your Majesty and your ministers. This leads me, every time when I speak of it, to repeat my supplication to your Majesty, as I now humbly do, that this may not go on without the inquiry of residencia which I have requested, and the punishment due each one. May God protect the Catholic person of your Majesty in accordance with the needs of Christendom. Manila, July 21, 1621.

DON ALONSO FAJARDO DE TENCA

[*In the margin*: “Examined.”]

[*Endorsed*: “Examined and decreed within on the margin, that which concerns both the Council and the Junta. On September 22, 622.”]

¹ i.e., for prayers or works for the benefit of the souls in purgatory.

Letter from Archbishop Miguel Garcia Serrano to the King

Condition of the archbishopric of Manila in regard to the affairs of ecclesiastical and secular government.

Sire:

Although I am writing to your Majesty at length informing you of the condition of these islands regarding the enemies who come to infest them, I cannot refrain from writing this letter apart, in which I inform your Majesty of matters that, in my opinion, your Majesty needs and ought to know. For, although I have written concerning many of them these three years past, I must—inasmuch as I have had no answer from your Majesty, not even of their receipt in the Council—repeat what I have written, again and again, until I am certain that my letters have reached that royal Council. Knowing

that, my mind will be at rest, and I shall be content with what your Majesty shall be pleased to order to be done in all things.

From the time of the establishment of the faith in these islands, no ecclesiastical council¹ has been held in them; [but this is] a matter that is urgently recommended by the holy general councils, for the correction of abuses and the reform of morals. It is most necessary in this archbishopric, in order to establish the administration of the sacraments with uniformity of ceremonies, the celebration of holy days, and for unusual and peculiar cases that occur in this new world. Therefore, I petition your Majesty to be pleased to send me permission so that I, with my three suffragans, may hold a council as soon as they reach these islands. [*Marginal note*: “That a letter has already been sent to him regarding this matter; and he is to follow its directions.”]

The devotion, sire, to the most holy sacrament had greatly fallen into disuse in this city, just as if we who are its residents had not come from the Christian country of España. Consequently, as soon as I entered upon the government of this church, I endeavored to promote this observance, and exerted all my effort and strength—so that, by the goodness of God, this devotion is being introduced in good earnest, being aided by the indulgences that our most holy father [*i.e.*, probably Pope Paul V] conceded at the instance of your Majesty; and there are few persons who do not have those indulgences in their houses, through an edition that I caused to be printed in order that all might receive the benefit of them. [*Marginal note*: “That it is well, and that thanks are given him for his care in this matter; and that he continue thus, since it is a matter that is so important.”]

The principal feast [*i.e.*, Corpus Christi] of this revered and admirable sacrament cannot be held at its season, as the universal Church has ordained, because then the rainy or winter season begins in these regions. Consequently, but seldom has the weather given opportunity to hold the procession in the streets, nor can the streets be draped or adorned. It would be a very great consolation, if your Majesty would be pleased to obtain a brief from his Holiness, in which he concedes us authority in these islands to anticipate the feast of the most holy sacrament, [celebrating it] on the Thursday after the octave of Easter; or otherwise, that this feast may come

later—as his Holiness conceded for all of Yndia, in order to hold it at the most convenient season, since its own time came during the rainy season; in both regions the same reasons and obstacles occur so that the feast cannot be celebrated with due and proper observance. I am enclosing to your Majesty a copy of the brief cited. [*Marginal note*: “Have a letter sent to the ambassador at Roma, giving him an account of this section, and sending him a copy of the brief here cited, in order that he may petition it from his Holiness; for it is a matter that should be solemnized with so great propriety. Send a letter to the archbishop, telling him that a request to this effect has already been made, and that he will be advised of the answer.”]

The poverty of this cathedral is so great that it has had no revenue with which to furnish not only a reredos, or the necessary ornaments as regards the colors of the seasons, but also a veil to cover the altar during Lent. On Palm Sunday the two prebendaries who accompanied me as assistants, when I performed the pontifical office on that day, wore cloaks of different color from what they should have worn, as we did not have the right ones in the church. For as the church has not a single real of income, nor has had hitherto any other aid than the alms that the inhabitants have given it, it suffers the need of which I speak. The royal Audiencia has investigated this matter, on petition of the cabildo, in order to refer it to that royal council. I humbly petition your Majesty to be pleased to consider that this city is a general place of concourse for all the nations of the world; that it seems a necessary obligation that—since it is impossible to celebrate the divine offices in the other churches of Manila with due propriety, because of their great poverty—at least these peoples may see that it will be done in the cathedral, the metropolitan of all the others; since we do not act as we ought toward so great a Lord, yet as we can, and with more propriety than in other regions. [*Marginal note*: “Have a copy of this section sent to the governor and Audiencia, and let them assist in a matter so necessary. They shall plan how this may be done with due propriety, and shall advise us of their action. Have a letter sent to the archbishop, enclosing a copy of what is written to them, so that he may understand it.”]

The cabildo of this holy church at present, through the goodness of God and your Majesty’s care in filling the prebends with such persons, consists of excellent persons. If the reason advanced to your Majesty, by means of

which a special brief was obtained from his Holiness for the senior bishop to govern this church—[which has been done] through three vacancies in the see—had any justification at that time, surely, Sire, that justification has now ceased, as the cabildo is now filled by entirely satisfactory men. Hence your Majesty can certainly be served by not having this government leave the cabildo in the two vacancies that will follow hereafter; for, in truth, during the few days while they governed in the last vacant see, before the arrival of the senior bishop from his bishopric, they so disposed affairs that the said bishop simply retained what they had decided, and did not change anything that he found established. [*Marginal note*: “Observe the custom.”]

Great annoyances result because the governor does not communicate with the archbishop as to the persons whom he presents for the dignidades and prebends of this church, who are appointed until your Majesty shall fill the places. For if it proves that the person is incapable or unworthy—either because of any secret reason known to the archbishop, or for any suit that he has pending or for any other reason—the remedy is more easy in its beginning, by first conferring together about the case. Your Majesty seems to have so ordered, as appears from the presentations made by Governors Don Pedro de Acuña and Don Juan de Silba, which read as follows: “Having communicated with the archbishop, and having observed the order and decree of his Majesty, I present So-and-so,” etc. There it appears that your Majesty has ordered in this matter that consultation be held thereon. It would be well to order this again; for the governor says that he has not seen such a decree, nor do I find it in the book of decrees. [*Marginal note*: “Have this decree found and brought. Let them observe the decrees regarding this. Let the governor report on what the archbishop asks.”]

Two appointments from your Majesty came last year to this metropolitan church of Manila. One was to the deanship, of Santiago de Castro, a sick man who has not left his house for more than three years. He is sick and old, and so deaf that he can hold no intercourse or communication with men. Consequently, he is expecting death daily, and he may therefore be numbered among the dead, as far as human intercourse is concerned. This alone could hinder the execution of his appointment, for in other things he has excellent qualifications for the dignity. Since his condition renders him unfit for service, and since the dean must necessarily take upon himself the

management and headship of the cabildo, much consideration should be given to this appointment—especially as another appointment (as archdean) came for Canon Thomas de Guimarano, an unlettered man, to whom some years ago they did not dare to grant permission to hear confessions on the galleys, where he was chaplain. Therefore, Archbishop Don Fray Miguel de Benavides wrote these words to your Majesty in the year 604, the copy of which is in my possession. “Don Pedro de Acuña gave a chaplaincy in the seminary of Santa Potenciana to one of his followers, who lives in his palace, one Thomas de Guimarano—a man of so little capacity that the said archdean and commissary of the Holy Office examined him at my order, in order that he might hear confessions in the galley, whose chaplain he was, and did not find him capable of doing it.” Such are the words of the said archbishop as to his ignorance. He has almost no capacity for management. If he were seen in this dignity people would greatly blame him who should have conferred it on him without having first notified your Majesty of his unfitness. This is the reason why I have kept the two appointments of the said Guimarano and Santiago de Castro sealed, as they came, and guarded with all secrecy, until your Majesty could be advised. Your royal will, I am sure, is that these appointments be not given to them, thereby entailing so much loss of prestige to the Church, and scandal to the city. On the other hand, there is no lack, the office of dean being filled by Licentiate Don Francisco Gomez de Arellano, a man of good conduct and of exemplary life, in approbation of whom letters have been written to your Majesty at various times. [*Marginal note*: “Provision has already been made herein.”]

Inasmuch as your Majesty’s appointment, and the favor that you were pleased to grant him in conferring on him the dignity of treasurer of this holy church, came for Licentiate Don Miguel Garcetas (of whose good qualities I have written during these last years); and inasmuch as, by his taking possession of that office, that of precentor fell vacant, which he was filling *ad interim*: the governor presented for it Don Juan Cevicos, a priest of good education, very great austerity and exemplary life, and zealous for the general welfare. In him are also found many other very excellent qualities; and he is a very suitable man for your Majesty to confer upon him the dignity that he holds, or what should afterward become vacant in this church, and even of anything of greater importance. He has not been graduated; for since the permission that is expected for the foundation of a

university (which is the intention of the college of the Society of Jesus) has not yet reached this city, he has not yet had the opportunity to receive a degree. I have employed him in the capacity of my provisor² and vicar-general where he is of great help, for he is a man of considerable business capacity. [*Marginal note*: “Seen.”]

About seven months ago the governor presented Juan de Miranda for a *ración* that was vacant. He is a good ecclesiastic and necessary for that ministry; for setting aside his virtue, example, and good life, he is an excellent singer, and has been reared from childhood in this church. Accordingly I gave him the office very willingly. I petition your Majesty to be pleased to confirm it. [*Marginal note*: “Seen.”]

It often happens that certain individuals, depending on their favor at court, try to obtain prebends and dignities from your Majesty which they do not merit. They are of such a sort that I am told of persons who even do not know Latin. They hope to be preferred to those who have spent all their lives in study. It would be of great importance for the prelate and cabildo of the district of the said ecclesiastics to inform your Majesty for these appointments, so that, having that information, the most advisable measures for the service of God and that of your Majesty may be taken. [*Marginal note*: “Seen.”]

During the month of last December, an ecclesiastic named Don Patricio Arcaya de Guevara, a native of Murcia, left this country for those regions [of Europe] via India. The governor was accompanied by him when he came here, and presented him for the treasurership of this holy church; and in fact he served therein *ad interim*, although the governor did not know then that he had been expelled from the Order of St. Augustine in the province of Andalucia, and that he was living in this country incontinently and with reproach, and with less discretion than was fitting. I inform your Majesty, for, according to his resolve, he was going to ask for a dignity in this or some other church of the Yndias, for which he is not fit. [*Marginal note*: “It is well. Attention will be given to this in the office, if the papers regarding this man are sent.”]

The wretchedness and misery suffered by my poor ecclesiastics in this my archbishopric is very great, because of their number having increased rapidly in these latter years, on account of the college and seminary of the Society of Jesus, and the care that has been taken therein to maintain its studies—teaching in the classes Latin, the arts, and theology; besides the students who are being reared in the college of Santo Thomas, founded about two years ago by the Order of St. Dominic. As I say, they suffer so great poverty that I am assured that some cannot leave their houses because they have no cassocks to wear—and that, too, in a country where cloth is generally so cheap. This is a matter that is breaking my heart. I have nothing with which to employ them, since the ministries are all managed by the religious. The poor ecclesiastics have only eight benefices of Indians to administer, besides two Spanish curacies—namely that of this city, which is administered by two parish priests [*curas*]; and that of Santiago, outside the walls—and one other which has in charge the Indians and slaves of Manila. Within the last few days two ecclesiastics, theologues, competed for a sacristy in the benefice of Nuestra Señora de Guia, which has a salary of only ninety pesos. One of them had taken four years of theology, and is an excellent student, and not so fitting for other things. They competed for it only in order to get a morsel of food, so they would not have to beg it from door to door. Will your Majesty be pleased to have provided what is most suitable for the service of God and your own. [*Marginal note*: “Since he has the case in hand, let him take what measures are advisable.”]

News reached this city in the month of January last of this year, of the death of the bishop of Nueva Cáceres, Fray Diego de Guevara, of the Order of St. Augustine; he died while visiting his bishopric. Inasmuch as that church has no cabildo, the task of its government devolved upon me, as does likewise that of Nueva Segovia. As the bishop of the latter church, Don Juan de Renteria, has not arrived, I petition your Majesty to be pleased to have notice taken that greater competency is required for these bishoprics that are so distant from Manila—in which counsel can [not] easily be taken on the troubles that confront the ministry at every step, and the bishop, like him who holds the office of magistrate, must alone determine these doubts of fuerza—than for the very large bishoprics of España. Will your Majesty please take the advisable measures. [*Marginal note*: “Seen and provided.”]

The facility of these natives in going to law about marriage is very great. In fact, they achieve their purpose by alleging obstacles arising from their own illicit intercourse, before the marriage, with the relatives of their wives. Often they maliciously conceal this obstacle and are silent until, the wives after experiencing with the lapse of time, during their married life, not so good treatment as they expected from their husbands, and the husbands having less pleasure in the marriage than they had promised themselves, they advance their obstacles, and petition for the annulment of the marriage. With the ease with which they find witnesses for any purpose, they succeed in carrying their desires into effect—with the liability, if what they have alleged and proved is false, of living throughout life in the sin that they have committed to the wrong of marriage; and if true, as they say, of having been unscrupulous in not having declared the obstacle. In order to avoid these troubles, it would be of great importance for your Majesty to be pleased to obtain from his Holiness power for the ministers in these islands to give absolution for all the secret obstacles of these neophytes when they come to be married, in order to contract the said marriage. In this way it will be managed with less offense and with more ease to the conscience than now. [*Marginal note*: “Have the ambassador at Roma notified to propose this matter to his Holiness; and if it be not unadvisable, to petition him to concede it. After doing this, advise and notify the archbishop that the matter has been sent to Roma, and that he will be notified of the result.”]

Your Majesty ordered by a decree, twice issued (the second dated at San Lorenzo, November, 603), that the bishops should inspect the religious who give instruction, in regard to their duty of the care of souls. It would be very advisable for so holy a decree to be executed now, without more delay; for although the orders contain many who attend most earnestly to the service of our Lord, there are certain persons who allow themselves to be too easily led by their inclinations, and who do not labor in their ministry with the devotion and fidelity requisite. Besides the bad example thus furnished to these natives, the latter are wronged, and without any remedy, because there is no superior to whom they can go for vindication—for the provincials, sometimes for private reasons, generally sustain such subordinates. That would cease with the visit of the bishops, and the provincials would find themselves obliged, or the bishops would oblige them, always to station in the missions ministers of learning, virtue, and exemplary life. That would

bring a cessation of such troubles. The friars then could not assert that they would leave the ministries, as they did when there were no secular clergy, since that is clearly impossible; for there are now so many seculars that they are sufficient to administer what the orders would abandon. [*Marginal note:* “Have the decree in regard to this sent to him, and have him observe the order, as declared in the said decree. Despatch decrees to the archbishop and his suffragans, in accordance with those already despatched to the archbishop of Mexico and his suffragan bishops.”]

The kingdom of Xapon is in such an upheaval, and the persecution against Christians so bloody, that it seems rash for religious to go there. However, those who go there from the orders, guided by the spirit of the Lord, go clad as merchants, and go about at Manila in the same way, some days before their passage, in order to have the Japanese get to know them and take them for men who are going to their country to trade. Any other method would be rash, as I say, if they went openly as religious. Further, as Fray Luis Sotelo, of the Order of St. Francis, tried to go with the name of bishop of Xapon, delegate of the pope, and commissary-general (a thing prohibited by your Majesty), and as the bulls for it have been detained by your royal Council; and as your Council has declared that its opinion is that, if there were an open door, there would be many things to consider as to whether Fray Luis Sotelo should go [to Xapon], because of the many reasons that constrain them to prevent his passage; therefore, it is expedient for your Majesty to order that quickly; and that they recall the said Sotelo and take him from these islands, so that he may not go to Xapon. [*Marginal note:* “Have what was ordered in this matter brought.”]

Having to speak of the orders in particular, I feel obliged to inform your Majesty of occurrences in this city between that of St. Dominic and the Society. It was on an occasion of the death of a man in this city by stabbing, who begged loudly for confession. It was not granted to him, because a father of St. Dominic said that absolution ought not to be given him, although the bystanders said that he had called for confession. A father of the Society stating that absolution ought to have been given him, there arose between the two orders a very serious and violent controversy; for the Dominican fathers printed certain conclusions, in which they declared that it was a rash idea, and in practice a grave and sacrilegious offense to

absolve one who, only by the report of bystanders had begged for confession, but was deprived of the power of speech. The fathers of the Society of Jesus drew up other printed conclusions, in which they declared that it was not a rash or sacrilegious idea but a very pious one to absolve such a penitent. They persuaded the people and the orders and so inflamed the controversy that I ordered them by a decree to put an end to both contentions. Both orders agreeing to dispute in my presence, I assigned judges from my cabildo, and from the orders of St. Augustine and St. Francis, and learned persons of the city, to be present at the disputation, and consider the arguments on each side. This was done, and the result was that, having assembled the other day, all the judges declared, *nemine discrepante* [i.e., “no one dissenting”], that the opinion of the Society was pious and reasonable, and could be followed. The reverend Dominican fathers greatly resented this decision, and tried to carry their point by persuading the people to accept their conclusions. I thought it a matter of scandal to condemn ministers, in an affair of the sacraments, by asserting that they were committing sacrilege. I issued a censure, and ordered that no one should agree to their conclusions, and that the Dominicans should not hold them. Upon this second decree they elected a judge-conservator who accepted the office, but did not continue in it; so the cause was suspended, and the parties intended to have recourse to Roma regarding the case. At this juncture the ritual of our very holy father Paul V, with a bull of his Holiness, dated Roma, June 17, 1614, came to my hands, in which they order absolution to such a penitent, who asks for confession after losing his power of speech, if he shall give signs, in person or through others, of his desire. Upon seeing the said ritual, I ordered it to be published, and it was done on the day of Sts. Peter and Paul, in our church of Manila, this year of 621. A judicial record was made of all of this matter, and authentic papers with the arguments of each party. That alone is being sent to your Majesty as a report, in order to inform you of everything, as is my duty. [*Marginal note: “Seen.”*]

The Order of St. Francis in these islands is discalced. There is generally a visitor from the commissaries, who is sent by the commissary-general of Nueva España, who must be of the same discalced. This year one came, who was not received by the provincial and his definitors because he did not come in the way required by the rules and privileges of this their

province. Although the Audiencia tried to admit the one from Nueva España, matters came to such a pass and so menacing a condition that by way of authority, and in order to avoid scandals, Don Alonso Faxardo, governor of these islands, determined to suspend the commission, after first having conferred with me. What I did was to assemble the orders and learned persons of my cabildo. I found: first, that the commissary was not discalced, although he must be so by virtue of a bull and express privilege, which he carries in order to visit this province, or to exercise an act of jurisdiction. The authorization borne by him was very extraordinary and had a great excess of the ordinary warrants. There was added a very forcible argument of administration, which is that twenty or more of the leading friars had been sworn witnesses in the present contention, while the commissary had given testimony contrary to theirs, so that no good administration was looked for, but only numerous scandals and dissensions. Then affairs almost reached the point where the province was in hostile array, one side against another. Accordingly, all those of the council, without any dissenting voice, resolved that it was inexpedient for the commissary to enter on the administration. That resolution was followed, and the provincial proceeded with his duties in peace. Therefore, those in Nueva España will be informed from here to send hereafter only persons of the discalced religious and of their profession, and they will be peaceably received. For if they are of the cloth [*paño*],³ the discalced religious fear that they are trying to introduce themselves into this province and into that of Xapon, and to drive the discalced from here; this has been attempted, contrary to what this city has requested your Majesty several times to order—namely, that no friars of the cloth come to these islands, but only discalced, with whom the province has always been established. [*Marginal note: “Seen.”*]

The great service which the Society of Jesus is performing for God and your Majesty in the conversion of souls is well known. But they cannot continue to prosecute what has hitherto been done in this province because of their lack of workers; for many have succumbed to the hardships of their ministry, while others are crippled and incapacitated from helping in the missions. Consequently there is need of a goodly shipment of these servants of God to be sent, who so edify and instruct by their good example and learning. For this purpose, the order is sending Father Francisco Gutierrez

as their procurator-general. I humbly petition your Majesty to be pleased to order that he be despatched here, so that this so urgent need may be supplied. [*Marginal note*: “Have us reminded of this at the time, if the Society should request it.”]

The other orders, those of St. Augustine, St. Dominic, and St. Francis, experience the same lack of religious. They have their procurators at that court. Will your Majesty be pleased to have them given a goodly number of religious, so that they may attend to their ministries. [*Marginal note*: “Have us reminded in due season.”]

The hospitals—of which I am informing your Majesty in a separate letter—need the efforts of the brethren of [St.] John of God, so that the sick may be treated as is fitting, and which is the chief object of those brethren. Hitherto the discalced Franciscan religious of this province have had charge of their spiritual matters. As that is not one of their vows, and they do not have charge of temporal matters, the sick have suffered greatly. Accordingly, should your Majesty be pleased to send some of those brethren from that country, and to order them to take charge of the administration of these hospitals, it would be a very great service to our Lord. [*Marginal note*: “Observe what is decreed regarding this matter.”]

The official investigations that are made in the royal Audiencia are made with so little secrecy that the parties interested know the witnesses and their depositions. The same occurs in the letters of recommendation that are obtained from the cabildos and from some orders—which the interested party takes to them, made out as they desire, and only asks for their signatures. These are obtained easily, whence follow the sinister reports that they give your Majesty, to the harm of the public welfare. [*Marginal note*: “It is well. Let us be advised of this on the occasions that arise.”]

Although this royal Audiencia by right should attend the principal feasts at the cathedral, they have not done so; nor have I seen them attend in a body since I took up the government of this church—now upwards of a year—except once only. That was on St. Andrew’s day, when a prayer was made for the coming of the ships from Mexico. I do not know whether the reason has been the want of harmony between the governor and the auditors, or because the governor’s wife took a seat beside her husband—a thing that

has never been practiced in this city in the time of the former governors. Will your Majesty decide what should be done in this matter, as the governor's wife must be placated in it; and whether the position to be occupied by her is to be before or behind that of the Audiencia. [*Marginal note*: "Have the Audiencia informed that they must not miss one of the prescribed days, and are to report on the other matters. Write to the archbishop that the Audiencia has already been notified to attend on the prescribed days."]

Your Majesty has already provided by your royal decrees that the ships should set sail for Nueva España from this port, under any circumstances, during the month of June, because of their peril of having to make some port in distress, or of being wrecked, if they sail later. It would be expedient to apply a more constraining remedy, in order that this be executed; for were your Majesty's decrees observed in these islands, as I have many times said, there would be no errors made in what pertains to the service of our Lord and that of your Majesty, the welfare of these islands, and the profit of their inhabitants. But, Sire, as they are not obeyed, and there is no execution of them, there is general error in what could with so great facility be done aright. [*Marginal note*: "Have a letter written to the governor, telling him that we have heard that those ships that sail to Nueva España sail very late, and that consequently they suffer in the tempests and hardships that are known; and that now and henceforth he shall see that they sail as was the custom before and as is ordered."]

When the city of Manila petitioned your Majesty to be pleased to have the governors of these Filipinas make the appointments to the offices of the ships which are despatched hence to Nueva España, from that of commander to the least office, it was to obviate one disadvantage, according to their opinion (and in truth not a slight one), by which the said offices were given by the viceroys to their relatives and retainers, thus depriving this country's inhabitants of them. That disadvantage not only has not been corrected by this expedient—since the governors, not heeding more than their own private interests, give the said offices to their own followers—but has even given rise to a greater disadvantage, respecting the return of the ships to these islands. For, since the viceroys do not appoint to the said offices as they did before, the result is usually a lack in the

reenforcements that are sent from there [*i.e.*, Nueva España]; and there is less care bestowed on the despatch of the said ships for the return than is fitting. Consequently, they arrive so late that already the season of the vendavals, the contrary winds of these islands, has set in; and therefore the ships have been compelled to put in at Xapon, as happened in the year 17, and last year. On that account they ran a risk of being captured by the Dutch; for since the viceroys are not interested, even in making those provisions, the ships sail later than they would be permitted if the persons who have charge of the ships were appointed by him, in whose good success would be also his share of reputation, or the contrary. Will your Majesty be pleased to order this to be noted, and take what measures may be most to your royal pleasure. [*Marginal note*: “Obey the ordinances.”]

One could not believe the injury that is done to the soldiers and sailors, and to all the wage-earners, by not paying the vouchers earned by their labor and sweat; and on the other hand, by buying these for much less than their face value. For, being rendered desperate, they sell vouchers valued at one thousand pesos for one hundred, and the lamentable thing is that, if they did not sell them, they would never be paid. Scarcely have they sold the vouchers when they are immediately paid, and the purchasers even take the poor wretches to the office of accounts, so that they may be present at the payment, and that it may appear justified, by their saying that they did it of their own accord, for which they give a receipt. As it is the price of blood, and they see that others take that price, it is a grief and sorrow that cries to heaven for redress, and petitions your Majesty to be pleased to have a very effective and rigorous correction applied. [*Marginal note*: “Have a letter written to the governor that this has been learned; and that he accordingly must correct it immediately, if there is need therefor, and advise us of what shall be done.”]

There are at present more than sixteen thousand Chinese in this city of Manila, who have received license to stay in the country. In addition about one-third as many generally remain without having a license, so that, on good computation, there are now more Chinese in the country than there were sixteen and a half years ago, when they revolted and made war on us—without reckoning a great number of Japanese, whose number I have been unable to ascertain, although I am told that it exceeds three thousand.

Accordingly, in a council of all the estates called by the governor about two months ago, in which he asked whether it would be advisable or not to go out to fight the enemy then in the mouths of this bay—who had seized them with nine very strongly armed ships, while the governor had four ships (two of them powerful galleons) and four galleys—the city forbade him to go out under any circumstances. Among other reasons it was said that if the governor went out, he would leave the city of Manila unprotected in his absence, and exposed to the will of so great a number of enemies, composed of Chinese and Japanese. That argument was not the one of least weight in the council in determining that our fleet should not sail against the enemy. I think that there has been neglect and laxity in the matter of not driving out the Japanese. But, in the case of the Chinese [it is] the greed for the eight pesos that each one pays for the license to remain in the country, and the excessive profits gained by the numerous agents of justice whom the governors have introduced, unnecessarily and in violation of what your Majesty has so piously ruled and ordained—namely, that only those remain who cannot be spared for the service of the country, and it is certain that we cannot live without them. If your Majesty's decrees were observed, all would be well managed, and we would live more comfortably and in less fear of them than we now have. I do not know, Sire, what expedient can be adopted in this. I know only that it is advisable to execute the orders of your Majesty's royal decrees, for that was the care and anxiety of the former archbishops and of the entire community, who always petitioned for this same thing. Hence I am surprised that your Majesty has not ordered that what restraint you are able to place should be imposed, so that your royal decrees be obeyed. I do not know for what reason (since all or nearly all of them concern the good government and advantage of these wretched inhabitants) they are directed either against the governors, the Audiencia, or their agents, tying their hands with their prohibitions. Since they are the executors of the decrees, it results that nothing is done. Even the city is very much interested in this matter of the Chinese remaining, in order to get their profits and rents in their *alcaicerías*. Hence I do not think that it would be worth while to petition for [limitation of] the number of the Chinese, unless your Majesty assign that number. Truly, with four or five thousand Chinese, the community would be well served and the country free from danger.

[Marginal note: “Have a letter sent to the governor, telling him of this, but not the writer; and that since he has charge of so important a matter, he

must see that the decrees and orders that have been issued regarding this be obeyed. He shall advise us of what shall be done, so that the Council may understand the matter.”]

There have been many complaints, in regard to the allotment of encomiendas, from the old and worthy soldiers who have spent their lives and blood in your Majesty’s service. It has already been enacted in this matter, by royal decrees, what must be done. The relief that I find is for your Majesty to be pleased to order strictly that the regulations made in regard to it be obeyed. [*Marginal note*: “Have the governor notified to obey what is decreed regarding this.”]

For the last two years it has been customary in these islands for private persons residing here who have money and protection to despatch their own small ships both to Macan and to Malaca, Sian, Camboja, and other parts of this archipelago. Since they have the authority, they send the best sailors that we have here in those ships. Thus it occurs that we can get no hands, nor even the best soldiers, when it is necessary to prepare them and fleets for the occasion of your Majesty’s service; for fleeing from the annoyances and ill treatment that they experience, many absent themselves on such occasions. Verily, there is not a leech that sucks out the blood from the body more than these little ships do this camp of men. It would be very expedient for your Majesty to order what measure is most fitting for your service; for if we weaken the body by our own hands, so that it will have but little strength in time of need, and if this land is exhausted of men, how can the enemy be resisted when they attack us? In truth, Sire, I understand that the neighboring kingdoms of Macan, Japon, Malaca, Sian, Camboja, and all the other lands, have so many Spaniards that a great troop for your Majesty’s service could be formed from them alone. [*Marginal note*: “Have sent to the governor a relation of this, and that he accordingly take upon himself the remedy for it, since it is so important a matter that the soldiers that he shall have do not leave there; and that he advise us of what shall be done.”]

Lastly, I petition your Majesty to be pleased to have an answer written to me regarding the matters of this letter that require a reply. For since some of them concern the common welfare of the ministry, others the special welfare of this church, and others that of this city, I shall necessarily be

forced to repeat them on all occasions until I am certain that they have come to the notice of that royal Council of your Majesty—whose very Catholic person may our Lord preserve for the welfare of your kingdoms with the increase of many others, as we your humble chaplains desire.
Manila, July 30, 1621.

FRAY MIGUEL GARCIA SERRANO,
archbishop of Manila.

[*Endorsed*: “Seen and decreed within. In the Council, September 30, 622.”]

[The bull mentioned in the first part of the above letter follows:]

Copy well and faithfully drawn of the bull in which his Holiness concedes that the feast of Corpus Christi in Eastern Yndia and the regions subject to the crown of Portugal, be anticipated or transferred to another and more suitable day, besides other favors and privileges.

Antonius, by the divine mercy cardinal priest of the holy *Quatuor Coronati*,⁴ to the illustrious the most serene king of Portugale and Algarbes, health in the Lord. According to the pledge of loyalty enjoined upon us by the apostolic see, we willingly charge ourselves with those matters whereby divine worship may everywhere be advanced, the devotion of the faithful of Christ increased, and fitting regard paid to the safety of their souls in the Lord.

In truth, the petition presented to us not long ago concerning your interests stated that, since in the regions of the Indias, Ethiopia, Arabia, and Persia (through favor of the divine clemency lately brought under our rule), by reason of the difference of the seasons in those countries, the day whereon the solemn feast of the sacrament of Corpus Christi is celebrated, falls, according to ordinance of the universal Church, in the winter time, wherefore it cannot be celebrated at that season with due ceremonies and solemnity—[the faithful] are desirous that the same feast be transferred to some other season outside of winter, that it may be kept more fittingly and with greater honor.

Moreover, since the said countries are very far away from your kingdom of Portugal, the cities and towns and provinces therein being also at great distances from one another, it is therefore difficult for any Catholic prelate either to pass thither from your said kingdom of Portugal, or, if resident there, to go from one region to another, and therein bless whatever things be needed for divine worship, as well as purify the churches themselves, with their burial-places, that may have been defiled through the shedding of human blood or seed; again, since the holy oils, which everywhere are to be consecrated each year, cannot because of the difficulty of the voyage thither be carried from your said kingdom of Portugal, wherefore you are unable to have them renewed according to church ordinance; again, as in cases of apostasy from the orthodox faith of persons who subsequently, through divine inspiration, are moved to return, as well as in regard to the many Turks and Mahometans, or followers of other misbeliefs whatsoever, who are desirous to embrace the same faith, there is no recourse possible to the apostolic see, or to others in your said kingdom of Portugal who are especially delegated therefor: hence do you humbly petition the same see mercifully to make due provision therein for yourselves and the peoples of the said countries under your care, to the effect that all and singular the rectors of churches in those countries may be granted full and free power to bless newly erected churches and burial-places, to purify them when defiled, as well as to use holy oils brought from Portugal, or consecrated by any prelate in those countries, even five years previous; that moreover the same rectors of churches in those countries also be empowered to reconcile apostates from the faith, absolve them, and restore them to their former state in all things, and through all.

Therefore, while commending in the Lord your praiseworthy desires in this regard, being inclined also to favor you as in duty bound, through the gracious authority of our lord the pope, whose charge we fill as penitentiary, as well as through his special and express command given us therein *viva voce*, we hereby do grant to all and singular the venerable fathers in Christ, by the grace of God bishops in those countries, as well as to you [and] your successors respectively now and for the time being, or their vicars-general in spirituals now and for the time being, the following powers, to wit:

That with the council of their respective clergy and people they be empowered to transfer the said feast of the most holy Body of Christ to another season of the year, outside of winter, when it may be celebrated with due solemnities and ceremonies. That whosoever shall take part in the celebration of the feast thus transferred may gain, all and singular, the indulgences and graces which they would otherwise gain were they present on the day set by the universal Church. That in their respective churches, all and singular, the rectors of churches and districts for the time, being may bless vestments, crosses, images, or other church ornaments whatsoever that are needed or proper in divine worship—not, however, chalices and patens. Moreover, that wherever there is not present a Catholic prelate who is a bishop, they may purify and bless the churches themselves, with their chapels and burial-places, should they be defiled through the shedding of human blood or seed, or any other things that have been blessed by any bishop, or, in the absence of a bishop, by any person constituted in church dignity, or by a rector of any parish church actually holding the care of souls, provided they duly employ the proper rites usually observed in such matters. Again, that they may use the holy oil brought from Portugal within the previous five years, and, if consecrated by any Catholic prelate in those countries, when it is three years old.

Besides, with regard to such persons as, having once received holy baptism with the true faith of Christ, have fallen away therefrom, but are now desirous to return, we grant full and free leave and power to absolve the same from the heresy that they subsequently have incurred, as often as in any manner they may have fallen therein, as well as from whatsoever other faults and spots wherewith by reason of human frailty they may be stained and marked; and to receive the same back to the bosom of holy mother Church, and to restore them to their former state in all things and through all, with the fulfilment, however, of salutary penance for their fault—provided, however, that these things are to be done by a bishop as often as one is present, in the places where there is a bishop.

[These things are granted] notwithstanding any apostolic, provincial or synodal decrees, or customs, or constitutions and ordinances of general or particular councils, or other things whatsoever, to the contrary.

Given at Rome at St. Peter's under the seal of office of the penitentiary, the XV Kalends of July in the third year of the pontificate of our lord Paul III.

I, Gabriel de Muxica Buitran, secretary of his Excellency, Don Fray Miguel Garcia Serrano, archbishop of the Filipinas and member of his Majesty's council, and notary-public of the ecclesiastical court of this archbishopric, attest and witness truly that this copy was drawn from another that appears to have been authorized by the bishop of Malaca, Don Goncalo de Silva, signed with his signature and sealed with a seal, which appears to be that of his arms. This is a certain and true copy, and has been corrected, revised, and collated with the said original copy from which it was drawn. For its validity, Don Juan de Cevicos, precentor in the holy metropolitan church of this city of Manila, and judge-provisor and vicar-general in it and its archbishopric for the said his Excellency, affixed his signature, interposing his judicial authority and decree. It is sealed with the smaller seal of the aforesaid. As witnesses at its correction and revision were Father Thomas Saravia, secular priest, and Luis Mendes de Leon, gospel priest, citizens and residents of this said city, on July last, one thousand six hundred and twenty-one.

DON JUAN CEVICOS

In witness of truth:

GABRIEL DE MUXICA BUITRAN

¹ Serrano apparently overlooks the diocesan council convened in 1600 by Bishop Agurto at Cibú (see VOL. XIII, pp. 133–135). Addis and Arnold's *Catholic Dictionary* says (p. 46): "Provincial councils, owing to the difficulties of the times, have been less frequent in recent times than formerly; but, by the Council of Trent, metropolitans are bound to convene them, every three years."

² The ecclesiastical judge to whom the bishop delegates his authority and jurisdiction for the determination of the suits and causes pertaining to his jurisdiction; and hence a synonym for vicar-general.

Rev. T.C. Middleton, in a recent communication, says that the term "provisor" was apparently used only by the Spanish and Spanish colonies. It is not to be found in Ferrario, Moroni, or Soglia, and has no legal equivalent in English. It generally appears linked with another term as "provisor y vicario capitular" or "provisor y vicario general." An archbishop or bishop usually had his "provisor" whose powers were apparently the same as a vicar-general's or a vicar-capitular's. The nomination, or creation, of a vicar-general is in the hands of an archbishop or bishop; whereas a vicar-capitular is chosen only when a see becomes vacant, the cathedral chapter naming the person, who is to rule (during the said vacancy) with title of "vicar-capitular." In the United States, since there are no cathedral chapters, there are in consequence no vicars-capitular, their place, etc., being taken by an administrator, who is chosen by the metropolitan, unless already named by the former occupant of the vacant see.

³ The discalced Franciscans were founded by St. Francis of Assisi, under the name Friars Minor, and the rule was very binding and strict. Under the immediate successor of St. Francis, Elias of Cortona, sprang up a branch of the order, made up of former members who wished a less strict rule, and those who wished to preserve the strict rule were persecuted. The members of the relaxed branch became known as "Conventuals" or "Minors Conventual" in contradistinction to the Friars Minor (or Minorites), who are known also as "Observants" or "Observantines." Three great branches sprang later from the Friars Minor: Reformed Minors, founded in 1419, by St. Bernardino of Siena; the Recollects, founded in 1500, by John of Guadalupe; and the Alcantarines, founded in 1555, by St. Peter of Alcantára—but all under one head or chief superior, termed minister-general. The Alcantarines wore a white habit, the others brown, except in England and Spanish countries, where they wear gray. In 1897, Pope Leo XIII, by his Bull *Felicitate quadam* ordered the Observants, Reformed, Discalced, or Alcantarines, and the Recollects, to unite under the same general superior, to use the same constitutions, to wear the same habit, and to bear the same name, viz., "Friars Minor." The Conventuals and Capuchins were to remain distinct orders as heretofore. The term *pañó* in the text refers to the Conventuals, the less strict branch of the Franciscans, who were wont to dress in what one might call "fine raiment"—habits of cloth, as distinguished from the coarse serge-like stuff of the others. Cf. Addis and Arnold's *Catholic Dictionary*.—REV. T.C. MIDDLETON.

⁴ Referring to the church and convent of Santi Quattro Incoronati (one of the titular churches of Rome), which was founded by Honorius I (A.D. 622), on the site of a temple of Diana, in honor of four painters and five sculptors who all were martyred for refusing to paint and carve idols for Diocletian. See historical and descriptive account of it in A.J.C. Hare's *Walks in Rome*, pp. 230–232.

Letter to the King from Geronimo de Silva

Sire:

A detailed relation of the condition and affairs of these islands having been sent to your Majesty in the vessels despatched to Nueva España in August of last year, God was pleased that, after some months of navigation, the almiranta should put back in distress on the thirteenth of November, mastless and badly racked, because of the many hurricanes and the bad weather that it met on the high seas. That was a most severe loss for this city, since the chief sinew of its support at present is nothing but the trade of those two ships; for as the times go, there is now no other recourse. It is considered as certain that the flagship made the voyage, although there is no more certainty than trust that God has taken it to safety; for since it was already so late, and the monsoon of the vendavals had set in, it has not as yet returned from Nueva España, nor has any other advice come. That is no little cause for anxiety to this wretched city, in addition to the ravages of enemies and other disasters that ordinarily afflict it. May God in His mercy ordain what is most advisable for His holy service.

Governor Don Alonso Fajardo, having despatched the vessels of Castilla, began to undertake the aid for Terrenate; and attempted to send it earlier than formerly, in order to guard against the enemy, who continually await the ship at the entrance of those forts. Notwithstanding the small amount of money and other supplies that could be taken hence, because the misery here had become as extreme as one can imagine, yet what was sent in men, food, and war-supplies, was the most abundant that has entered those forts for a considerable number of years—as the governor, being the one in charge of all those matters, will fully inform your Majesty. With that relief a present was also sent to the king of Macazar in your Majesty's name, in recognition of the friendly reception and entertainment found in his country by your Majesty's [*word illegible in MS.*] vassals, and for the great importance of preserving his friendship, as I have stated in other letters.

Governor Don Alonso Fajardo heard by way of Japon—through an entirely trustworthy person, who is accustomed always to give information of very important matters—that the Dutch enemy had allied themselves with the

English, and that both nations had made an alliance to come to pillage these coasts, and that they had prepared and well equipped for that purpose a squadron of twelve large ships belonging to both nations. That news caused keen anxiety in this city, inasmuch as two so powerful nations were seen to be allied for its destruction and ruin. The most anxious was the governor, not so much because the remedy depended upon him, as because he found himself with so few forces, and it was impossible to be able to prevent so serious injury as was expected. Before anything else he tried to inform your Majesty of that alliance, sending a despatch for that purpose by way of Portuguese India, so that it might reach your Majesty's royal hands with the promptness that so important a matter demanded.

Notwithstanding that there were not wanting some here who doubted the truth of those despatches from Japon, yet the governor, being so anxious for your Majesty's service, began to prepare and furnish all that was necessary for the repair of the vessels stationed in the port of Cavite, and many other things that had need of repair. At that time, on the second of February, he heard that the enemy were on the coast. In a very few days they entered by the mouth of this bay with nine vessels, seven of them of great burden, and the other two of medium size. As commander of that squadron came the Englishman with four well-equipped vessels of his nation; and, as admiral, the Dutchman with five vessels, no less adequately equipped and armed than the English. They sighted the port of Cavite in order to reconnoiter the strength of the fleet stationed there. Everything was placed in the best state of defense that time allowed, so that any attack of the enemy could be repulsed. But the enemy took a better resolve, namely, to anchor in the mouths of this bay and await there the Chinese ships, while they sent two vessels to run along the coast, in order that those vessels that should anchor along it might not escape them.

At this juncture a vessel arrived at this city with a special embassy from Macan to beg the governor to aid them with some large pieces of artillery; for, as they were advised from Japon, they were hourly awaiting that same squadron—for, as the rumor ran, they were about to attack that city. Notwithstanding that the necessity here was more urgent, yet it was resolved, after having called a special council of the treasury and war, to

send six large pieces of the best casting for the defense of that city—as the governor, to whom I refer, will inform your Majesty more minutely.

The depredations and prizes made by the enemy in all that time have not been of great importance, since as yet it is not known that they have captured more than five Chinese vessels, which according to the report of the Sangleys in them were not those of the wealthy men (who are here called Anayes).¹ Consequently, with the pillage of this year, they will not be able to meet their obligations in Japon, for which thanks are due our Lord. What I can affirm to your Majesty is that all possible efforts were made, both in sending advices to China and in carefully watching through outposts this entire coast, which was partly the reason why the enemy failed to cause greater damage.

The founding of the artillery made here hitherto cost so much labor, and it resulted so unsatisfactorily, that we were all in the greatest perplexity because we could not determine where the defect lay. But, after many different experiments in alloying the metals, it has been God's pleasure that we hit upon it. I can also assure your Majesty that the artillery that is cast now is as good and safe as that of Pirú, and costs much less in metal and labor than the pieces formerly cast.

One cannot help reflecting how great and distressing would be the anxiety and uneasiness of the governor if the enemy should attack him and he were without possibility of collecting the forces with which to drive him from these islands. But for all that might happen, and in case the enemy should divide his fleet, in order to be able to make use of any good opportunity, the governor placed in order two good galleons—a flagship and an almiranta—two other quite small ships, and two galleys. That represents the total strength of your Majesty's fleet in this port and all the islands. In order to equip them with men, the governor withdrew as many men as possible from the presidios of Oton, Cibu, and Nueva Segovia. He sent edicts to all the provinces to assemble the wandering Indians therein. Although the greatest rigor was employed for this purpose, those collected amounted to so few, that their number did not reach seventy persons. It is a pitiful thing to see how few men your Majesty has for service in these islands, as I can certify, since the army is in my charge. For the paid infantry does not exceed four

hundred in actual service, outside of the crippled and sick in the hospital, where they are continually dying. Many of those who are not on pay escape to India and other regions, without any possibility of avoiding it.

Consequently, Sire, this matter remains in the above condition, and demands very speedy betterment, which your Majesty should furnish by sending a number of men and the other things needed for the conservation of all this land. For by doing otherwise, a well-known danger is invited, as your Majesty will learn more fully from the relation that the governor will send, to which I refer.

On the thirteenth of the month of last June, a ship from Malaca anchored in this port, bearing news of the advices that your Majesty ordered to be sent to Portuguese Yndia, in regard to the alliance between the states of Olanda and Ynglaterra, and their purpose to attack these regions with the huge fleet that was thought to have come for that purpose. It also brought news that sixteen Dutch ships had already arrived at La Sunda, and that the rest of the fleet was on the way. May God, in His infinite goodness, bring their evil plans to naught, since we here are so in need of human forces to frustrate them. I can assure your Majesty that we will always exercise the requisite care and vigilance here, if your Majesty will send and provide the most important and necessary things; this the governor has begun to do, especially in his cleansing the country of so many people that occupy it, with whom there is very little security. Especially is that true of the Japanese, who are seditious and arrogant, with whom the enemy hold so intimate trade and intercourse in their own country. For these reasons we keep strict and careful watch over them, since the suspicions conceived of them have been often verified. The number of Sangleys whom it is advisable to allow to remain in this city is also being lessened, and only those sufficient for its service are left. By that means, I trust in our Lord that we can withstand our enemies' designs. Those designs, as we have heard, are to besiege this city, or the forts of Terrenate, or to establish themselves in Otton in your Majesty's fort on the point of Ylo Ylo. I trust in His Divine Majesty that they will not succeed in their attempt, for, although we have so few forces, we will resist to the utmost until your Majesty shall furnish those forces advisable for greater results in your royal service.

All of these things, although so considerable, could be endured, if the royal treasury had the sum requisite for affairs so difficult. But I can assure your Majesty with entire truth that the need of your treasury is so pressing now that it is incomparable. Not less so is the barrenness of this country, which was formerly and usually the last resource. Consequently there is so universal misery that no words could exaggerate it to your Majesty.

During the month of last April occurred a somewhat sharp encounter between Governor Don Alonso Fajardo and Auditor Don Alvaro de Mesa y Lugo, on going into the assembly hall—in which, according to report, the auditor was somewhat lavish of words. For that reason the governor had him arrested and imprisoned in the cabildo's halls, where he was kept a few days, until he left his prison and retired into the convent of St. Dominic of this city, where he still is—as your Majesty will learn more fully by the judicial reports that were sent you in regard to this matter, and to which I refer.

All these exhibitions of temper and anger result from what I have pointed out to your Majesty in many other letters. They will exist as long as there is an Audiencia and auditors in this city. I base this assertion on the arguments and reasons that my experience during the time of my residence in these islands has shown me. Again referring to several of those reasons, I shall mention here only three to your Majesty: first, that the auditors have so few causes to judge that there are no more than those of four Indians in regard to their houseplots and lands—in which they finally spend more in costs than the principal over which they are litigating; the second because the auditors are stubbornly opposed to the governors, for which reason the latter cannot attain success in many things, and your Majesty's service suffers. The aim of the auditors is naught else than to get all the posts for their relatives, intimates, and comrades; but with these many retired captains can be recompensed, who have served and serve your Majesty here whenever necessary, without return or pay. When their requests are not granted, these men withdraw to their homes, which causes the country to be divided into factions and parties. The third reason is the number of pesos that your Majesty would save from the salaries of the auditors and other officials of the Audiencia. With that sum, twice as much infantry could be maintained as that which your Majesty has here. That, in the light of present conditions,

is the most important thing for the necessary maintenance and defense of these islands. I have dared to relate this to your Majesty because of my zeal as a loyal vassal, and as one who looks at things dispassionately. Will your Majesty decide as is most advisable to your royal service.

In all the letters that I have written to your Majesty in the past, I have made a full report of the services that I have tried to perform for your Majesty in more than forty consecutive years, not only in these regions, but in the States of Flandes, and in Ytalia, and in other lands, of which your Majesty already has information. At present I only beg your Majesty to be pleased to consider that my age is over sixty, and, although I might thereby be somewhat hindered, still I will appreciate it more than I can express, to finish the remainder of my life in the service of your Majesty, employed in the post and grant that your Majesty may be pleased to confer upon me, according to the capacity and talent found in me, as I hope from the royal hand of your Majesty.

When I was about to seal this packet, news reached this city of the happy arrival at these islands of the ship “San Andres,” which was expected from Nueva España. That news has caused a quite universal happiness to this wretched community. The ship has anchored in the province of Ylocos, eighty leguas from here, as the weather does not permit it to come to this port. Your Majesty’s letters have not yet reached this port, and, as the vessels which are being despatched are on the point of sailing, it will not be possible to answer them, as the governor will more fully inform your Majesty—whose Catholic and royal person may our Lord preserve for many years, as is necessary to Christendom, etc. Manila, August first, 1621. Your Majesty’s humble servant,

DON HIERONIMO DE SILVA

¹ Argensola (*Conquista*), p. 317, mentions the Anhayes merchants, and speaks of them as coming from Chincheo. See VOL. XII of this series, pp. 155, 277; the word is there spelled *away* and *auhay*, because thus written in the Spanish transcription from the original.

Affairs in the Franciscan Province

Sire:

I, Fray Pedro de Sant Pablo,¹ preacher and minister provincial of this province of Sant Gregorio of the Philipinas Islands of the order of the discalced religious of our seraphic father St. Francis, and son of the province of Sant Joseph of the same order, who minister in the convent of La Purissima Concepcion [*i.e.*, “the most pure conception”] in the town of Barajas, and the least vassal of your Majesty, and your humble and unworthy chaplain, give your Majesty in the present an account of the unhappy condition of the province, in my own behalf and in the name of all this province. I declare that for the last few years the province has become restless, factional, and divided into parties, which it is a pity to see. It is one thing to see it, and another to bear it. On account of its condition, I have often resolved to resign my office as its head, as I was unable to remedy these ills; but I have refrained from doing so, as I think that I am doing some service to God our Lord therein, from whom I await the remedy. The cause of all these troubles is the coming to this province of your Majesty—which was established in so great discalcedness,² strict observance, and poverty—of religious not discalced, or reared on that good milk, but belonging to the cloth in those [Spanish] kingdoms, of religious reared (although under a rule) with different principles and mode of life. So different are these that under no consideration can there be the remedy that they will accommodate their way to ours, or we conform to theirs. Some of us appeal to Paul and others to Zefas [*i.e.*, Cephas]³—a most lamentable and injurious condition of affairs, and the destruction of this conversion, and of our own peace within and without. In order not to weary your Majesty, I shall not dwell longer upon this, or spend time setting forth our losses. But although peace—the essential thing—has fled, it has been preserved [here] in the reform, separation from the world, poverty, and strict mode of life which are observed among the discalced religious of those kingdoms of España; and I think that, in poverty, this province even exceeds [the practice of] that virtue in those kingdoms. To Indians that appears a miraculous thing, beyond what is either acquired or natural. To God be the thanks!

This province was established and has been preserved with holy religious, sons of the provinces of the discalced in España; and at present about two-thirds of these religious are from the said provinces. But little by little, religious of the cloth have come among them, clad as discalced religious only in order to gain admission to these regions. So many of them have gathered here that they are sufficient to form parties and divisions by themselves, aided by some of our discalced religious who join their party. What most encourages this is, that as our fathers-general, commissaries-general, and other superiors are those who govern us, they try to favor those of the provinces of the cloth with offices as superiors and commissaries, and with other privileges, whereby they are advantaged and plant the foot of superiority above others much more deserving and worthy than they; consequently they plant their feet upon all in order to attain their ends. In this way do they destroy the peace of one and all of us, so that I am fain to be able to express my grief to your sacred and royal Majesty.

This would be checked provided our said father superiors would observe and place in execution an order and royal command, which it is said that your Majesty gave long ago, ordering that the said fathers of the Observance should not come to these islands, but only the professed religious of the discalced branch. But this they do, thinking that they comply with your Majesty's said order by clothing those said religious of the cloth in the shabby habit of the discalced religious, in order to pass over here—whereby your Majesty's royal will is defrauded and your royal officials at your ports deceived.

Therefore I petition your Majesty, by the blood of Christ our Lord, to provide the remedy. That consists in one of two alternatives: namely, either that your Majesty order that, since there are so many friars, no religious who has not made profession in the provinces of the discalced religious of España shall take passage henceforth for these islands and for Japon, and that religious who come to these islands and provinces must go from those provinces [of the discalced], and not from the provinces of the cloth, for the said fathers have so many and so extensive conversions in which to employ themselves; or that, on the contrary, no discalced religious may take passage, but that all be of the cloth. For in this manner the one class will

decrease and the others will increase, and all will soon belong to the one class; and, by the help of God our Lord, there will be peace.

The condition of Japon is as follows. About two years ago (that is, in 1618), brother [sc. father] Fray Luis Sotelo came here with letters from our most reverend father Fray Juan de Vivanco, confirmed by the nuncio of those kingdoms and by our father commissary-general of Nueva España.

Entrance was gained for us by him to Japon, but he was taken away from us by fuerza;⁴ and this year, 1620, our father commissary-general of Nueva España, Fray Diego de Otalora, sent another in his place, a son of the province of Santiago in España, of the cloth. We also had a letter from our most reverend father, Fray Juan de Venido, commissary of court, dated at that court in the year 1619. According to one clause of it, the patent of brother Fray Luis de Sotelo, and that of Fray Francisco Ximenez, whom they but lately sent as commissary for the said Japon, were revoked. This province, having taken depositions in regard to it, with the aid of the said letter, adjudged Japon accordingly. Both of them were notified, heard the act, and asked for copies. In this condition the affair (which is all litigation) remains; for, although the province remains thus, the pending suit still encumbers it. For the love of our Lord Jesus Christ, I humbly petition your Majesty, prostrate at your royal feet, to aid us in this, so that the matter may be confirmed in favor of the said province; for Japon belongs to it, and was founded and planted by it, and God has watered that land with the blood of our sons. For it is impossible by any manner or method, or by any way or expedient, that authority can be given to pass to that province of Japon, or that it can be preserved, except by this; for in these two years while its condition has been as described, this province has furnished both religious and other supplies. Besides this, they are depriving us of a house and shrine of this province, called Sant Francisco del Monte, used for the training of novitiates; and they have deprived us of it, together with the said province of Japon. Besides, there are many other troubles that they have caused us (of which the procurator of this province will inform your Majesty) in order that the discalced branch should not proceed with the said conversion, which has hitherto cost it so much.

For that reason has arisen in this province the resentment that is just, and it is commended to our Lord with many fastings and disciplines. Will your

Majesty examine this matter with those royal eyes, so void of passion, and set it right, as I have here petitioned, for thus will it be expedient for the royal service of His Divine Majesty and that of your Majesty. May His Divine Majesty augment, keep, and preserve you, as we, all these your faithful vassals, desire—who (and I, the most wretched of them) prostrate ourselves before the royal feet of your Majesty, which we kiss a thousand times. Given in Sant Francisco in Manila, July 31, 1620, and by your royal Majesty's most unworthy servant,

FRAY PEDRO DE SAN PABLO, minister provincial.

We, the provincial and definitors of the province of Sant Gregorio of the Philipinas Islands, of the order of the discalced religious of our seraphic father St. Francis, the humble and loyal vassals of your Majesty, declare that, inasmuch as our Lord God took to Himself and allowed to die the first fathers and founders who had come hither, with great virtue and sanctity, from the provinces of the discalced religious of the kingdom of Castilla, those who were in this province set about appointing some heads from the religious reared in this country. Because of that, this holy province began to be divided into great factions some few years ago; and it has been so divided that it would break the heart of one who knew it [as it was] before. The sole cause of fomenting these factions is that the fathers of the Observance have passed to this province and these islands, in violation of a royal decree of your Majesty, and dwell among us wearing the habits of discalced religious, fomenting these factions and divisions, to the great loss and ruin of all good and reform. Those troubles are prevailing in this province because the latter is directly governed by the father commissary-general of Nueva España, who is of the same observance and not a discalced religious. We are suffering great detriment at present, and many scandals have arisen, to the great loss of our credit and the welfare of these conversions. This is especially true of that of the kingdoms of Xapon, which the said father commissary-general of Nueva España has attempted to wrest from us with great violence, although that is greatly to the disservice of His Divine Majesty, and that of your Majesty. Such also would be the case if our holy order cannot be established in that and other fields of conversion—

discalced, poor, and reformed, and with as great admiration as that with which it has been hitherto established and preserved amid all these nations.

The remedy for the avoidance of these evils lies in your Majesty again ordering that not any of the said fathers of the Observance shall come to these regions, as they are wont to come, feigning by their habits to be discalced religious; and in your assigning us a resident commissary-general, subject forever to a province of the discalced branch of Castilla, so that the said reform may be preserved, and that he may govern the province better, as having been reared in the said discalced branch, of which this province has more experience. If this be impossible, then we petition your Majesty to be pleased to order that we may be freed from obligation to the father commissary-general of Nueva España, and to allow this province to be immediately under the government of one of our fathers-general, a commissary-general of all the Yndias resident in your court, as thus it is advisable.

This we humbly petition and supplicate from your Majesty. In case that be impossible, then we petition your Majesty to hand these conversions over to the said fathers of the Observance; for, being a unit and being harmonious, they will attend better to the ministry of souls. If the said fathers come to attend to these conversions, will your Majesty be pleased to give permission and equipment to all of us discalced religious who have come from Castilla to return to our province. Confiding in the accustomed largess and kindness of your Majesty, we shall say no more. May His Divine Majesty preserve and augment your Majesty, as we, these unworthy chaplains of your Majesty, petition and desire in our prayers and sacrifices, etc. Given in this convent of your Majesty of Nuestra Señora de los Angeles, of Manila, July 20, 1621.

FRAY PEDRO DE SAN PABLO, minister provincial.

FRAY ANDRES DEL SACRAMENTO,⁵ definitor.

FRAY AGUSTÍN DE TORDESILLA,⁶ definitor.

FRAY CHRISTOVAL DE SANTA ANA, definitor.

FRAY ANTONIO DE NOMBELA, definitor.

[*Notes at beginning:* “The minister provincial and the definitors of the province of San Gregorio in Manila, of the Order of St. Francis.

“They mention the extortions committed on that province by some auditors of the Audiencia, which compelled them to receive father Fray Francisco Ximinez in your Majesty’s name, although in violation of a brief of his Holiness. It is petitioned that a remonstrance be sent to them, so that they may not exercise similar violence on any other occasion.”]

Sire:

We, the provincial and definitors of the province of Sant Gregorio of the Philipinas Islands of the order of the discalced religious of our seraphic Father St. Francis, your Majesty’s loyal vassals and humble chaplains, declare that this province has been signally injured and aggrieved, with great detriment to its general credit and good name, and the opinion of all our order, and in particular that of the said province, by Licentiate Hieronimo del Gaspi Chabarria, Doctor Don Albaro de Mesa y Lugo, and Doctor Don Antonio Rodriguez de Villegas, auditors of your royal Audiencia of these islands, by reason of their having granted your royal aid to Fray Francisco Ximenez, an Observantine religious. The latter came to this province with a commission granted by the father commissary-general of our order in Nueva España, ordering us to receive him—although he ought not to be received, as it was in violation of the general rule of government in our order; and in violation of a brief of his Holiness, Gregory Thirteenth. Moreover, such action tends to the destruction of the discalced religious, and of the reform and common welfare of this province, and of the conversions in these new kingdoms of your Majesty—especially when the said auditors compel this province to receive him in your royal name, making an ill use of your name and of the royal authority, and insulting it—and he does that, who, under pretext of such name, practices injustices and extortions, and who does not observe the terms of laws and ordinances; and much more, when they are practiced against an order and province that your Majesty has always esteemed and esteems so highly. Thus, nominally by your royal authority, we have suffered great violence and scandals, and it is certain that had this occurred nearer to your Majesty’s pious eyes, a most signal and exemplary chastisement would

have followed. But in these so remote regions, where redress arrives late, it is usual, and almost necessary for us chaplains of your Majesty and the orders to suffer these extortions; and if they did not result in detriment to virtue and to the public welfare, by bearing them patiently we would not lose, but rather gain much.

Therefore we petition and supplicate your Majesty to examine this cause with your own eyes, and provide redress for the injuries received— annulling these acts of violence and rebuking your said auditors, so that it may serve them as a correction, and others as an example and warning; and so that the ministers of the gospel and the orders in these islands may not be annoyed or injured by the evil example furnished to the newly converted, whereby they would esteem the ecclesiastical estate and divine worship less. For such is not the will of your Majesty. In this respect, there is in these regions a great deficiency in all your officials; consequently the ecclesiastical class need to have your Majesty renew your decrees that give injunctions to your agents. By so doing your Majesty will render a great service to His Divine Majesty, favor to all of us, and good to these new plants. May God our Lord preserve your Majesty for years, as we desire, and augment your happy state, as we your least and unworthy chaplains desire, etc. Given in this convent of your Majesty, Nuestra Señora de los Angeles, Manila, in 1621.

FRAY PEDRO DE SAN PABLO, minister provincial.

FRAY AGUSTIN DE TORDESILLAS, [*MS. uncertain*]⁷ and definitor.

FRAY ANDRES DEL SACREMENTO, definitor.

FRAY ANTONIO DE NOMBELA, definitor.

FRAY CHRISTOVAL DE SANTA ANA,⁸ definitor.

¹ Pedro de San Pablo made his profession in the Franciscan province of San José, and in 1606 went to the Philippines, where he was appointed conventual preacher of Naga. In 1609 he went to Manila as preacher, and at the same time had charge of Santa Ana de Sepa. October 29, 1611, he was elected definitor, and in 1616 minister of Santa Ana de Sepa once more. He became provincial August 3, 1619, and held that office until March 15, 1622, when he embarked for Mexico, but died at sea. See Huerta's *Estado*.

² Spanish, *descalces*; literally, “barefootedness;” a term applied to monastic organizations whose members are not permitted to wear shoes.

³ A reference to I Cor. i, 12, and possibly to iii, 22.

⁴ Huerta says of Sotelo (p. 393): “As the preparations for his journey to Japan were not made so promptly as he desired, he retired to our convent of San Francisco del Monte, where he occupied himself in the practice of all kinds of virtues until the year 1622, when he succeeded in reaching Japan.” Fuerza here apparently refers to ecclesiastical interference with Sotelo’s plans, to which reference has been several times made in preceding volumes.

⁵ Andres del Sacramento was a native of a small village in the valley of Sayago. He made profession in the province of San Pablo, and reached the Philippines in 1611. In October of that year he was assigned to the village of Ligmauan, whence he went to Tacboan. At the chapter held August 3, 1619, he was elected definitor. He afterward ministered at Manila, Minalabag, Polangui, and again at Minalabag. He became provincial November 18, 1628, and held that office until January 17, 1632. In that time he projected and partly executed the opening of a navigable canal from Nueva Cáceres to the port of Pasacao. After 1632 he ministered in several villages, and was elected provincial for the second time September 16, 1639, holding the office until January 17, 1643. He died in the convent at Manila in 1644. See Huerta’s *Estado*.

⁶ Agustin de Tordesillas was born in Tordesillas in 1528, and in his childhood served as acolyte in the parochial church, where he learned to play the organ. In 1558 he took the Franciscan habit as a lay brother, and made profession in the Observantine province of La Concepcion in 1559. He was finally ordained a priest, and became a confessor. He afterward joined the province of San José, and arrived with the first Franciscans at Manila in 1577, and was appointed first president of the convent there. On May 20, 1579, he went to China, returning thence at the beginning of 1580. That year he was appointed first master of novitiates, first chaplain of the royal hospital of Manila, and vicar-general of all the archipelago, which last office he held until the arrival of Bishop Salazar in 1581. In 1582 he went to China again, whence he went to Siam in 1583, via Macao. Returning to Macao he was appointed guardian of the convent there, but returned to Manila in 1586. There he labored in the hospital until he was elected definitor at the chapter of September 15, 1594, after that being guardian one or more times of the convents at Manila, San Francisco del Monte, and Cavite, besides having charge of Sampaloc. He lived to the age of one hundred and one years, dying in the Manila convent, having been the last one of the first mission to die. He wrote a relation of the expedition of the Franciscans to China. See *ut supra*, and VOL. VI, p. 131. note 31.

⁷ In the MS. at this point the text apparently reads *p^{ol} desta pos*; but it is uncertain what these words refer to, especially as Tordesillas was not at the time provincial of the Franciscan province, but was probably minister at Sampaloc, near Manila (Huerta, p. 504).

⁸ Huerta’s lists contain no one of this name; but he gives a sketch of Alonso de Santa Ana, missionary in the Philippines from 1594 until his death in 1630. This priest, however, was absent in Mexico and Europe from 1617 until 1621, when he returned to Manila.

Letter from Fajardo to the King

Sire:

In the ships which left here this year for Nueva España I gave your Majesty a long account of everything which, up to that time, could be related, or which occurred to me, with duplicates of different letters, therefore the most that I have to add today is the reception of your Majesty's letter and your royal decrees. I have not done this before as I had not sufficient leisure to examine them, or do so in the interval allowed by the season. What I have to say at present concerning their contents is, that I shall act in all respects, and carry out what your Majesty orders therein, according to my ability, and as best I can, and as is most expedient for your Majesty's service. In conformity therewith and in due form, acts of obedience were rendered; and, in some points which appear to me to demand more detailed explanation than was given in that general answer, I will furnish it.

As to what your Majesty wrote to the Marques de Guadalcaxar,¹ former viceroy of Nueva España, in regard to [the statement] that on the ship "San Nicolas" three hundred and thirty persons died on account of its late departure from these islands, all that I can say is that, since a person of his position and character undertook to write it, he should certainly have first informed himself thoroughly in the matter. Although I was present at the despatching of this ship and went out with it well outside of Cavite, it did not appear to me that, in regard to the people who were going, the ship was carrying half [of its quota]; for at most there are accustomed to go with the officers usually seventy seamen and gunners, more or less, according to the tonnage of the ships, although the number mentioned is for a ship of very large tonnage. With these there usually go as many more, Indians from this country, as common seamen, and some slaves that the said officers and the passengers are allowed to take with them for their service, paying the duties which are usually paid to your Majesty. The passengers are usually kept down to as small a number as possible; and if so many died as is affirmed in the supposed relation, they were not Spaniards, because of these not many died. They must have been negroes and slaves, who were hidden after embarkation by those who took them aboard, with an eye to the great gain which there usually is in this, by saving the cost and the duties that they owe, when the royal officials at Acapulco are friends of theirs, or those who thus convey slaves are of the household of the viceroy.²

In so far as concerns their departure, the regulation of that is not at present in the power of the governor of these islands; for the enemy are accustomed to come hither, as has been evident during the little more than three years while I have been here; they have come twice, and I am likewise expecting them now—and always with at least twice the fleet and troops that we have. Every day they are gaining more strength, as is seen by the presence of so many of them on this coast. The ships from China do not come, and it is with their merchandise that our ships must go to Nueva España. We are, moreover, obliged to keep the small vessels which can be manned, ready for war, in order to compel the enemy not to divide their forces and thus inflict the damage which, without this check, they would accomplish; and in order to fight with them, offering them an opportunity to do so even though they might obtain from us some advantage, which might be made up by the gain [of keeping them in check]. As we had to attend to this and then direct our efforts to fitting up the ships for Nueva España—shutting up the gun-ports, and changing the vessels so that they are suitable for merchant ships, and even at times enlarging them and increasing the conveniences within, and waiting until the amount of the merchandise has been completed, so that they may carry it—we could not get them off so quickly as was wished, nor upon an appointed day as before, when there was no war, and when at Christmas we used to have thirty or forty ships from China. The viceroy can inform you of this, for he too can ascertain this through the relations, as well as I.

As for the memorial which your Majesty orders me to send touching the diminution of the quantity of silver which comes from Nueva España to these islands, having looked into the matter it appears to me that not only is this design a proper one, but that it is very necessary to bring about this result; for I judge that only with the utmost difficulty can the drain of so much silver every year from that country and those mines be continued. They, too, are being exhausted like those of other countries, and the natives are diminishing; so that the silver is obtained in the most costly and scanty fashion, to be carried hither and go away to lie in the treasure-house of the king of China. I did not neglect to consider this when I proposed to your Majesty that the trade of these islands with Nueva España should be exclusive of silk and woven goods, except linen and other products of this country, which are not of great importance; for although the coming of

silver from there would not thus be altogether stopped, there is no doubt that it would be less, and we would avoid the drain from España by the French, English, and Flemish, of what they are accustomed to take away [in payment] for the linens which they carry thither to sell, and this saving would pass to the Yndias, as I have explained more at length in the letter which treats of this, a copy of which accompanies the present. If this is done, there will undoubtedly be more trade with Xapon, with the opportunity given by the silk trade; and in this manner we might continue establishing a trade so that the linen trade with Nueva España might also be restricted, if linens for Indias could be more advantageously provided by some other part of España.

Although in the memorial there is a matter which demands so much attention as the depopulation of a town like Macan, and the difficulties are set forth arising from its occupation by the Dutch or English, and their admission [to trade] by the Chinese—who, with their greediness, would seek the profit which they formerly gained from the Portuguese, thus destroying, at a single stroke, the commerce of this country with Nueva España, which is the means whereby all who reside here support themselves—to do so would appear a matter of the most difficulty. It would seem necessary and requisite for the [preservation of the] Japanese trade to transport some or the greater part of those people [of Macao] to the province of Nueva Segovia, or to the island of Hermosa, getting a foothold there whence we might better continue and carry on the navigation from China to that place and from there to Xapon, and not from here; for silks are already as high in this city as in Nangasaqui, on account of the danger from enemies which the Chinese risk in coming here. It has appeared best to me not to make any hasty decision in this matter without informing myself more thoroughly and considering it, so that I may be better able to state my judgment to your Majesty by the first ships which shall be despatched, by the favor of God. While my opinion is that, in the meantime, no more definite plan or decision should be adopted, there is no more effective remedy for limiting the drain from Nueva España through this country than to regulate the capacity and cargoes of the ships which go from here; because if they are large they are bound to be filled, even though it be with clothing and useful articles for households, and they must bring back the price of these things, cost what they may. But if they are smaller vessels

they cannot take on so large cargoes, and accordingly what is bought to be carried in them, as less has to be bought for this purpose, is cheaper, and, as not so much is carried, it brings a higher price in Nueva España; in this manner, therefore, the investment of ten is worth as much as that of twenty going in large ships, and it is rather profit than loss for the citizens here, and likewise for the service of your Majesty—although the citizens of the city of Mexico who have correspondents and secret factors here will be affected by it, because they will not obtain so large a portion of the investment and the cheap cargo, as the people here will need all that the ships can carry. This is all I can say regarding this at present.

As for what your Majesty writes me concerning the factor and inspector, Diego de Castro Lisson, in the matter of this office of accounts, in which relation your Majesty orders me to appoint to the office of accountant thereof someone who is a fit person, I will say that you may have information as to what the said Diego de Castro Lisson is, as he was already in your service when I arrived here. I do not find him, but in his place Luis de Vera Encalada, a person who for this office or any other of this profession, or one of trust, ought not to be preferred to Juan de Messa Suero, if the latter were not dead (as I have explained to your Majesty in another letter). As for your Majesty making the choice and appointment of this office, there will be no other difficulty than that the salary must be larger—as the authority will be, if the appointment is from the royal hand of your Majesty—and the business is of so little importance and no profit; for although he is called accountant of accounts, in my opinion he is coming to be the director thereof, since the examination and decision of difficulties or additions is made by us, the president, two auditors, and a fiscal.

The offices which, being vacant, are filled in the interim until your Majesty shall grant the appointment and favor thereof have been in my term merely for half the salary, without the person who served in them in this way having received any allowance for expenses, in any manner whatsoever; nor is there anything here with which to make such allowance, and I have understood that this has always been the case.

The memorial of the pilot Gaspar Conquero, which treats of the exploring of the island of Oro, which is here called Rica de Oro, has been examined;

and as soon as he makes this port, or there is any other person suitable for conducting this exploration, and to be given the island as an encomienda, I shall do so as your Majesty orders.

As for what your Majesty orders to the effect that I should inform you of the wound which was given Captain Matheo des Villerias, all I can say is that on the night when it was given I sent to tell the auditor, Don Alvaro de Messa, that he should conduct the investigation, and take the proper measures; but he did not do so, although there was no reason which should hinder him; accordingly, not to lose any time in this, the auditor Hieronimo de Legaspi undertook the work, and before him the case was tried. No guilt was charged against any one, although the wounded man said that he conjectured that it was Captain Silvestre de Aybar. Afterward his suspicion was changed, and he told me personally that he suspected Admiral Don Luis de Cordova; and, although we could not be sure that it was he, the presumption was stronger since it was learned that Captain Villerias had spoken very ill of matters which concerned the viceroy Marques de Guadalcazar, to whose party the said Don Luis de Cordova belongs. Villerias had another quarrel of this sort with the latter, after which they were quite friendly. This is not the first trouble which has happened to Villerias on account of having talked and interfered too much, but he has had other and more important ones. This would not be any too small to be worth judicial consideration if the matter could be cleared up, and if the occasion which, it is said, he gave for his wound by speaking thus concerning the said marques, could be ascertained.

I have not been able to learn in these islands that there are any Jerominian, Benedictine, Carmelite, Trinitarian, or Victorian friars here, although I have tried to exercise the care which your Majesty directs in this regard.

In accordance with the contents of another decree of August 25, of the past year 620, it appears that your Majesty has been informed that the reason why the ships left these islands for Nueva España later than in past years was because the president and auditors were interested, and principal shippers therein. The truth is, that their not leaving earlier was due to the coming of the enemy with large fleets to these coasts, and to the fact that the ships which bring the merchandise for these shipments [to Nueva España] were

late or did not come for fear of the enemy (as I have already written to you more at length and in detail), and likewise on account of negotiations and agreements between the auditors and the present president. I will swear to it that the report which has been made to your Majesty on this point is untrue, because I was not brought up in the households or under the instruction of merchants, but in the good way of military exercises, as were my ancestors. It must be evident to your Majesty, as the property that I possess could well attest, that it would be very well for me if it were increased by the amounts that are lacking and pledged.

As for the property of deceased persons, this treasury has a judge, on which account I have less knowledge of its administration—although whenever opportunity offers and it is expedient to take any action regarding it, I do so according to my duty, and before your Majesty orders it, as he does order in the decree which treats of this. I made strenuous efforts not to have individual depositaries appointed for this property; but not only in this but likewise in the court fines, and other condemnations and various deposits which ought to enter into the said treasury, and into the royal treasury and general depositary in each case where it is concerned, there has been no way of forcing the auditor Hieronimo de Legaspi to cease making the deposits with various persons that they might have the profit thereof. For it is plain and well known that as my occupation keeps me most of the time encumbered with duties outside of the Audiencia, and often outside of the city, in my absence these things are done, and others which should not be. I attempt to correct them, although I do not hope for amendment from the licentiate Legaspi in this matter of money and other very unlawful things, ill-befitting his office and his age, the illegal character of his acts eliciting many complaints which I have received. I have received a memorial, a copy of which I send with this, containing more than forty separate heads against him, and offering proof of them—which, although they are not unknown or secret things, it will be no little matter to prove against an auditor while holding his office. Since I have given your Majesty at other times an account of this person, although summarily, I shall not say any more of him in this letter; yet more may be said concerning both him and the auditor Alvaro de Messa. The latter is still in [the convent of] Ssancto Domingo, stirring up trouble and revolution, as is his nature, and making people jealous of me—sowing discord and untrue and evil words to this end, and to

destroy my reputation and render null my services; and afterward to go back and gather them up in sworn statements and depositions in documents, as a public matter, without considering that this act of his is insubordination. With this, and as he has gone so far as to seek false depositions against me—as is evident from the true ones which I have sent your Majesty—I do not think that anything further can be said concerning a professing Christian. Nor can we live in safety and honor where such infernal actions are committed, if they be not punished and corrected by your Majesty's just and powerful hand—by ordering that with him shall also be rebuked the friars of that convent, who not only keep the said doctor in their house and aid him in his actions against my person and office, but also give refuge with the same object to a certain Pedro de Lussara and one Pedro Alvarez, his men, who are working in his cause. I have given your Majesty other reports of this; but they interfere so much in this government and in the desire to command, that at times I have been in fear lest it was not the affairs of their missions and the Sangleys for which they wish to do everything, and lest some disturbance should arise that would demand punishment. If they could be relieved from some of the excessive ardor that they have, and the desire to go out into secular life with their own lawsuits and quarrels, seeking to have every one fear them and esteem their friendship, in other respects they would be the best friars which I have seen in the Indias.

As for the review of accounts which the said factor and inspector Diego de Castro Lisson had in charge, I refer you to the report which he will make or has made, as he has told me, giving the reasons why he has not continued therein. In the second place, I have learned that it is a matter of no little importance that this should be done quite thoroughly and fully—if not for the property that might be taken from him, yet to put into better condition the documents and despatches of his department, by which a great amount will be gained at once forever. It is also equally necessary that the intelligence and energy of him who comes for this purpose should be greater [than that of the said factor]; and the inspector-general, Thomas de Yvio Calderon, is not a person of sufficient prominence, nor is he discreet enough, for an affair of the greatest importance to the service of your Majesty—although his standing is not a poor one, and if a higher position were conferred on him, with the honors and favors that your Majesty might

give him, everything might be well arranged. I dare say that I have information of no other person who is more suitable, by his abilities and qualifications, which are well known and have been shown in the service of your Majesty; and I have such information concerning his conduct of affairs that I should consider him very good for you to approve for this commission. If your Majesty shall decide to send anyone to do this work, I warn you, in order that he may fulfil his duties with exactness, as is due to the service of your Majesty, that he should not come as subordinate to or dependent upon the Audiencia or the governor, if it can be avoided; but his only business should be to separate entanglements and untie the knots. It will be no less unadvisable to have him remain here with an office or allowance; for in such case he would not wish to offend many persons, but would conciliate their good-will. If your Majesty will accept mine, you will pardon me for being longer in the answer than was the question.

As for several points mentioned in the royal decree of your Majesty of the twelfth of December, one thousand six hundred and ten—by which persons who come with the viceroys, governors, presidents, captains-general, auditors, and royal officials, are prohibited and incapacitated from receiving the favors and rewards of offices, encomiendas, and other things which are usually given to those who serve and labor; and preference over other claimants is given to the sons and descendants of conquistadors, and likewise of the settlers; and it is directed that for the distribution of the said favors or rewards the new order and form should be followed which your Majesty ordains in the said decree, taking away the power from those who before held it in this matter, and giving what was held by them to the auditors and fiscals—it has seemed best to me to inform your Majesty of what presents itself to me in this regard, so that concerning all this you may provide and command what is most suitable for your royal service, and for the divine service, in behalf of which the former is conducted.

This country is most distant from España of any which is known in the world and it, with the persons who inhabit and maintain it, are today the most borne down with troubles of all the Indias; for here is the force of the war which is not felt there, and between so many nations as are our neighbors, who can wage and maintain it; it seems, therefore, as if no person who is free to do what he will, and who aspires to honor and fortune,

would come here to serve, without expectation of those rewards, if he were able to do it nearer the eye of your Majesty and of his fatherland. For if it is true that hitherto there have been many of this kind who have come, it has been in the hope that after three years they could leave, entering the honored or profitable occupations which they might have merited. The official persons with whom they came, or to whose land they belonged, and who were friendly, or appreciative of their abilities and qualifications, would help them, nor did it appear that favor would be extended unjustly. All the more now, when on every hand is barred any one of this class of persons who would desire to come; only those come whom some misdeed or ill-fortune drives into this land, and those who legally come to trade and live as merchants, and those whom the royal Audiencia of Mexico sends by way of condemnation, besides the people for our defense, and who are levied in companies in the markets and fairs of that city. And with these people there would come no noblemen of good parts and honored character, or many accomplished soldiers with merits acquired in war, such as the viceroys, governors, and other officers of this sort who come to serve your Majesty are accustomed to bring with them—without any suspicion that they ought not to do so, for the importance of having such men is already known, and is all the greater on account of the more occasions for war and other emergencies. I assure your Majesty that it is a well-known and evident fact that there are in this city honored knights and persons of excellent qualities, merits, and abilities, worthy of esteem. I assure you that it is also true that almost all of them came attached to the persons who filled the said offices, and attracted by their promises and expectations, whereby this country was greatly distinguished. This could not have been said if such persons had not come here, but we would already be very destitute of nobility without them, and would even have forgotten the way to carry on and fulfil their duties.

That the sons and descendants of conquistadors and original settlers should be preferred to those who are more recent and have not rendered greater services is a just and holy thing, especially in the peaceful countries of the Indias. But if this preeminence in life and in the favor of your Majesty is granted to them in consideration of the services which their ancestors have rendered in their conquests and pacifications, and on occasions of wars which were there carried on, it also appears just that present services which

are being rendered in this land on occasions of war here and upon these seas, ought not to take their position behind those of the ancestors. For it is certain that the services of today are more important, on account of the greater need which there is for them, and because the creole sons and descendants of conquistadors or colonists claim the favors entirely in consideration of this (although there are not many who show their deserts by continuing their services), going so far as to demand that those who served Terrenate should have no recognition in granting the favors and encomiendas of this country, as if there were anything to provide them with in those islands. I beseech your Majesty to command that your royal will be declared in this matter—although, for my part, I have understood that it is those whose services are the greater, whether in the present or the past, who should have the first or greater reward, considering the quality of those services, the rank of the persons, and their abilities and character.

In the distribution of the offices, encomiendas, and other rewards and favors which are given in the name of your Majesty to those who serve who deserve them, the auditors and fiscals hold the authority, and the viceroys, governors, and captains-general lose what they used to possess. There will surely be great difficulties from this, and much greater in this country where there is so much war, and in others where war shall arise, than in the other parts of the Indias, which are tranquil and quiet and enjoy peace. For if in them all the offices and occupations are of advantage and utility, and for that reason sought through different methods, and on this account there are many worthy persons to receive them, among whom to choose, therefore this new order ought to be put into operation [there]. In this country it is different, because most of them are engaged in the exercise and labor of war, and there are by no means too many men for the needs thereof; it thus necessarily results that, as certain offices are demanded for them, those who appoint to these are importuned; but here it has to be the governor who importunes, and who is under obligation to the persons of ability and services, who are charged with matters which are important. And if beside this, and besides employing them in dangerous affairs and commissions (liable to result in an unfortunate end and the loss of life and reputation through the mutations of fortune which they encounter), if, when they have carried these out well, the governor cannot be satisfied with this for them, nor with good will, being under obligation to reward them, if they do not

hold from him the other said offices which belong to the Audiencia (which is almost always ill-disposed toward the governor), it will bring about great trouble, not only for those who seek to toil and win merit, but likewise for the governors, who, without the aid of such men, could not fulfil their obligations. And as these services and merits are for the most part acquired in war, almost always most of these men are counting on rewards, and upon binding in this manner their captain-general, without having recourse to submissions or other negotiations. It will be seldom that there is not some ill-feeling in the Audiencia—now for having proceeded in the said manner, and again for not having complied with the claims of every leader and proprietor—but only to the governor. If, on the one hand, there is this annoyance, and the familiar entrance into his house in order to seek the offices and rewards; and, on the other, the entrance into those of the auditors and other persons mentioned in the said decree—it would necessarily be here, where there is not much from which to choose, that we would have to give assistance to those who, on account of their low condition or incapacity, are not esteemed or well known.

Besides the above arguments, I wish to furnish the latest example of the difficulty which was experienced here is the previous year of 617, as there were so many who had to decide the allotment of offices. This was when Don Joan Ronquillo, with that great fleet, went out and fought the one that the enemy maintained along these coasts. As each one of them [*i.e.*, the auditors and fiscal] sought the best galleon and the most prominent post for his relative or favorite, the galleons were divided among these, ignoring persons who could manage them better than some of those who were chosen. No admiral was appointed for the fleet, from which resulted no advantage, but rather injury—and there might have been more if the commander of the fleet had died, as might have happened, and each one would have sought to take his place, as this was not specified. This [same defect] was found in the ordinances which the Audiencia of Mexico issued, with so many opinions, when the government was in its charge, that your Majesty ordered them to be repealed and amended, as they were so insufficient for such emergencies; and because it was so evident and certain (as it likewise is to my knowledge) that through the power which appoints those who serve, and punishes them when they are in the wrong, they ought to be rewarded when they are right. For otherwise the governor and captain-

general would be the man who persuades or compels them to serve and labor, and it would be the auditors who must reward them; for it is in their power to say who are competent and who not, without its remaining in the power of the governor to do more than make a proposition in their favor—which would be of no force if two auditors joined against his opinion, as they almost always do. Such persons, therefore, would very seldom succeed in obtaining the reward of their services; and this office of governor and captain-general would become the most down-trodden, wearisome, and undignified of all that your Majesty has in his pay and service—and it should be well considered that the office today is one of the most laborious and least profitable, when it is served as it should be, considering its importance. Your Majesty will make suitable provision, adding to these observations the fact that the prestige of España has been greatly endangered by the lack of troops and money in parts so distant from aid, and in a country which has so many enemies—the worst in this respect being those who are nearest, and who are able to make the most cruel thrusts at our honor, directed and guided by the auditors, without their heeding truth or conscience, and of which I have already often complained to your Majesty. If the said auditors are to be given still greater authority, whether it be for conferring benefits or taking them away, your Majesty will see how they will treat his president and those who are helping him. Moreover, if authority be taken away from him, in place of being given to him for his greater honor and so that he may be able to carry on better the labors and duties of this office [it may be doubted whether] persons of the ability that is needed for that position will be willing to risk inconveniences and losses so obvious—it being certain that a man is necessary here of integrity and accomplishments and of excellent abilities; he must also be proficient in various professions and functions for which occasions continually arise here, so that he must practice and exercise them. Then in regard to property the greatest difficulty of all is touched—that is, to need it and not to have it; for it is necessary to spend all the year and all one's life in contriving. In regard to war it is the same thing, since there are so many occasions for it here, and the forces and means to enable him to carry out what he would undertake are lacking; nor can he show who is at the head of the enterprise and has in charge what means are available for his purposes. He must also be accomplished with weapons, and experienced in the preparation and management of marine affairs and artillery, for here the

governor must be almost always, and in most affairs of these islands, the head master; for it is not the same as in España, where each office has its own man, but in the affairs of government it is certain that this is the most difficult office that is known. For the greater the obligation, and the less the means for fulfilling it, so much greater is the labor and so many more are the demands; and the less there is to give them, the more captious and more numerous are the complaints and discontents, which they both utter and write, that they have never seen a worse governor. Nor are there lacking friars to help them, who preach the same thing with great effect—all the more if by chance something which the friars have asked for has been denied them.

Other reasons beside those that I have given could be added to this effect, which I do not set down, as the city are doing it on their own part. I beg your Majesty to have all these matters examined and considered, and to decree what is most fitting for your royal service—in attention to which it has seemed to me just, fitting, and proper to make this representation and supplication.

I once more beg your Majesty to have examined and considered what this city so often requested from you, for a long time before I came here, in regard to releasing them from the Audiencia—although, as I have said in other letters, I shall not enjoy this relief from the burden which is resting upon and is, in every way, irksome to all the people. I shall refrain from bringing forward this claim again, but I assure your Majesty that the Audiencia does more harm than good, as is manifest from the many arguments adduced in regard to this matter; and there is justice there for no one, except when it suits the pleasure or convenience of some auditor or auditors, because the more care is exercised to make them administer justice, the more they pervert it when they wish to, using the freedom to vote which belongs to them. On the occasion of the unfortunate event which happened to me on the night of the twelfth of May past³—and it was so important and serious an affair, as your Majesty already knows, or will learn by the judicial record and papers regarding the matter, which I despatched by way of Nueva España and am now despatching via India—they made (although I am their president) no more demonstration against the agents, go-betweens, and apologists who were guilty in this affair than if

it had concerned the most wretched and degraded of the Chinamen who go about here. As it was my own case, and as I was satisfied in regard to the principal matter that concerned me (thanks be to God), I did not wish to exercise my authority in the case; but it may be seen to what lengths the blindness of their desires and passions leads them.

I have already despatched the supplies to Terrenate, and to the island of Panay. The larger ships of this expedition will carry the cargo that is to be brought thence, and the smaller vessels will go to join the larger ones with the supplies from here inside of two days, with the aid of God; may He convey in safety the relief for those places. It is quite sufficient, and is sent earlier than in former years—although there are not many soldiers for it, on account of the number which I have sent in past years, and because we have here a very small force. I have had good news from those forts that, for the present, they have no enemies, according to what they write from there, thanks to His Divine Majesty.

In the principal island of the Celeves, otherwise known as that of Matheo, and by still others as that of Macazar,⁴ as the chief man of that island is lord of that region, there is, at a certain point of it, a strait which makes an islet. This waterway was recently discovered, and by it there is a better route to Terrenate than was formerly followed. According to the information given me a post can be occupied there, whereby this passage (which is very narrow) can be guarded, and the enemy be prevented from using it. Likewise your Majesty will have shelter for his vessels, and a foothold in that country, which abounds with meat and rice. This would be very useful and convenient for sending supplies thence to Terrenate, during the whole year. During most seasons of the year the voyage from Macazar to the islands of Panay and the Pintados, or to this island, can be made. As there have been some Spaniards and friars there, and this was pleasing to those Indians and their master; and as they are receiving the water of holy baptism in considerable numbers, and have now shown signs that they are troubled at the lack of religious; and as the Spaniards have retired by the order of Master-of-camp Don Luis de Bracamonte—it has appeared best to me to send again some men and a couple of religious of the Order of St. Francis, together with Captain Francisco Melendez Marques, who has been very well received and is much liked by the said Indians. I ordered him that,

through friendship, or in whatever way he could best do it, he should strive to win their good-will, so that they might not only consent to give us a place where fortifications might be built, which would be a sufficient foundation for greater works, but that they should also aid in that labor; and that he should use and take possession of the site as soon as it should be conceded to him, or as soon and as fully as possible. Or having examined and chosen the spot, he should leave it until I should be able to send the troops and what was necessary therefor. For the said purpose he took nearly a thousand pesos in money, or in stuffs and other articles which are most valued there. I take it that this is a thing more than expedient; and, if I had been informed of it before, I would have tried to do this earlier. I shall be glad if your Majesty is satisfied and pleased with it, as in all I desire to win your approval.

The chief captain of Ffernambuc,⁵ Martin Dessosa de San Pago, and his wife and three children, who were prisoners in the hands of the Dutch, I have had exchanged for prisoners whom I held here. He and his household are going with their goods in the galliots which are now leaving this city for Yndia.

I also freed from the same captivity Captain Miguel de Sequeira Sañudo, who also has already set out for Yndia, by the “Aura” [*i.e.*, “Breeze”], of Macan. As for the stuffs and merchandise which remained to be got out of the ship called “Nuestra Señora de La Vida,” which was wrecked, a great deal more of its cargo has been unloaded than what I informed your Majesty of in the last despatch which I sent by way of Nueva España. All the artillery that was in it was likewise taken out; and I have ordered it to be conveyed to a shipyard in this island, where two ships are being built, which were already necessary to supply the place of the old ones. There is no anxiety about raising money for the future when the Indians are helping with a good will, as they are doing now; and this work is being paid for, as well as that on some galliots or little galleys, of seventeen benches each, which also I am having built, as I save in that way half the crew, and they are sufficient for this country and its coasts. There are no other vessels belonging to the enemy that can secure any advantage over them, for our vessels, to aid in fighting, can carry very good artillery; and, as for going about where occasion arises to punish or intimidate the Indians, they are

excellent—although for attacking the vessels with which those called Mindanaos, Xoloans, and Camucones (who are bad neighbors of ours) usually sally out, we need other boats like theirs. But if we had a fourth of their number, and a couple of these galliots, they would not dare to await attack, even though as many of their ships as could be found in their islands were assembled, as has lately been seen; for some of these tribes having recently been tardy [in their payment of tributes], when we sent a galley with four or five smaller boats from here we could find no more of them, although the sargento-mayor Don Fernando de Silva, who went out for this purpose, is even now in search of them.

In the last few days, news has come from the province of Nueva Segovia that some Indians on four or six of the encomiendas there had fled to the woods, driving away the religious and burning the churches. Although it is not a thing to create much anxiety, I thought best to despatch immediately, without losing an hour of time, Admiral Joan Baptista de Molina, with a sufficient number of soldiers—some Spaniards, and some from the province of Panpanga—for their pacification and the punishment of the leaders and the guilty ones, for it is well to quench the fire, however small it may be, before it extends and increases. On the other hand the enemy's greatest desire is to see these natives disaffected toward us, and disposed to favor them, as they have intimated to some who were in their power, and whom afterward they set free—[telling them] that they levy no tributes from them, nor have they any friars to flog the Indians, nor any religious teaching; on this they base their hopes of limiting our power in this land, which without this means they cannot expect. It is necessary on the one hand to punish severely the presumption of these natives, and on the other not to afflict them or make them desperate. It is very certain, thanks be to God, that for my own part I have kept them all contented, favored, and well paid, without consenting that, even for the service of your Majesty, they should suffer any oppression; and they prove this by the contentment in which they live and with which they aid [me] in every way, as is well known. There must be in that court [of España] enough persons, both religious and laymen, who have gone from here who can tell you this. But all this is not enough, nor even holding in check the alcaldes-mayor, encomenderos, and collectors, if the ministers in the missions will not treat them well. For it is not sufficient to protect them from the oppressions of the passing Spaniards, who will be

forgotten, if on the other hand they are liable—on account of their service, or for some displeasure, or for gain, or because they do not know as much theology as the others—to be flogged or put in the stocks, and to suffer other hardships, which they feel, even though they are Indians. These fathers of St. Dominic are not their least oppressors, although I do not know whether they take from them anything which is of importance; and they favor them much and even at times in a manner not very honorable. The friars serve as protectors to them and inspire them to boldness; and now by this path of protection, and again by that of punishment, the Indians are all being brought to recognize them as powerful lords, in both spiritual and temporal matters. So far has this gone that, if the alcalde-mayor orders anything, even though it be just and necessary and for the service of your Majesty, if the friar orders something else, it must be as the latter desires, at least for the time being, until a more urgent order is issued. Your Majesty will be pleased to consider what is best to decree in regard to this for the future, as I am applying the most gentle and expedient means and correctives for the present.

According to the distribution of licenses to Sangleys, it appears that the care which I took to reduce the number of those here has had a good effect, and that they have gone back to their own country. For, as strict measures were taken to the effect that all those in this country should not remain here without securing licenses, a much smaller number of these have been issued this year than last. Likewise a large part of the Japanese have been expelled, so that for a long time there have not been so few of them here as now. I sent an order and what was necessary for the fortification at Oton, and had that port put in a state of defense. The same thing is being done with the fort at Cavite, as I wrote to your Majesty.

In the same way we are steadily engaged in repairing and equipping the ships, not only the capitana and the almiranta, but the ship which this year came from Nueva España, and another small ship and three galleys. I do not know whether they can be manned, but everything is being prepared for any emergency that may arise. What we cannot make is money and Spaniards, the lack of the latter being the most serious; and I have many times represented to your Majesty that the aid from Nueva España has come in scanty measure, as if from one who was not obliged to give an account of

this matter. The infantry, of whom a very small number have come, are in such a state that I would be glad if most of them had remained there; and, in short, counting them all—aside from those who are crippled, and those housed in the forts here and at Cavite—they do not amount to seven hundred and fifty in all these companies, as appears from the certified official statements which I send with this. Deducting those who are usually left in the ports, and the number who are ordinarily sick in the hospital, there will be barely enough to defend the capitana and almiranta, two galleys, and a patache (or another galley in its place), if they are also accompanied by some respectable citizens and persons who are anxious to serve and merit reward. There are not yet here, however, the usual number of unpaid soldiers—who are here called “irregulars” [*extravagantes*] because nearly all of them are so, and serve in these companies; but now, when there are not many troops, they are thus far well provided and paid, and are content, thanks be to God. With their help, when occasion arises, I hope that the soldiers will do their duty very well; and for such time I shall collect all that I can of those whom I have mentioned who are off duty, and likewise those who are to return to carry on their work in the mines of the Indians who are called Igolotes, the neighbors of those in Pangasinan. With the help which has been offered me by Doctor Don Juan de Rrenteria, bishop of Nueva Segovia and of that region, who displays a zeal for the service of your Majesty conformable to his obligations, my hopes have increased for the good results which I desire in this. May God our Lord, for whom it is done, grant us this and all other things, and protect the Catholic person of your Majesty, according to the needs of Christendom. Manila, December 10, 1621.

With the arrival of a ship which has come from Xapon to the island of Mariveles, at the mouth of this bay (whence I do not know where it went), I received the letters which came for me. I learned by them that nine armed ships were ready to sail from that country to join on this coast two others which came out earlier to cruise along the coast of China. It appears, however, that they certainly have left Xapon, as this was made known and affirmed by a Dutch factor, who fled from them in Malayo. His declaration accompanies this letter, to the effect that this fleet is already equipped, and that it has been detached merely to come to these coasts to rob the ships

from China, and to bring about an encounter with those from Nueva España, keeping a place to retire to and fit up in some Japanese ports. I am not surprised if this also is true, as it has been learned from many besides this factor that the Flemish and English nations have a hundred vessels and more in these parts, besides those that are expected, and are said to be coming. But God is before and above all. Your Majesty will arrange and decree what is most suitable; meantime, while I live, and remain here, I shall do what I can, and, with the divine favor, I expect no evil result.

DON ALONSO FAJARDO DE TENCA

[*Endorsed*: “See whether this letter is a duplicate, for it is old.”]

¹ Diego Fernandez de Córdoba, marques de Guadalcazar, was viceroy from 1612 to 1620. The Audiencia of Mexico then assumed rule, which lasted until the arrival (August, 1621) of the new viceroy, Diego Carrillo de Mendoza y Pimentel, marques de Gelves. He was a just, stern, and efficient ruler, who reformed many abuses and protected the poor and the Indians; but he thus incurred the enmity of corrupt men in high position, and even that of the archbishop, Juan Perez de la Serna. In consequence, Gelves was excommunicated by Serna (January, 1624), and soon afterward deposed by popular clamor and riots; the Audiencia then governed until the following October, when a new viceroy came, the marques de Cerralvo. By his efforts, Gelves was vindicated in every respect, and honorably returned to Spain.

² Bancroft (*History of Mexico*, iii, pp. 28, 38) characterizes the viceroy Guadalcazar as a weak and somewhat indolent ruler, in whose term corruption flourished; but of Gelves he says: “He broke up effectually the trade in contraband goods between Acapulco and Peru.... He removed the royal officials having charge of the supplies for the Philippines, putting clean-handed men in their places; and in consequence the amount of supplies sent to that colony was greater than ever before.... [Note:] In 1622 the value of these supplies was nine hundred thousand dollars, and in the following year two-thirds of that amount.”

³ Alluding to the death, by Fajardo’s own hand, of his unfaithful wife and her lover; see the first two documents of the present volume.

⁴ Celebes was long almost unknown to Europeans, and its deep indentations by gulfs led to the notion, long entertained, that it was a group of islands, rather than one. It has an estimated area of some 57,000 square miles, but its soil is generally poor, and its population thin and scanty. The two leading and more civilized people of Celebes are the Macassars and Bugis, who inhabit its southwestern peninsula. The Macassar nation (in their own language, Mangkasara) conquered the Bugis in the sixteenth century, and became converts to Mahometanism early in the seventeenth. They were conquered by the Dutch in 1669, and the latter nation has since then been nominal ruler of Celebes Island. By the name Macassar is commonly meant the Dutch fortified town of Rotterdam, on the western shore of the peninsula above mentioned; the Dutch made it a free port in 1847. See the

full descriptive and historical account of Celebes by Valentyn, *Oud en Nieuw Oost-Indien*, part iii, book ii, pp. 128–235.

⁵ Pernambuco, one of the most important of the Portuguese colonies in Brazil, was founded early in the sixteenth century. It was captured and plundered in 1593 by the English, under Sir James Lancaster, and again seized by the Dutch in 1630; but the Portuguese drove out the Dutch in 1654, after which time Brazil remained in possession of Portugal, until the peaceful revolution of that colony, and the formation of the present republic.

Documents of 1622

- [Letter to the king](#). Alvaro Messa y Lugo; 1621 and July 30, 1622.
- [Letters from the archbishop of Manila to the King](#). Miguel García Serrano, O.S.A.; 1621–22.
- [Royal decrees regarding the religious](#). Felipe IV; December 31.

SOURCE: These documents are obtained from MSS. in the Archivo general de Indias, Sevilla.

TRANSLATIONS: All these are made by James A. Robertson.

Letters from Auditor Messa y Lugo to the King

Sire:

Immediately upon my arrival in this country, I informed your Majesty, at the first opportunity, of everything possible, both of the condition in which I found affairs here, and of what I could conjecture in the beginning made by the new governor, Don Alonso Fajardo—of whom I immediately conceived suspicions and fears—and in the little that I saw of the beginnings of his government, by which he would not satisfy the need of the country for justice and [good] administration. Then in my next despatch,¹ [I informed

you how this idea was confirmed] by the demonstrations which may be called want of prudence; then, at intervals, I continued to add to my letters whatever occurred that was more intimately connected with this particular. Thus have I been doing on all the other occasions when ships have sailed from this country, both for Mexico and via Yndia, in addition to what the Audiencia has written to your Majesty. Although it has been impossible to inform your Majesty so minutely of everything, because it must be done with all possible caution and secrecy, in order to escape the violence and force of the governor—who with extraordinary vigilance and solicitude examines the mails, in order to seize the letters—and this obstacle has been aided by the multitude of affairs, still less, Sire, can that be attempted now when they have an exact number. But the extravagance of the governor's actions seems to be in excess of human capacity, and of such sort that, although it be morally impossible to point them out, it is more impossible, even when inadequately described, to believe them; for in my opinion it is incredible when spoken or heard, and scarce will be believed when seen, at least to men who recognize the loyalty that they owe to their God and their king. Accordingly, and as it is so necessary, in order to fulfil the obligations of my conscience, to inform my king, continuing the account that I have given hitherto of the wretched condition to which the governor has reduced the country (and this cannot be specific and particular, because of the multitude of his reckless acts or excesses, as above stated), I shall relate, as succinctly as possible, some little that will serve as an indication of what I shall leave unsaid. Hence, Sire, I say that, from what we see here, what the governor is doing is to expend your Majesty's royal revenues on the one hand, uselessly, without the careful consideration of facts which is necessary to obtain results for the service of your Majesty, and with very indolent attention; and on the other hand, contriving to secure with them his own advantage, under color of service to your Majesty, by sending your Majesty's ships to Yndia, Macan, and other regions for his own negotiations, under pretext of sending them for military stores and other things for the royal service. In this way he defrauds your Majesty of a vast sum of ducados, a thing that could be given another name. In still another direction [he acts unjustly], by giving warrants to pay due-bills, and that not to the owners of those bills, but to persons who buy them at one-third and less [of their face value]. To such persons does he open the doors to pay them, while they are shut on the wretched owners without recourse. [That is

done] perhaps, in order to make them sell their claims; for of the two-thirds or more remaining from the face value of the due-bill for their service of wealth, a great share of profit falls to the governor, as is openly muttered. This is affirmed by many conjectures, and especially by the fact that it all passes through the hands of his retainers and partisans, and those of his household. All this is done to the neglect of building ships and preparing the supplies necessary for the defense and conservation of the country.

The governor is also managing to make vast profits from consignments of goods; and—as is hinted, and even affirmed, however secretly he attempts to keep his affairs—a great part of the consignments are supplied by the royal treasury of your Majesty, and the royal income from the licenses given to the Chinese to remain in the country aids him not a little. That sum amounts nearly every year to one hundred and thirty thousand pesos, for many of the Chinese remain, thus incurring the risk of another insurrection, notwithstanding the so strict decrees in which your Majesty orders the very opposite, and prohibits their remaining. That money was formerly collected and placed in the treasury through the intervention of the royal officials. The governor has ordered it to be collected by one of his servants and paid whenever the latter chooses, so that vast sums are always due to the treasury. I have been assured that forty thousand pesos are still owing this year, which it is said that the governor is using for his trading, as well as even the salary which is generally given the collectors. For that reason, when the servant receives the money that the Chinese pay for their licenses, it is weighed, and if it is under weight, he demands two or three reals more; but when he delivers that part of it which he chooses to pay into the treasury, as I have said, he does not deliver it by weight, but by count, and thus keeps the profit of the two or three reals. That amounts to about four thousand pesos. It is sometimes even said that what he delivers into the treasury on the principal account he pays in warrants bought by the schemes and channels above mentioned. So many of these things are attributed to his master, the governor, that I am ashamed to relate them, for I do not believe them—or at least I suspect that they are exaggerated. For it is even said that that servant gives false licenses instead of the true ones, which he distributes to the Chinese at the same price as the good ones, and keeps the money for them. It is said that the governor has money taken from the royal treasury secretly at night. Thus do they say, and attribute things to the

governor by so many and so diverse roads, that one is scandalized on hearing them—both about the royal revenues and about other particular things in the matter of profit. What I know for certain is that the governor does not have the accounts audited annually in January, as your Majesty orders, by the president and two auditors. On the contrary, the accounts for years before he assumed the government are so far behind that they have not yet come to those of his government, although he has been here three years. In those accounts preceding—although I am one of the two auditors whom your Majesty orders to audit the accounts together with the president; and although I say many things about his negligence—I have not been sufficient, for he is the one who has to take action therein. I believe that he has not attended to this matter, but rather has utterly neglected it; for I am persuaded that, in reaching the accounts of his own term, he has to keep things very private for the above-mentioned reasons. I do not know whether he fears to have the accounts made public; and besides that I should be the judge of them, for he knows that many worlds could not, through God's mercy, move me one jot from my strict observance of your Majesty's service.

Also the governor tries to violate justice, and to prohibit the punishment of evildoers, [at the same time] prosecuting and punishing the good and innocent; for he protects the former and abhors the latter, inasmuch as the one class do his will, while the others note and hate the evil things that he does. To them he offers insults, and to the others he gives offices and honors. In suits there must be nothing done but his pleasure, even though the suits be pending in the Audiencia, especially if they belong to persons devoted to him, or to those whom he hates; and he acts therein with so great violence that, when his desires are not carried out, he stops the course of the suits and takes them to his own house, so that the Audiencia may not pass any sentence contrary to his will. No one dares to demand justice from him, or any clerk to notify him of the vote of the Audiencia, while the parties to the suit call out to God in the streets. When it suits his pleasure, he takes charge of the criminal causes, and says that he does not wish a case to be prosecuted further, or that such a person be punished. Consequently, the number of the evildoers (and it is for them that he acts thus) increases so greatly that the scandal arising from it is pitiful. Malefactors also are more numerous because, when the whim takes him to forsake the other methods,

the governor orders the warden of the prison to let the prisoners go, even when they are imprisoned for serious crimes; or he does this secretly, so that no one should know it, and under pretext that they are needed for war or your Majesty's service. But he does the very opposite if it is a matter not to his taste, even though the prisoners be guiltless. His actions are still more objectionable when he goes to inspect the general prison, where he prevents the auditors from having any vote, and they are allowed to do only what he wishes; while he threatens them that he will dash out their brains with a club, and other serious things.

The governor also makes a practice of neglecting and not observing the decrees and orders of your Majesty, interpreting them to his own satisfaction, or pretending that he has not got them, when he does not wish them to be known, even though he should be plainly told of them; and even if he knows it, he regards everything according to his own pleasure and preference. If any one murmurs or says a word, he is prosecuted, and his innocence is punished with violent imprisonment. The governor even takes away his natural defense so that he cannot appeal or demand justice; and the governor searches for contrivances to annoy those who do not approve his doings.

The governor also makes a practice of being so absolute in everything, that he does not only what is mentioned above so summarily and in general terms—for, as I have stated to your Majesty in the beginning, it appears difficult in each of these subjects to enumerate the things that he does (even, in my judgment, only the weighty and more serious ones)—but also in regard to various other matters does he act and proceed in the same manner. Consequently, I believe that there is no man who will not affirm that from the time that the governor entered this country, he has done no good thing, but all in disservice of your Majesty, at least in the regular procedure. For if he calls treasury meetings, if he sometimes attends the Audiencia and sessions, or does any other act by reason of his office, there is no one who does not understand that the ends and objects of his acts are his own conveniences, vengeance, and passions or the conduct of his own affairs and those of all his following—as has been apparent to me at many times, on occasions when I have been able to be present by virtue of my office. Yet he neither wishes the auditors to counsel or advise or influence him, nor

that a word be said about his actions. On, the contrary he manages to get all his affairs approved especially by those persons holding office, such as regidors, royal officials, and others, and not only laymen but ecclesiastical persons. Consequently he seeks with most strenuous efforts the life of those laymen who do not approve his acts, both in public and in private. He threatens to proceed against them, either personally or through intermediaries, for the most remote and trifling irregularity that can be imagined; and he brings suits without hesitating, when he finds no witnesses, to secure others, even though they be false. To them he furnishes offices and other accommodations for that service, as many dare to say; and there is no longer any redress or protection, or at least that which is usually a safeguard destroys them. Consequently they endeavor to please him, without considering what he asks or what they do. Hence it results that neither the royal officials nor the regidors, nor any other persons whatever whom he may need—either that they may give him their approval, or that they may suit his pleasure—whether in violation of ordinance or decree of your Majesty or for whatever he might desire, exercise their offices with freedom. Thus outraged and tyrannized over is all this community—so much so, that I have been told secretly that the regidors have sent your Majesty a chart of a certain victory which they pretend that the governor has gained from the Dutch enemy who generally frequent these coasts, in which they pretend that the governor burned and put to flight their ships by his plans and arrangements. God knows the truth, and whether that is so; but I can never persuade myself of so great corruption; for such a thing never happened, and the governor has here a sufficiently wretched reputation. In this matter, and regarding a matter of such gravity, it was told me that when a regidor who privately told it was asked how they had done such a thing, he had answered by asking what they would have done if a traitor had come to govern them. Although that is not public, but was told in private, your Majesty will learn it there by its effects if that chart has reached you. But what is public is that the governor says that your Majesty should have patience; and since you sent him here he will conduct affairs according to his own pleasure. He either threatens ecclesiastical persons, even though they are friars, that if they do not act the same as the laymen, he will take from them the stipends given them by your Majesty, or he does not pay them; and he has oppressed them so that not even do the preachers dare to utter truths in the pulpit, both by his threats and because he

dishonors them, and says that they are living in concubinage, and that he will have them stabbed. However, the chief reason why they have ceased to preach, as I have been told, is because all conclude that it is a matter that has no remedy, and that, since they attain no results, they do not care to ruin themselves; and so they abandon it as a matter already adjudged. By these acts of violence on the one hand, and with the flattery of some on the other, he obtained a guaranty to your Majesty in order, as is understood, to screen by it, or at least to moderate, the enormity of his acts. He also avails himself, for this purpose, of threats to the notaries, of nothing less than the galleys and their ruin; or they are given to understand that they must not give official statements of anything requested from them, especially to persons who he thinks will write to your Majesty. He has under his influence one Pedro Muñoz de Herrera, who is clerk of court for the Audiencia, with whom he negotiates those statements that he wishes; and there is even a very evil rumor that the latter will give them even though they are not true, and that he gives them from the official records as demanded, even when these are defective—not only by what is known of the person of each one, but because the governor has favored, protected, and placed him by force in the Audiencia. [This has been done] both in a murder that the governor committed on the person of his wife, and in many other matters. Finally in violation of your Majesty's decrees which order that the offices be sold, he has, after having granted some gratuitously for his own objects, without selling them, refused to adjudge the office of secretary held by Pedro Muñoz to one Diego de Rueda, who bid eight thousand pesos for it, in order that Pedro Muñoz might not be deprived of it; while he gave it to the latter for one thousand five hundred pesos, which the said Muñoz had bid for it, and that sum was paid in purchased pay-warrants, in order to give it to him gratis, as is well known. He manages the clergy in the same way; and, as he suspected that the cabildo of the church wrote a letter to your Majesty last year, they have, since he learned something of this matter, endured a little tempest until they have been able, by certain paths that they have learned, to watch him. This present year I fear that they will not write, in view of the extraordinary care with which they see that the governor seizes the letters that are sent to your Majesty. The whole country is so fearful of such interference that each one, I think, will seek an extraordinary way in order to save his letters. Some are thinking of putting them in boxes of merchandise, for which reason I fear

that some will be left; and, as I have said, it might be that these will be the letters of the cabildo of the church—not only because of the aforesaid reason, but because, although I see that the archbishop is annoyed at the acts of the governor, and as I understand, those affairs cause him internal anxiety through his desire of remedying them, there is among outsiders considerable grumbling because he flatters the governor and humors him in many ways (which leads people to think that the cause for it is certain accommodations for his servants and relatives that the governor gives him); and because of certain injuries which they think could at least be abated with less compliance [on the archbishop's part]. But I do not agree with that, notwithstanding that I might commend [more] effort [by the archbishop]; for I know the governor's temper.

The governor also makes a practice of neglecting and sleeping over affairs of good government, a policy that is fitting² for the conservation of the country in peace and in the service of God; and he lives in a profound slumber, and neglects taking any precautions whatever—although the enemy so frequently invades these coasts, with new forces each day on the sea; while on the land are great numbers of Chinese Sangleys and Japanese. This has long caused many men of loyalty and high standing to be anxious with the memory of the past insurrection of the Sangleys; and not less is the anxiety caused by the Japanese, for they are numerous and are an extremely warlike race.³ And although the governor has orders and decrees from your Majesty that only the number who would be necessary for the ordinary service of the trades of the country shall remain here; and although the facts are well known to him, besides that he has been often told of this, both in and out of official meetings: yet he does not discuss its remedy, but only talks of making outside demonstrations by which he will accomplish much. But one would believe that he means that he will do much evil. May God in His mercy keep that evil far away. The governor does the same in what concerns the enemy on the sea; for not only does he not discuss, nor has he discussed, the building of ships in order to be prepared, as did Don Juan de Silva, to go to meet the enemy, but on the contrary, when he reached this land, although the galleons built by Don Juan de Silva had been wrecked, and although the Audiencia which was then governing had ordered, notwithstanding that the treasury did not contain a single real, some ships to be built, so that they might be finished in place of those which had been

wrecked, yet the governor, on finding them on the stocks at his arrival, ordered all work to cease, and only two ships were finished. He ordered even those vessels to be reduced in size, whereat there are not wanting those who grumbled that he did it in order to have trading-ships instead of warships.⁴ He has not built any others during all these three years, although the employees in the accountancy of the royal treasury assure me, and it is without doubt so, that he has spent three millions [of pesos] of your Majesty's royal incomes from these regions, and of the funds brought from Nueva España, during three years. That is a very great pity here, for it is to be presumed that he has spent a great portion of that sum in paying due-bills bought at one-third and less [their face value], as I have said above. The employees of the accountancy have assured me that five hundred thousand pesos were paid in that way last year, and that fact is very well known. It is also known that the due-bills outstanding have been exhausted, so that now they are being sought very anxiously in the same districts, but cannot be found.

Although we generally have six or seven months' sure notice from Xapon before the coming of the enemy, that they are going to come, the governor makes no preparation, small or large, nor does he build any vessels, but allows the time to pass as if he had no such warning. When the enemy arrive at the coast, the governor, without any intention of going to meet them—as is known publicly and generally, and is known by the results, as he has already spent the money—lays hands on the inhabitants and mainly by force gets a loan of one hundred thousand pesos from them, or what he thinks best, and has the ships in the port repaired. Those vessels often do not exceed three, and he spends on them a vast sum of ducados, even loading them with food and war-supplies of all that is needed. He troubles the soldiers in making them go and come to and from Cavite, and even making them embark. He says with show of great courage that he is going out, although he is told that such a thing is impossible with the ships that he has, for the enemy have many. Having spent all the money and exhausted the miserable inhabitants whom he has thus burdened, he calls a council at this juncture, and asks whether it is advisable to go out. Since the enemy are so superior they cannot tell him to go out, and in addition they see little gain in it; accordingly it is resolved that it is not advisable to go out. Your Majesty's royal treasury thus remains depleted, and the enemy are left to

pillage the vessels that they seize from those who come to this city, especially those from China. It is even asserted, although I do not know whether it is true, that he makes underhanded efforts in the midst of all these braveries, by the hands of certain persons who are masters of his secrets, so that the city may come out and disapprove of, and protest against, his going [against the enemy], and may inform many of the council of the danger if they should say that he should go out. And it is said that thus, in the matters above related and in many things left unsaid, the governor wastes his time—which he ought to spend in pleasing God our Lord, and in imploring His mercy, so that He might aid us in the conservation of the country, in succeeding in serving our king, and in preparing matters for his royal service—in many feasts and games, parties, weddings, christenings, and entertainments with women, even while the enemy are along the coasts, and often even anchored inside the bay; for I believe, and it is understood, that the Japanese inform the enemy of the slight preparations of the country. As a result, the governor has acquired a wretched reputation and character, even among the Chinese Sangleys and the Japanese of the country (who are infidels), not only for sensuality and lasciviousness, but for other and worse doings. We have the country in the most wretched condition that can be imagined. Never has it been so wretched, as is affirmed openly by the oldest residents here, as well as by me. They bewail Don Juan de Silva, for, although they say that he was covetous and revengeful, yet he was moderate in these faults; besides, he was prudent, and watchful of your Majesty's service, and of the preservation [of the country] and credit in war, and of the honor of your Spanish nation. Many of them fear, and I with them, some great chastisement from heaven, because of the publicity and multitude of the sins of us who live here.

In the particulars of the above matters [your Majesty's revenues] have been and are being wasted during the time of this government, and I fear greatly that it will continue in the same way until the end of it; and I do not know that it can become worse. For I assure your Majesty that I am talking with some caution, although I could enlarge on this subject—because when I talk with my king, I am talking with God, for the satisfaction and security of my conscience; and because from my entrance into this Audiencia, I thought that I would not be fulfilling my obligations unless I endeavored to do my

duty in what concerns me, and in the rest what I could, so that the service of God our Lord and that of your Majesty might be furthered. I thought that if evil beginnings be looked on with fear they could not increase. I always endeavored to furnish a good example in the matter of any actions and life, and at the same time to persuade and advise the governor of what I deemed worthy of reform, so that reason and not inclination might rule. I avoided conforming to his will in all things that came to my hands by reason of my office which were not to the service of your Majesty. By deed, example, and advice, or at least by efficient warnings, I exerted myself, so that only your Majesty's service should be striven for, and I am persevering in this course. I desire and am endeavoring to be on my guard respecting matters which concern his inclination and not his reason. For in fact, although the governor has done what he wished in many things, because he does not know how to conduct negotiations otherwise, at least he did not so act with me; and because of me and the openness of my nature, he ceased to attempt and to do other things—I persevering in my purpose, and he in his; and, although disabusing his mind of the idea that I would surrender myself to an evil thing, humoring him and giving him pleasure in all that I could freely. Inasmuch as that was so little and the matter of justice so great, because your Majesty's royal treasury and other most important things enter into it, he readily abandoned the path of perverting me. He said, with promises, that he would esteem my compliance more highly than that of all others, or than a great sum of money, besides other exaggerations (from which I think that he did not ill judge me), and changed the course that he had pursued by means of insults and injuries. [As an instance of the latter], after talking to me with his usual harshness while in his house—that which your Majesty assigns and gives to the president [of the Audiencia] by an order that you have given to the effect that there be houses for the president and auditors—one of the houses of one of the auditors having become vacant because Licentiate Alcaraz left it, the governor (although it pertained to me by my seniority, because Licentiate Legaspi already had a house) took it from me, moved into it, and left his own under pretext that he wished to demolish it, because it was falling down. He has lived in both houses (for one is near the other) for two years, although there have been most furious winds and storms, which makes his object evident. Besides, since your Majesty assigns a house to the president and auditors, if mine should collapse, I would rent a house which he could not seize afterward; and since by the

mercy of God, I trust in His Divine Majesty, that all the world could not divorce me from the service of my king, I endured and concealed the annoyance of his having deprived me of my house. I think that the scope of his pretensions must have increased, and that, when I censured him more, he tried to drive me from the Audiencia by different methods that he attempted. One was to send me to inspect the country (where one goes mostly by sea, because of the multitude of the islands, the great distance, and the fact that the roads pass through the territory of the insurgent Indians) while the enemy was along the coast; yet an order was given to all the Spaniards who were living on their encomiendas, and others who are the chiefs—against whom, and not the poor common Indians, the inspection is aimed—to come to reside in this city because of the presence of the enemy. Besides, that inspection did not pertain to me, since I was neither the oldest nor the most recent auditor. Notwithstanding that the Audiencia resisted, saying that it was not advisable to make that visit then, he tried to have it done by his appointment alone, and without the concurrence of the Audiencia, having attempted to do that last year as well as at the present time. In order to constrain and annoy me more, he ordered me to go out in Holy Week, notwithstanding that I replied to him that I would go (although it did not pertain to me) if the Audiencia concurred in it, but that without that concurrence I could not go. In consequence, it appears that the governor desisted for the time, but did not abandon his project; on the contrary, he was more set on it. When the Christmas season came, the time for the distribution of offices, in accordance with your Majesty's ordinances, that of probate judge fell to me in my turn. But this so annoyed him that he tried to avoid giving it, withholding the commission signed by the entire Audiencia, for more than two months, I believe, with a certain scandal to the city; for litigants did not know to what judge they could have recourse, as my predecessor's time had expired. After he had delivered me the commission, when I commenced to exercise the office—with no greater pleasure than that of serving your Majesty, although others solicit those offices—the death of Licentiate Andres de Alcaraz happened, without his leaving a will. As judge, I set about collecting his property with much diligence, involving considerable hardship. That caused me certain fevers, for as he died in the country outside this city in a garden his property was in great peril. Of this I gave your Majesty an account after the property was collected and placed in order, with the precautions that I had taken—by

which, notwithstanding the suits that had succeeded, I would continue to retain and reserve the property in case that your Majesty were pleased to send [some one to take] the said auditor's inspection or residencia. In conformity with that I had sent documents both to the probate court of Mexico and to the House of Trade at Sevilla, so that the property that the said auditor possessed there might be collected, and that your Majesty might be advised. Finally, I continuing in my office and the governor in his purpose—which was stimulated by his inability to reduce me to what I can morally believe, besides the public rumor and report—and he being most desirous of taking from me my office of probate judge, especially after the property had been entered in the accounts of the probate court; and I had begun the administration of the property of Licentiate Andres de Alcaraz: for certain purposes, which I do not dare to state, although they are reported, for I do not dare believe them, still by this and by many other reasons, and more because he had seized certain of the letters that I have written to inform your Majesty (for which, as persons in his confidence assure me, with whom he has communicated the matter, he has felt, and still feels, special anger and fury against me), he resolved to remove me, even though it should be by arbitrary act, from the Audiencia. Of that I am morally persuaded, and it is well known. Seeking occasion for this, but not finding it, and wearied perhaps in waiting for it, it happened one session that, while Licentiate Legaspi and Don Juan de Valderrama, auditor and fiscal, were at the door of the hall of his house, a message came in which Don Antonio Rodriguez de Villegas excused himself on the grounds of ill health. As the governor never attends the sessions of the Audiencia except for his private ends, under pretext of your Majesty's service, he was very angry that Don Antonio should excuse himself that day; for he was trying to secure the passage of a resolution [by the Audiencia] that I should go out to make the inspection—always persisting, as I have said, in his purpose; and also because it was understood that he had on his part managed to get the consent of Licentiate Legaspi to it. On hearing the message, he said very angrily that Don Antonio Rodriguez and I were always excusing ourselves from your Majesty's service by feigning to be sick. [That he said] in the presence of many people who were there, besides other quite unreasonable language. For that reason I was forced to ask him why, if your Majesty gave credit to an auditor when he excused himself, did not he have to do the same, all this with the intention to calm and satisfy him. He abandoned

himself to a flow of words, somewhat disconnected, to which I replied, saying that your Majesty did not order a president to treat the auditors so; and that I served your Majesty punctually, and did not excuse myself when I was well. If I remember correctly, I think that I made witnesses of all; for he also came to me after all that, and told me that I lied, and I think that he said “villain.” However, I do not believe that any besides Licentiate Legaspi and the fiscal heard that, And inasmuch as he told me to keep still and not reply, threatening me with execrations and oaths, I said to him with the greatest calmness, as is my custom: “If your Lordship tells us what is not so, are we not to remonstrate and answer you?” Thereupon he went to the meeting, where he told me that I was the worst Christian in the world, and that I took communion like Judas, besides other insults of like import, before Licentiate Legaspi and the fiscal. I was silent under everything, for I only told him that in the matter of sins I could confess many omissions; but I warned him that witnesses heard that, just as they had also heard at his house the other things that he said. Although he went ahead he may perhaps have thought that I persisted in silence, and did not answer him, in order that he might be led on to commit some imprudent act; thereupon he must have thought that there was now much to fear, and that he was not to find a justifiable opportunity, [for] he caught at that word, and said that I had intended to give him the lie, as if transgressions in thought were to be fought over—the more so, Sire, as I did not speak another word to him; for if I had spoken another word, I am not the man who would deny that to your Majesty or any one else. On account of that, the governor determined to make me the object of a lawsuit, and received his witnesses. To them he did not fail to tell what had happened, but not the words that I had spoken. When some wished to tell more, it is said that he insulted and threatened them. However, he did not do that with Licentiate Legaspi and Don Juan de Valderrama, the auditor and fiscal, whom he also received as witnesses, and whom I warned beforehand to give witness of everything that had passed; still, they said no more than what the governor wished, by which I am insulted, ashamed, and surprised beyond manner. Notwithstanding their great friendship with him, and that they know how to gratify him and be gratified by him (of which would to God there were not so much to murmur at in the community, because of the great aid they render him in ruining it), still I am consoled, and I praise God for everything. With this and, as has been declared publicly, with the advice of an advocate, to whom he gave an

appointment so that he might be made judge of vagabonds—and who was, as is said, urged and even persuaded for it, that such action was not to arrest me, but only to intimidate me—the governor issued a warrant for arrest, and seized me. This was done while all the Audiencia was in a body, near the chapel where mass was being said, and about to go on general prison inspection, on Palm Saturday—although he had no sufficient reasons, as I told him so that he should not do it, as well as to the rest of the Audiencia so that they might discuss it. He sent me to the cabildo quarters, which are in the public prison, where he set over me seven soldiers of the guard and a corporal, with orders not to let me talk with any layman, especially any scrivener, and not to let me have paper and ink to write. Besides that guard, he set other soldiers in the street, so that I might not escape through the windows, as I believe. I am also told that the corporal had orders to kill me if I tried to escape, although I do not know what truth there is in that statement. But none of the orders given were more than oral, for the governor did not want them set on the records. Imprisoned in the above manner—on Palm Saturday, when [even] highwaymen are set free—he kept me prisoner during all of Holy Week and Easter, and two whole months—with the greatest scandal that, as I have heard, this community has ever had—until many religious, servants of God, and the archbishop, went to him to persuade him, and to undeceive him as to the gravity of the act that he had committed. But they obtained no beneficial result from it; on the contrary, considering as well founded the fears that they inspired in him, and thinking to justify his crime, he began to take a residencia of all my life. That lasted almost two months, and he summoned witnesses, and many of them, who told all that they knew about me. In order to persuade them to go into details, perhaps, as to what he desired, he proclaimed that I was not to be set free or to be an auditor any longer in the country; but that, on the contrary, he was going to place me aboard ship. By those efforts, and others—not only by demands on the one hand, but by fears that he inculcated through third parties, as has been told me, on the other—he obtained a great number of witnesses. However, he discharged many of these, in anger at them because they told him, with forcible arguments, that they were Christians, and that he should not involve them in matters with which they were unacquainted. Others of them, who tried to say, as was thought, many things that appeared to be in my favor, were not allowed to say these. All that took place under the efficient management of Pedro Muñoz, court

scrivener of the Audiencia, with whom the governor was hand in glove, as I have said. For, in order to do it, I am told that he suppressed the heading of the process which he had before made on account of only that word, and substituted another in its place which comprehended in its scope all the discourses in the life of a man—so that it might not be understood, as I believe, that he had made so great a mistake at the beginning, and for other objects that the governor will know. Notwithstanding that, and his cruelty, violence, and force, and the fears of the witnesses, I trust in our Lord that He will not have permitted them to give false testimonies against me, although the outrageous manner in which the governor proceeds, and the so mortal fear that all have of him, makes that much to be dreaded. Finally, at the end of the two months of so serious and scandalous an imprisonment, our Lord was pleased to perform a miracle for me, through the intercession of the Virgin, our Lady, to whom I attribute it (and that miracle is not the first that she has performed for men as unworthy as I). It occurred thus: One day I dressed myself in my usual manner for going to the Audiencia; and at ten I went out among all the soldiers who were posted there, and went down the steps at my usual gait. In the same way, while in the prison, many people were round about, and in the public place where one goes out of the prison were many more; but I passed through the midst of them all to the college of Sancto Thomas. Next day I went thence to [the convent of] St. Dominic, which is on the other side of the wall, where I remain a refugee.⁵ The convent is quite far from the prison, and no man spoke to me at all; on the contrary, those in the square accompanied me. Afterward the soldiers and guard (whom God was pleased to stop, I know not how) must have returned to their senses; and they came after me, when I was already near the church. Ascertaining what had happened, some went to the church, and the governor arrested others. He, as I have been told, ordered all the camp of soldiers called to arms, as if it were for the Dutch, with the intention, it is said, of taking me out by force, even if he should destroy the college. However, he restrained himself to sending two companies. It is even said, further, that all that day and night they surrounded the college, under orders not to allow entrance or exit to friar or anyone else, or the entrance of food, until the archbishop, at the instance of the friars, persuaded the governor to withdraw the soldiers. I consider as a miracle also what happened with him. Since I have been in [the convent of] St. Dominic, I have heard from several persons that the governor was quietly trying to have me killed by a

certain agreement, which would have been very easy for him had not God prevented it. However, although that is not very well known, nor do I believe it all, yet it could be feared from him, and from his great desire to be free from my witnessing his acts on occasions of defending the justice and service of my king, since he could not reduce me to take a path contrary thereto. For that reason, I have tried with peculiar care to have God's zealous servants commend him to God, and petition Him for the governor's reformation and prudent action, so that he may not fall into the deeper abyss of miseries. Then the governor ordered my property to be sequestered, and they went to my house and took an inventory of all my books and the other treasures that I possessed, even to the very clothes of my wife, and my salaries—just as if I were a private citizen and not next [in authority] to your Majesty and the royal council, as I am; as if I had committed some crime, and he had authority to proceed against and punish me, he saying that he is the aggrieved and proper party; and as if, besides, he could be judge with so great violence. He had me summoned by edicts and proclaimed through the public streets, an action that has scandalized this community. But, notwithstanding his hostile demonstrations, he cannot satisfy himself, for all of which I have tried to give many thanks to God, considering that I am suffering thus for [the sake of] justice, and for defending the service of God and of my king. In regard to that it must be considered that, although all those lawless acts, insults, and violences to the private person of Don Alvaro de Messa I consider as referred to God, nevertheless it is a serious and intolerable matter to persecute a minister for being loyal to his king. For the sake of the respect and royal authority of your Majesty which is so offended by those qualities in your minister, on account of the public scandal, and for the conservation of justice and the security of the country, and in order to avoid disservice to God and your Majesty—all which is attained by the punishment of the guilty, by which the good would be encouraged and those who are not good would fear—an exemplary punishment seems very necessary for the governor, and for me a reward and honor for the affronts and hardships that I have suffered, especially in this country, where, because of the absolute procedure of the governor, no attention is paid to your Majesty's royal orders, and one trembles to displease the governor, without more reason than that the latter desires such and such a thing. And because for many years this has continued to increase, very justly may one fear that, if it be not punished, it

may reach such a point that the remedy will be difficult and ever miraculous. To moderate the enormity of the circumstances of my imprisonment and the grave scandal existing hitherto throughout the community (and I think that it will exist until satisfaction can be made for it), his guardian angels—one of whom is Don Juan de Alvarado, who has been fiscal and whom your Majesty ordered to be banished hence; and who was irritated because I had not cloaked his residencia, about which I am writing your Majesty in a separate letter—and others who are of the same sort, advised the governor to make use of an ordinance which is one of those of this Audiencia, never used and not even remembered for a long time, and which is as follows:

”Item: I order that my president of the said Audiencia try the criminal causes of its auditors, together with the *alcaldes-in-ordinary*, notwithstanding the ordinance that rules the contrary.”⁶ He availed himself of this to summon the *alcaldes-in-ordinary* and to cause them to sign all that he decreed, for they were present at nothing else than the signing of what he was violating—both with witnesses and without them, when they were not persons who were mere creatures of his; for, when persons are elected into the *cabildo*, nothing but what the governor wishes is voted. Further than this, if they were persons of greater obligations, and more exemplary in life and conscience, I think that they would do the same, although it might even be in a matter of greater weight; for, as I have told your Majesty, the more than violence and force that the governor holds over their minds and wills is incredible, although evident. Not all dare to resist at the peril of their security and life, and of being imprisoned, as I was, for the service of your Majesty. They, hastily judging, differentiate between the future hurt, which may not come to them, and the punishment which they regard as a present hurt, namely, to suffer for God and their king. Besides, as they also are in the deal, they have their advantages, by which they are all blinded. For to whoever can see, and to him who desires the light of heaven that he may succeed, not only is the ordinance not obscure, as they say, but quite clear, since it does not give authority or contain words for arrest or process; nor does it in any way alter the law. Therefore, those nearest [to your Majesty], as are the auditors, cannot be imprisoned or proceeded against except by your Majesty or the royal Council, or by your order. Nevertheless, the president, in virtue of his superintendency over the Audiencia, may ordain

to the auditors what may be just and reasonable in matters that pertain to the government and its conservation; and even, in the heated arguments that are wont to arise between the auditors, has authority, in case the nature of the affair might require it, to retire each auditor to his own house, until they make up the quarrel; and, should he deem it advisable, he may inform your Majesty. For the ordinance does not say that the president and alcaldes shall proceed, arrest, sentence, and execute justice in criminal causes affecting the auditors. All that, in my opinion, was meant to amend the express privilege of law as contained substantially in the *corpus juris* [civilis];⁷ and even then serious causes would have to be understood by criminal causes; *ultra multa cum tiber^o farsnaci e regni col. 9, tt^o 4, p^o. 3.*⁸ But it says only that the governor shall try criminal causes, which means that, in crimes that are not such by reason of the office, but personal and serious crimes of the auditors, he shall investigate, together with the alcaldes, and advise your Majesty; and the word “try,” instead of meaning to arrest and execute justice and other equivalent things, only denotes simple jurisdiction which belongs to civil cases, and not authority, either pure or mixed.⁹ Otherwise your Majesty could avoid the visits and residencia which you send to the Audiencia. Accordingly, to try criminal cases means that they be treated civilly without allowing them to be [cases for either] pure or mixed authority, by arresting or proceeding; but only to investigate and advise your Majesty, except in capital causes that have the capital penalty. In such cases it would be advisable for the Audiencia, and even for the president alone, to secure the criminals, if they should be auditors and nearest [to the king], but not by virtue of the ordinance, but by virtue of the ordinary authority of law, and the privileges of public protection—citing [the paragraph] *ne delicta*, etc., in case that it was unable, because of the crime and the person, to be secure in any other way than by imprisonment which befits the crime, and in accordance with the teaching of the law *divi fratres fin ff de poen.*¹⁰ Therefore the Audiencia ought to arrest the governor for four murders that he has lately committed (and which will be told later), solely to assure and advise your Majesty, with judicial consideration, so that you might decree your pleasure in respect to his person. But [they ought] to punish his accomplices, who were numerous, and who are not near [to the king], but most of them men who, without that crime, deserve to be severely punished for others; but they are all passed by, in virtue of peace and harmony, by Licentiate Hieronimo de Legaspi and Don Juan de

Valderrama, the auditor and fiscal, who are on good terms with the governor. [Indeed, these men] now constitute the Audiencia, because Don Antonio Rodriguez has retired to his house, and is sick because of the insults cast upon him by the governor at a meeting (which I shall relate later); while I was arrested when it happened, and am now in refuge in the sanctuary. In order that all that may be done well, the governor arrests me and insults me—although, I am, by the mercy of God, guiltless of any crime, capital, moderate, or the least, and even without the slightest dispute in the Audiencia; but only because my character and the obligations of my conscience do not allow me to lack one jot in my service to my king—under pretext that by not consenting to the things that the governor imputed to me, I told him that what he was saying to me was not so. Had I shown any want of prudence in my defense—which I could have done, and which I think another would have done, who would not have endured it as did I—I would have been excused, and he would have been guilty in making himself the judge of his own cause—the more, as there was no fault or injury; or, even if there were any, it was not to the tribunal or to his dignity. I do not know, Sire, [of a case] even with full authority from your Majesty in regard to visit and residencia, when one has ever seen an auditor arrested and proclaimed, even though he had committed many serious crimes; and when, as has been told me, they shuddered with horror at the men who did it. However, I would better leave this matter now, and put a stop to this particular, rather reproaching myself at having digressed to discuss these private details (although with so great limitation), since I am talking with so exalted a tribunal, and to so many grandees and to so gifted men. For that reason, I do not dare allege rights or continue, but only to petition your Majesty to be pleased to have your royal provision issued with the gravest penalties (nevertheless, I fear that those penalties will not be sufficient, from what I know and what the community knows of the governor), so that the governor may release me; and ordering him not to molest me with any processes or causes whatsoever, so that I may attend to the affairs of my office as auditor, freely, as well as to those which your Majesty has assigned to me. [I also ask] that the royal officials pay me all my salaries,¹¹ for the time while the governor has prevented and kept me by force from exercising my office; that the governor restore to me my property that he has sequestered; that, if it be sold, I be paid for it; that the governor leave my house that he has occupied for two years, pay me the rent for it, and go

to his own house, since your Majesty has assigned it to me and the other to him; and that, if the governor should have drawn up any acts, they be sent to the Council immediately. For I have not been able to get them from him, nor is there any one who can get any testimonial from him of anything. On the contrary the governor has, since I have been in [the convent of] St. Dominic, seized certain petitions presented in the Audiencia before Licentiate Legaspi, who is there alone, a thing which before could not have been possible; and has refused to return them under any circumstances, in accordance with his usual custom in such things. I trust, God helping, that if the governor sends the testimonies by themselves alone; without considering his own inability to do it, his violence, and the judicial substance, your Majesty, if so pleased, will find in them a disposition to punish him severely, and to condemn him and the alcaldes; and to order me to be paid many damages and costs which have been imposed on me, rewarding me and granting me great favors and honor. For without any other investigation or information from me, or from others, I think that you will see very clearly the reasons and objects that, as I have said, have moved the governor to commit so atrocious an act as he did in my imprisonment. However, it is also well known that the following reasons have influenced him.

First, the governor, as above stated, was angered because, when I was judge of the probate court, it should happen that I should collect that property of Licentiate Andres de Alcazar, because of the latter's death. Licentiate Legaspi was angered for the same reason. For both of them, as is very well known in this community, would have liked that to have happened when Licentiate Legaspi should be judge, and they know why. I dare only judge what is said, and what I see and hear outside, although there is so much grumbling at their objects, and at the wealth that they have retained for this, that it scandalizes me. However, I do not dare to believe it, in order to say whether it be true that the reputation and envy of each one of those two men that exists in this community, obliges everyone to form his own opinion of it. Desiring that the care of the fund and the office pass to better hands than mine, they thought that it would be done well if I were arrested. Accordingly, the governor took this as his guide for action, so that, while I was a prisoner, the care of the fund might be transferred to Licentiate Legaspi. The governor alone appointed the latter as probate judge, although

I still had one year to serve, and at the fulfilment of that time it pertained in turn to Don Antonio Rodriguez; and then all the Audiencia exercises it and not he solely, by virtue of express orders and commands of your Majesty. Thereupon, the governor, in one way or another, together with Licentiate Legaspi, although no layman spoke to me in prison, permitted me to be notified to deliver the keys and the property. But I, fearing, as a man, what others feared, said that I had to give an account of that property, and that since I was a prisoner, I could not do so; and that he should free me, so that I could attend to my office and fulfil the commissions with which your Majesty had charged me—namely, the residencias of Don Juan de Silva and Don Juan de Alvarado—since I had committed no crime for which I should be arrested; and adduced other reasons why I could not deliver the key because of the risk that that property would be running should the key pass through other hands. As he thought that that was insufficient to obtain his will, they immediately added another reason according to which it was advisable to borrow from that fund thirty thousand pesos for your Majesty's service, under pretext that it was to be used for the despatch of the fleet then preparing to sail. [But this was done] in violation of a decree of your Majesty ordering that the president and governor shall take no money, in small or large quantity, from the fund of the probate court, for any cause whatever. By the report of that fund your Majesty has been informed that they are wont to draw that money for their trading and personal advantage, as is murmured openly. That occurred in this instance, for with the above-said and with other formalities, the governor [broke] the lock of the chest, ordering thirty thousand pesos to be extracted from it and the rest delivered to Licentiate Legaspi, probate judge, whom the governor had appointed. They went to my house to do it. They left a guard of six or seven soldiers under a corporal, day and night, to guard the rest of the property, namely, a great quantity of gold and jewels. Consequently, my wife was compelled to leave her house that night, and went to the house of the widow of Doctor Juan Manuel de la Bega, until she found a house and moved into it, leaving the house to the governor. I think that the latter's insults and discourtesy even produced considerable anger in the negroes. Even yet, a period of four months, the soldiers are guarding the chest, and will not allow me to do my duty, and do not deliver it to Licentiate Legaspi; for as is well known, they are keeping it for a better opportunity. This affair has much surprised this community, and the litigants in the court are calling out, although they are

assured that it is not without foundation; for they cannot wish to have news taken in these ships that the chest was handed over, and that they did with it what is suspected, which will be seen later. The thirty thousand pesos were not intended for the fleet, for the fleet did not sail, nor is it expected that it will ever sail during the governor's life. Neither was it used as a means of help for the infantry, who go complaining through the streets. Indeed I cannot tell whether any one can say with certainty what has been done with that sum; although it is said that another very large sum, which the governor obtained from the citizens almost by a forced loan, was spent in the preparation of the ships in the port—but which did not sail, as has been said. However, some assert that the governor divided them, he himself taking thirteen or fourteen thousand pesos on the account of future salary; and that in like manner he shared it with Licentiate Legaspi and the fiscal. God showed me especially great favor in my being able to keep the account-book of the fund in my own hands through the efforts of a good Christian, the defender of probated property, for my security of what had been placed in and what had been disbursed from the fund. For nothing is placed in or spent from it, except by notary's authority, and the presence as witnesses of those who guard the fund. If they were to seize the book from me, I doubt not, Sire, that they would do me signal harm, and because, as I have said above to your Majesty, the governor can do whatever he wishes.

Another reason alleged for my arrest is because it is affirmed that, the governor planning as he did to kill his wife, my presence in the Audiencia would be a decidedly great inconvenience. For it is known, notwithstanding the few successes and works [that I have accomplished], through certain good desires that will have been recognized in me, that since I have been in the Audiencia, I endeavor as much as possible to see that affairs are managed with due regard for law; and that, had I been present in that so serious matter, I would have done my utmost; and what I ought to do, as would be fitting for the service of God and of your Majesty. That incident—which, I think, I cannot avoid relating, as one having accurate information—was as follows:

Having arrested me with the haste above mentioned, it happened that the governor—having planned, so says common rumor, the death of his wife—circulated the report one afternoon that he was going out of town to a place

called Cavite. Departing that afternoon, he returned at night. Having notified the guards and soldiers to that effect, he climbed over the wall by means of a ladder, and went to the house of one of the companions who went with him (for many of his adherents went with him, and some who were hired). Going with them from this house, he stationed men at the place where he had planned that his wife would come with a young boy whom she sheltered at her house, and in whom she had confidence. This boy persuaded her to go out dressed as a gallant (a very wrong act, although she had been persuaded by the certainty that her husband had gone to Cavite), to the house of a man named Juan de Messa, who had been brought as chief clerk by the factor, Dionisio de Castro Licon, and whom the governor suspected of adultery with his wife. Arrived at the place above mentioned, the governor saw her coming with two men, one of whom is said to have been Juan de Messa, and the other his friend. Advised by the young lad that it was she, for he accompanied her in the street for some time, where he left her with her companion and went to give account of it to the governor, the latter went behind her with the retinue above mentioned. Arrived at Juan de Messa's door, which is quite distant from that of the governor, he let them enter, but went in behind them before they shut the door. Mounting the stairs with some of his men behind Juan de Messa and his wife, who had ascended, and leaving the others below with the other friend who had come as companion to Juan de Messa, the death of his wife followed, as did that of Juan de Messa and of the latter's escort, a pilot who had come from Castilla last year. They were killed up stairs and down, as I have said, and because the governor had taken possession of the streets, and stationed soldiers there with orders to allow no one to pass. The soldiers killed a young lad who tried to pass, or wounded him so severely that it is said that he died. Notwithstanding the unseemly hour, the people came running out at the outcry and clamor especially those from the nearest houses. They saw and noted everything with fairness, and consequently it has been published that the chief murderers were those whom the governor took with him, both those of his wife and of the others. That has seemed in this community to be a very lamentable occurrence. Then the governor went to his house after the event and the matter was immediately known throughout the city. Thereupon Licentiate Legaspi and Don Antonio Rodriguez proceeded to make investigations. What they began to do was, it is said, to furnish proofs of adultery. They have managed to do this by great efforts, and that with the

criminals free, and with the power of the governor. And I am told that the governor ordained what had to be done, namely, to make no investigations against the dead woman. What is understood is, that many fine things have been done in the records, for they say that they have expunged, erased, and copied things according to their pleasure, the notary in the cause being the governor's most devoted follower, Pedro Muñoz, secretary of the Audiencia court, as above stated. In everything has always been done what the governor has ordered and commanded—especially by Licentiate Legaspi, for Don Antonio withdrew then and refused to do anything further, at seeing how the governor flinched from everything. All the criminals go about and take their pleasure, thus occasioning much reproach. Will your Majesty consider what you shall be pleased to order done in this matter; for there is much talk of the hatred and great and long-standing enmity of the governor to his wife, and of the evil life that he led her. It is said that he had already given her poison three or four times, from which she escaped by antidotes that she took; and that one of her women, to whom she gave the remainder of a little chocolate¹² in which the poisons were administered to her, died within two days or so, because she did not take the antidote, while his wife escaped because she had done so.

Another reason alleged for my arrest is, that there might be no occasion or opportunity of [my] giving information to your Majesty, and that that accounts for the hastiness of the imprisonment; and that they would not allow me to touch pen to paper, having been warned of the letters that I wrote to your Majesty—which, as above stated, were seized from me. These have incited him to cruelty, and increased in me the suspicion that was told me after my arrival at [the convent of] St. Dominic, namely, that he tried to plan my murder there. That is the fear with which I have written, and in which are all those who give information to your Majesty, because of the vigilant measures taken to seize the letters.

Another reason alleged is, that I might not push forward the residencia of the fiscal, and send it to your Majesty; for, as considered by them, it must have been expedient for them that I should not send it to your Majesty; and because I had not taken that of Don Juan de Silva to his taste, awaiting an occasion for it when he should not be present and when he should have left this city sometime, for if he were present it would be impossible to take it.

Another reason is because, as he has seen your Majesty has been pleased to show me the favor to commit that residencia to me, and his conscience accuses him, he fears (as is reported) that it or the visit is near; and fearing that your Majesty would show me the favor to commit it to me, and fearing justice, because I am not a person who could overlook matters against your Majesty's service, it has seemed to him, on the one hand, that if I were arrested and not in the Audiencia, it would be easy by active efforts to get hold of the letters and seize and conceal the decrees. On the other hand, he thought by means of the acts of violence and insult that he has used to disqualify me for such a responsibility with your Majesty, for which effect it is understood that he has also designedly made and procured my arrest. With what has been stated above (in which I could go into further details without charging my conscience), the case can be duly estimated by mentioning the particulars of one point, concerning which I have to say the following.

This country is at present in the most wretched condition imaginable. Moreover the governor has recently obtained his desires, namely, to be without an Audiencia, for Licentiate Legaspi is the only one in it. For, besides having driven me from it, it seems that he has also removed Don Antonio Rodriguez by treating him very ill and by grossly insulting him, because the latter petitioned that the acts by which the governor had arrested an auditor in the manner in which he had arrested me, be placed before the Audiencia. But the governor refused to give them; on the contrary, he has taken away every one of several petitions presented in the Audiencia, not wishing them to be seen publicly, for which arbitrary act redress was demanded. The governor recognizes neither justice nor king, but only his own absolute will and pleasure. For that reason, shortly after my imprisonment until now, Don Antonio has been and is quite unwell, and has less hope of going to the Audiencia for a long time. Don Antonio does not deserve that, for in many matters and on many occasions have I recognized in him very good desires and works for the service of your Majesty. Consequently, even if Licentiate Legaspi remains, that means to have no Audiencia, when one considers the close relations that exist between these two strong arguments, the disposition of the governor, and the way in which he treats the service of your Majesty. For the people generally say of him that it would be a miracle if another worse than he

could be found. It is said of Licentiate Legaspi that he is the worst official that your Majesty has. The same has been said of Don Juan de Alvarado, ex-fiscal, and that is known throughout the country as a public matter. All three are so great friends that some call them “the union of the saints,” so that, of a truth, as the people understand, not one tittle more than the governor wishes ever happens. Consequently, a number of litigants are holding back their suits until there shall be an Audiencia. There is much outcry at there being no one from whom to demand justice for the insults cast on them by the governor, for, finally, if there were men to defend the service of your Majesty, the governor would not do whatever he wished, although they would suffer and endure many insults for it. The fact is that if all men had a desire and resolution to suffer hardships and even to die for justice and the service of their king, the community would suffer less hurt today, for the governor would not be so daring. And he would not in that case have dared to arrest me, had not he had the consent of Licentiate Legaspi in his grasp; and whenever he needs it he is quite sure of it, in exchange for the advantages that, as everyone knows, the governor has given to him and his sons and retainers—from which I have tried many times to divert him, constraining him by the fidelity due to his king, so that he take strength and write your Majesty. Although I have brought him over on some occasions, my effect has lasted less time than it would last if I had the opportunity and occasion that such things have when one goes straight to God. On the contrary, I think he gets along better without me in the Audiencia, both he and Don Juan de Valderrama—to whom I said what I could say to a brother as soon as he arrived here, because I saw the state of affairs and thought to better them somewhat. But I have indeed done little.

My conscience has made me write at such length, and although there is much to make me continue, I think that I shall have performed my duty with the above, so that all may be considered, provided your Majesty be pleased to send us redress with the haste that so serious matters as these require, by sending us a leader who is a good Christian and one very zealous for God’s service, and who will only strive to obtain that and to serve his king, and not the contrary. For with that the Audiencia will have its due place, and the auditors will attend strictly to their duties, and will conduct it for the peace and conservation of the country, and for your Majesty’s service. It is also important that your Majesty send an inspector

here, inasmuch as the country is so full of schemes, tricks, and contrivances to destroy it and finish its ruin; and since your Majesty, as so holy a king, cannot abandon it, after having planted therein the holy gospel, and consequently, having sent the so great fruit of so many souls to heaven. Besides this, if it has peace and is free from enemies, and religiously governed, it will give the greatest wealth and grandeur to your Majesty that can be imagined. It is advisable that such a one be a picked man, and that he be such a person as is necessary, as I have written your Majesty at other times: that he be entirely disinterested, and a good lawyer, with clean hands; that he have great authority in regard to war and peace, and over high officials in both, and power to suspend, in case he deem it advisable, the most serious penalties for your service for long periods, in order to investigate the truth, so that he may understand and learn the tricks, crimes, and criminals, and that he may know the persons in whom he can trust—not only as his agents, but also so that he can ascertain how your Majesty can best provide suitable measures [for reform]. For in no other way can the holy desires of your Majesty, which are those of God, who rewards the good and punishes the evil, be obtained. If he be not such, he will be confused during his inspection by schemes, impositions, and covetousness, but if he be such, he will be the consolation of this country, as I trust in God, and your Majesty will hold it securely in order and justice, in peace and true obedience, and with renown. Your Majesty will then know the evil and the good men, and the excesses of many, and mine. You will obtain great possessions for the royal exchequer and render great service for God our Lord. But otherwise, if he be not such a person, he will serve as a help to the ruin of the country, and as an encouragement to future officials, especially the governors, so that they may act worse. And since thin country has gone from bad to worse because of the officials that it has had, especially the governors, until its present condition has been reached, if your Majesty does not visit an exemplary punishment on those officials, in accordance with each one's guilt, it is quite clear that those who shall govern in the future will complete its ruin. For the security of that, I think it will aid much for your Majesty to send a stringent order to Mexico and to Sevilla, so that the property sent by the governor, and what he has sent by third persons under various heads, be investigated, which can be ascertained with reasonable efforts; and that it be secured by levying an attachment on it, or at least by placing it in a depositary; or as your Majesty may deem

best to order it, for it is understood that such property is in very great quantity. Although I do not dare to affirm this, there are some who with the information and even more that they have of the coming and going of these things relating to the governor are persuaded that the sum [thus sent away] will amount to little less than one million [pesos], and at least to a great sum. I think that all that sum will be necessary, if his inspection or residencia be well made, and that much more will not suffice for the pecuniary part. To do it your Majesty will have sufficient grounds by reason of the advices, letters, and report that have already reached and will reach you concerning his affairs. Will your Majesty decree what is most to your royal service.

I began to take the residencia of Don Juan de Alvarado, as soon as I received your Majesty's decree, and I give account of it in a separate letter that I am sending to your Majesty with it.

Of that of Don Juan de Silva, which your Majesty also ordered me to take, I have informed your Majesty in other letters, that that order reached me jointly with that of the fiscal, and that for certain reasons of convenience I deemed it best to take that of the fiscal, and afterward to enter upon that of Don Juan de Silva. The country has been so scandalized by what occurred in that of the fiscal, Don Juan de Alvarado, because of the violent demonstrations made by the governor in favor of the fiscal, that many witnesses of those who swore, came to me to ask me not to take Don Juan de Silva's residencia, because there was not one man who would tell anything that he knew when summoned. Some of the witnesses they tried to kill at night, and others fled the city, having been threatened, it is said, by order of the governor, after the charges against the fiscal were published, until which time he and the governor thought that there could be no witness who would dare [say anything]. On that account the demonstrations that arose were greater, and I was requested, considering the condition of the affairs of the country and the many objects of the governor, to do the same in the residencia of Don Juan de Silva. [This was desired] on account not only of the many connections that it must necessarily have with many cases related to it, with which he has had connection during the time while he has been here; but of other private persons, his friends, who are involved in the residencia, especially one Josephe de Naveda Alvarado, a relative of the

fiscal, who was secretary to Don Juan de Silva, and also served him in other offices of great danger. It is well known that this man, for Don Juan's sake, has committed the most dangerous and insolent acts that one can imagine, during that time and at present. He is also secretary to this governor, whose especial favor he enjoys. Whence I am persuaded beyond all doubt that nothing good will be done, for what the governor would not do through Josephe de Naveda and the others is much more than what he would do through the fiscal. It is not many months since, because of a royal decree that your Majesty sent to the Audiencia ordering the investigation of the property of Don Juan de Silva and its sequestration, I found, on attending to it, a process where it appeared that this Naveda owed Don Juan de Silva eight thousand pesos. On taking it to the Audiencia to have justice done there and to have it paid, notwithstanding your Majesty's decree, the governor seized the process and kept it, forbidding us, with frightful demonstrations [of anger], to discuss it longer. Consequently, I thought it best to postpone taking the residencia until I could see whether matters would mend, which God is wont to bring about by methods unthought of— notwithstanding that the governor, under pretext of service to your Majesty, told me often to take the residencia, for, in the presence of the greatest and most serious offenses, both he and his associates would come out as if they were angels. This was the motive of the pressure that he brought to bear; and, even though he should have more crimes than the sea has sands, yet because of him nothing would be said against the others. That would mean not to take the residencia, and for me not to obey your Majesty's will, with the loss of great sums, and much detriment, to the royal exchequer; for it is certain, Sire, that those who would come out as if angels—and some of them, especially Naveda, according to the report and outcry of the country—would not pay what they owe with many lives and with many hangings. For such are the devices that the governors have used here for the destruction both of the royal treasury of your Majesty and of this country. However, with the lapse of time and hoping for opportunity, I made investigations as secretly as possible with most of the notaries in this city, inasmuch as two or three others that remain are of the governor's household—to the end, as I have told your Majesty, that they may serve his purposes. They (and if there were others, it would all be miraculous)¹³ and given with the greatest fear in the world; with which your Majesty will see that not even in secret and under oath do men dare to speak. Then continuing, the

time came in which the governor arrested me, without considering what I had in charge at your Majesty's command. Consequently everything is at a standstill, until God shall remedy it. Hence, Sire, as I have said, the obligation of conscience makes me give account to your Majesty; and I think, for a conclusion of this matter, that I am not excused from some particulars.

The first is the news that has reached this city, by way of India, that the enemy is sending reinforcements of fifty-five warships. Because the governor's disposition during this time is so worthy of resentment, as above related, it is stated publicly that, on receiving this news, the archbishop told the governor to try to prepare some warships, to whom he responded that he would gladly sell the few that he had. Hence it is feared that the enemy will have been informed of that as soon as they reached this country; and that with this opportunity, they would write, and they thought it good to come if it is true.

Secondly, that the government of this country has more need of a man who is a servant of God, of mature age and prudence, rather than simply a soldier; if there should not be readily found, a man thoroughly qualified for the warfare of this country, the least influential citizens here understand it. There are some men of great courage, and thus when the Audiencia was governing, it has had excellent successes. Consequently, such a man would cost your Majesty two-thirds less than the governor costs you. It is certain, and I consider it assured, that all the mishaps that the affairs of this country have experienced—both in this land, and in the fleets and succors that your Majesty has tried to send to it from those regions—have happened because of the multitude of offenses to God that have been committed here in other times and are even now being committed; and that all are derived from the disorderly lives of the governors.

Thirdly, that great damages result because of the division of jurisdiction between the Audiencia and captain-general. For the Audiencia tries civil cases of the soldiers and the general the criminal; but with authority as captain-general, as he is governor and president, he extends that jurisdiction as far as he pleases. He interprets the decrees that your Majesty has issued for this purpose, [to apply] even to the citizens of Manila; and when the

infantry leave this city and the citizens are stationed as guards, they are made to assume the condition of the other soldiers. The Audiencia is left without any jurisdiction, while the captain-general gets it all, notwithstanding the many offenses to God which are committed—for many wicked men are protected by the war at this time, and in a few days go out to commit greater crimes. Since the Audiencia tries civil causes of the soldiers with the plenary jurisdiction that it enjoys over the citizens (and the soldiers are citizens), on the other hand it appears most fitting that it try cases of the soldiers like those of the citizens; and that, as appeal is made from the ordinary judges, appeal be made to the Audiencia by the soldiers in cases civil and criminal—at least while the soldiers are not actually fighting, or in pursuit of the enemy. For, besides the service to God and to your Majesty that will result from such a course, the Audiencia, when there is one, will be respected; and the soldiers will not be so disregarding of what their captain-general says to them in times of peace, even though the latter be one who razes a convent to the ground.

Fourthly, that among the ordinances of this Audiencia is one (to which I referred above) ordering the president to try the criminal causes of the auditors. With that the governor has endeavored to make a pretext for my imprisonment. As I do not see the original signed by your Majesty, I doubt the truth of that decree, as occasion for it was given by people who pay little heed to conscience. With that decree, if the governor wished to destroy¹⁴ the country, and if the auditor did not agree with him, he could move a question in regard to its being cloudy and there being no sun. If an auditor should say that he thought the sun was shining, the governor would say that the auditor meant to call him a liar, as he said to me. By that means, and by similar methods used toward the others, he would, destroy them, and would keep them imprisoned three or four years, until relief came from your Majesty; and sometimes it would be impossible to send that relief for the damages that this country thus receives. Consequently, Sire, it is very necessary for your Majesty to revoke that decree, and to give the Audiencia the authority and the superiority that it has enjoyed in other times; for by doing otherwise the Audiencia can be very well dispensed with, as it amounts to no Audiencia. This is truer, since it is six thousand leguas' distance to your Majesty, and since it might happen that relief may not arrive in three years—especially since, in strictness of law, your Majesty

does not give them the authority that they arrogate to themselves; and, to him who cherishes malice, a slight occasion is sufficient.

Fifthly, that although it is true that it was decided to be advisable for your Majesty to send aid to this country, as I understand that it has been petitioned in the manner and form of reenforcement, I greatly doubt whether it is more suitable for your Majesty to send ships by way of the cape of Buena Esperanza; for the artillery founded here is the best in the world, as are the ships built here, as I have been well informed. Besides, the artillery and ships of the quality and size necessary here cannot be sent from that country, for it has been found that war is made more securely here and the enemy frightened more by the very large galleons (much larger than those sent from there), which will withstand heavy artillery, such as those built by Don Juan de Silva. Further, the woods [used here] resist the balls better; and the ships are built with special strength and by the best master in the world, as I have been told. With money and care, the rapidity with which those ships can be built is remarkable. Consequently, I think that if what is spent on the fleet be sent in money, and soldiers, and sailors, by way of Nueva España in trading fleets, and by way of India in the ships that sail from Lisboa, it would be more expedient—notwithstanding that it is said that the infantry that come by way of Nueva España desert at their arrival there; for with good judgment and care that difficulty would be remedied. Will your Majesty decide what is most advisable.

Sixthly, that the fiscal of this Audiencia fills the office of protector of the Indian natives, and of the Chinese Sangleys who come from China to this country, for their advantage and trade, by virtue of a decree issued by your Majesty. Your Majesty assigns him no salary, for it seems to be your intention to have him attend to that duty with his salary as fiscal. The governors here, in order to control the fiscals, so that the latter may not oppose the things that the former wish when these are in violation of your Majesty's service, assign them an annual salary of eight hundred pesos at the cost of the Chinese Sangleys. For that purpose a communal fund has been established, and each Chinese is obliged to deposit, I believe, two reals apiece annually in that fund, and from that fund is assigned the salary of the fiscal as protector. As the Chinese are so numerous, the sum amounts to considerable, although it is not all paid to the fiscal. In the collection and

method used, considerable annoyances are experienced. Besides, there is no authority to levy that money, for your Majesty has not assigned it, nor is the governor able to do it, although he give your Majesty a pretext for it. The worst thing is that that sum has never served, nor does it serve, other purpose than to flay the Sangleys, for besides that it seems incompatible for one to be a protector on the one hand, and one who seeks to act as prosecutor on the other, it seems that the true protector is the good judge, the Audiencia [or] the good governor. But as with the protector they never escape from spending their money, but rather, I think, spend more, and the most who have suits, waste their poor resources on the procurators and lawyers, it seems to be a matter worthy of reform, and that the Sangleys either should have no protector who is not a protection to them, but a trouble (or at least for most of them), or that your Majesty order that he perform the duties of the office with his salary as fiscal; for I certify that many offenses to God will cease. And since they claim that it is not an office of honor, there is a mystery therein, especially since I, having charged against Don Juan de Alvarado that he was taking that salary without orders from your Majesty, the succeeding fiscal knowing that, and Don Juan de Silva having revoked that communal tax, the preceding fiscal has agreed with the present governor that the communal tax on the Chinese be again established, and that the salary be assigned from it. That is a very flimsy pretext, so that the fiscals may not perform their duties faithfully against the governor. Will your Majesty order what shall be most suitable for this particular, and for whatever else is mentioned herein.

Lastly, I have made known by other letters to your Majesty that from my arrival in this country, although I keep about, I have ever been ill and a sufferer from sickness, besides which I have had several dangerous illnesses in bed, so that I cannot serve your Majesty here as I desire. I trust, God willing, that I shall have better and better occasions to serve your Majesty in another place, for which reason I petition your Majesty to be pleased not to consider my slight services, but only my good desires by promoting me to the occupation of greater favors and honors, and especially to satisfy me for the insults that the governor has cast on me in your Majesty's service, and for the many dangers through which I have passed in my endeavors to have your Majesty served and obeyed loyally and as is fitting.

As to what pertains to the seizure above mentioned of the great quantity of property that the governor is said to possess in Mexico, I must warn you that, in addition to what was said, the report originated publicly, in the beginning, in this city that the governor was to go in a ship that he was intending to despatch by way of the cape of Buena Esperanza, with a quantity of cloves which he was expecting from Terrenate. That was founded on what they say about his knowledge of how serious are the things that he has done, and that, fearful of punishment from your Majesty, he did not intend to await it; and also because this year he has sent whatever he could to Nueva España in the ships that sailed, lessening even his number of horses, as is said; and [it was rumored] that he was about to go by way of the cape of Buena Esperanza with the cloves that he was awaiting from Terrenate. But inasmuch as the cloves from Terrenate did not come, it is now said that he is not sending the ship, and that he must have taken new counsel. Consequently although the flagship of the two ships that were going to Nueva España was wrecked, still in the advice-ship that he despatched later the governor sent a huge quantity of goods. He sent in the almiranta which got away safely and took the lead, a person to look after and care for everything, namely, Don Fernando Falcon, whom he made captain of infantry, and to whom he gave great profits for that purpose. It is said that he had orders to look after everything, and to ship as much as possible to Castilla; as also, because he must fear that it will be possible, on account of his great offenses, for your Majesty to be informed of the great wealth that he has sent and his conscience will accuse him. Will your Majesty order those goods to be sequestered—as is said here, all that [he has], without taking account of the one hundred and thirty or so boxes, which, as is notorious in this city, he lost in the flagship. This is added new to the letter that I sent in the ships of Nueva España, of which this letter is a copy, and which I am sending by way of Yndia. Will your Majesty provide, etc.

LICENTIAATE DON ALVARO MESSA Y LUGO

Sire:

The letters that will accompany this letter are duplicates of last year, both of what I wrote via Mexico and via Yndia; and although at that time I wrote as

I did in them many more and better things can be said now. For besides the fact that lawless acts are so prevalent, they are increasing with the presence of their master, who, to be explicit, is the governor. It is advisable for the honor and respect of your Majesty, to put a stop to as much as possible. For that reason, I shall merely touch upon the following particulars of what is new, with all possible brevity; for in order to satisfy your Majesty some things are requisite. Hence, Sire:

1. First, after fifteen months of imprisonment and retreat, while I was very heedless, and distrustful that the governor would take such action (although very confident in the mercy of God), the governor sent an order to me at St. Dominic to come out and assume my duties. Although I hesitated considerably about going out on account of the great peril in which I was placing myself, the force of your Majesty's service drew me out, a fortnight or thereabout before the arrival of the ships from Acapulco. I was encouraged considerably by the religious who assured me that the whole town was clamoring for me to go out, except certain persons who hate justice. Consequently I persuaded myself that I would be doing your Majesty a service, and for that I did not think that I was doing much in endangering myself, since I shall do my duty in losing my life. It seems miraculous, and there are few who understand how the governor came to do this, for, although it is true that he fell out with Licentiate Legaspi, on finding that the latter while enjoying so great friendship with him, had written against him; and because of the great friendship between Licentiate Legaspi and Licentiate Juan de Baiderrama the governor's displeasure was also extended toward the said Licentiate Baiderrama: still they maintained friendly relations, although the governor ceased to extend to him the accommodations and profits of former times. Although it is reported that the governor made numerous investigations, I have not heard from one who knew the whole truth that he did it with violence, but with great mildness, giving the witness liberty to make his deposition. On the contrary I have always understood, Sire, that he made no further investigations, nor has he wished to do so; and I even believe that it was done for reasons of state, in order not to irritate Licentiate Legaspi too much, in case that the latter should take part in his residencia, for the governor must consider him as a revengeful and hot-headed person. But Licentiate Legaspi, fearing that the governor intended to arrest him, withdrew into the [convent of] the Society

of Jesus. It is said that on that account he allowed me to come out. All persons of good judgment are not sorry for it, especially since they know the inclination of the governor, who, it is feared, would not lose much pleasure if all the world were destroyed—although in his falling out with Licentiate Legaspi, a matter that began some four or five months ago, it is understood that that has aided considerably in his having repented of my imprisonment and the affronts that he put upon me; for it is understood that his chief counselor and instigator was the said Licentiate Legaspi under pretext of desiring, and advising him of, his welfare, as to an associate in the matter of his duty. For that reason he did not wish me to be present, as I would be a considerable hindrance, as I write your Majesty in the duplicates. The same is said of Don Juan de Balderrama, although it is also understood that he did it with moderation; for all does not seem sufficient for the governor's relenting toward me. Consequently I consider it more correct to ascribe everything to the great goodness of the Lord, who well knows how to plan all things. What I can say, Sire, is that notwithstanding all the above, I do not believe the governor's intention a sincere one, because of what is known concerning him. I have never seen him do anything, although a good act, that did not have a private aim. Consequently I think that if he took me from prison it was for his own end. The same is true of the investigations concerning, and his falling out with, Licentiate Legaspi, notwithstanding that he says he is zealous for your Majesty's service in it, and although it is true that the deeds of Licentiate Legaspi are many and very serious.

2. Secondly, that although the governor, while I was in the Audiencia, tried to deprive the Audiencia of all authority, and the auditors gave him considerable opportunity for it (with the exception of me only, and as such he expelled me), however, during the time of my absence, he has gained such foothold and influence over everything, that scarcely has one liberty to live in the Audiencia. This is especially so in regard to myself; for although I desire and try to secure your Majesty's service, I cannot feign or dissimulate in the things in which I am unable to secure your service, although I try to flee any occasion of dispute with him, with extraordinary endeavor. Consequently, for my part, Sire, I declare that in many offenses that concern him, the punishment is deferred, with great regret, until your

Majesty send a remedy; besides, there are many other criminals whom he has sent from here, so that they should not harm him.

3. The third, which is of the manner of the above, namely, that it is said that one Gregorio de Vidaña, whom the governor despatched to Yndia during that time on his private business at the expense of your Majesty's authority—for, in violation of your royal will and your royal decrees that prohibit the sale of offices, the governor gave Vidaña an appointment as regidor gratuitously, in order that the cabildo might appoint him as procurator (for which he schemed) and that they give him a considerable number of ducados—obtained or stole in Yndia certain letters written to your Majesty by the Audiencia and despatched via Yndia in the time of Don Antonio Rodriguez, which were the duplicates of others written via Nueva España. He directed them to this city, together with other letters written by the inhabitants and religious. The governor opened and read them, with so little fear and respect that one of his adherents went about the streets publicly reading to private persons the letters that the Audiencia wrote to your Majesty. Consequently he has taken occasion to write to your Majesty with tricks and cunning, as is said.

4. The fourth is that, in consequence of this and other things, occasion was given for it to be said very openly, this year, that he opened the packets from your Majesty, which were handed to him first, and extracted whatever he wanted, if they contained anything that answered his purpose; and then resealed them and ordered the person who bore them (and whom he sent for them) to return very secretly as he had entered, and to enter a second time publicly with the packets damp, so that it could not be seen that they had been opened. In this too was involved your Majesty's new seal which they said would be found in one of the packets, but it does not appear. Therefore they charge the governor with concealing it; and all that is without the aid of authority to make investigation.

5. The fifth is that your Majesty orders by a decree that came to the Audiencia this year that the vessels that sail hence to Acapulco be not despatched late. The fact of the matter in this is, Sire, that the Audiencia is powerless to remedy that, beyond the repeated telling of it to the governor. If they should do more, besides not being obeyed by a single man, at the

least little thing, the governor would seize the auditor who said it and clap him into prison; and, as he is the sole and absolute ruler, he is, notwithstanding what has been said to him this year, despatching the vessels when he wishes, and answers that he is attending to it very well and is doing his duty. It is said that, this year as in others, he has made a great cargo by the schemes and methods mentioned in the duplicates. Others say that he has done it, because it is common talk that news came to him that in Acapulco a small casket of gold in bars, and jewels and pearls, had been confiscated from him as contraband goods, although the officials did not know the owner of it; and that one Don Fernando Falcon, who took under his charge a considerable amount of the governor's property last year, went to Piru from Acapulco with most of it, and the governor is obliged to claim compensation. Because of awaiting ships from Macan to make chests, the ships are not yet despatched, and it is the thirtieth of July; nor does anyone imagine that they will leave the islands even by the fifteenth of August. That, the governor says, is because of the enemy. Thus and with other schemes, although certain new pretenses are alleged, and with absolute power, does the governor act just as he pleases. It is impossible to remedy matters unless the governor be a man who fears God and your Majesty; for if he wishes to send depositions that the sun gives no light, as one might say, [he can do it]. What occurs to me, Sire, is that, since it is sufficient for the good sailing of the ships that they sail by the middle of July, if unable to sail before, your Majesty should set a time-limit by ordering that they sail between the middle of June and the middle of July, if they cannot sail before; and that they shall not sail after that. In that way, since it will be known that they have to sail, all those interested in the cargo, even though it be the most influential persons, the governors, will have their despatches ready. But they will not do it in any other way, for although your Majesty says that they shall not sail late, the governors do what they wish in this matter. Will your Majesty be pleased to order your pleasure.

6. The sixth is that your Majesty orders the Audiencia to send a relation of what occurred in certain crimes at Santa Potenciana. Since the Audiencia writes it through its president, namely, the governor, scarcely could he refrain from telling the truth in order not to lie. Consequently I think it advisable to answer that in this letter. What passes, Sire, and it is the truth, is that the seminary called Santa Potenciana is a house of retreat, not for

religion but for single or married women, and almost without retirement, as it has relaxed considerably. For that reason it is a cause for wonder that there are men who some years are willing to leave their wives there during their absence. Consequently, the majority of women there are mestizas. It happened perchance that Lucas de Vergara Gaviria left his wife there when he went to Terrenate as governor, as did another who went later, namely, Sargento-mayor Antonio Carreño de Baldes. It was said (and not covertly, but quite openly) that the governor solicited the wife of Lucas de Bergara, but that he was angered at her purity and virtue. Also it was said that the same thing occurred with the wife of Carreño de Baldes, although she is not considered a person of so great virtue as the other woman. And this being so, they say that Licentiate Hieronimo de Legaspi, while I was on that occasion in bed indisposed, proceeded against one Juan de Mohedano, because it was said that he had entered Santa Potenciana to hold carnal communication with a married woman. Upon my recovery, and when I went to the Audiencia, I found that Juan de Mohedano was presenting a petition challenging their jurisdiction by saying that he was a soldier. When I learned the cause, I wondered, for the woman was married and one of the chief women here, namely, the wife of the said Antonio Carreño de Baldes, who was in Terrenate. I resolved to investigate the matter, as it was only verbal, so that it might not become public. The Audiencia had made a judicial writ and secret information and merits, by a secret and outside method, without arresting Mohedano in order to exile and punish him, so that it might not be known; for by any other way it would have been contrary to law, and would have meant the irreparable loss and deprivation of the honor of an influential woman and to the blamelessness of her husband if perchance she has secretly committed certain acts of imprudence, or written papers, or made pretensions, and I do not know whether such were more than indications. At that juncture the governor took up the matter, by whom it is said Mohedano was persuaded to challenge the jurisdiction [of the Audiencia], by promises to free him; he did it, as was seen, thus deceiving him in order to avenge himself, as it is said, as soon as he had the woman with him. Thus the governor came to the session, and, with his usual heat, caused the case to be remitted to him without greater justification, as he was the captain-general. Licentiate Legaspi and Licentiate Alcazar did it through compulsion, but I, Sire, for the reason above stated, did not agree to it, and so voted in the meeting. Being then,

Sire, the leader in the cause against Mohedano and that wretched woman, he proceeded therein, as well as in another that he began against one Don Fernando Becerra for the same thing. This he did with an alcalde-in-ordinary, or with Don Hieronimo de Silva, or with both, going and coming to and from Santa Potenciana with soldiers and the torture-rack, besides indulging in other demonstrations, as they affirm, that scandalized the city—where, as this city is but small, everything was instantly divulged. And as evil men are not wanting, there was one who gave notice of a certain slander against General Don Juan de la Vega, son of Doctor Juan Manuel de la Vega, ex-auditor of this Audiencia. There was a certain report of meetings with the wife of Lucas de Vergara, auditor of Terrenate. Since the governor was also angered by her said purity and virtue, which truly are great, it is said that he considered it a good opportunity for vengeance. He himself, seeing the door opened by Licentiate Legaspi in the case of the other woman, conducted the cause. In the case of Mohedano and Don Fernando Bezerra, there was dispute; while that of Don Juan de la Vega came on appeal to the Audiencia. Since this is so small a place, and was so scandalized, and these households were ruined (for the matter was all immediately made known publicly), the Audiencia thought, since only the husband can take action in an adultery suit, and since all that had been done was illegal, because the women were immediately published, together with the investigations and intent [*yntencion*], that also in consequence of that, and the lack of proof, and because of other considerations, it would be advisable, besides doing justice in what came to their hand, to repair the honor of those influential men and women. Consequently the Audiencia acquitted Juan de la Vega, whereat the whole city rejoiced, for all were persuaded that such accusations were lies. However, as this matter is so serious, when the husbands learned of it upon their arrival, they refused to live with their wives or to enter an adultery suit, for the adultery could not be proved. Consequently, even with such an effort by the Audiencia, those families are ruined; although it is quite true that, if the governor had executed the sentence, it is regarded as certain that they would have killed their wives. This is the truth, Sire, and it could not be written in the Audiencia's letter. If other things have been written to your Majesty by the governor, they must be a part of his schemes to bleed himself safely, under pretext of your Majesty's service, as all see that he is doing.

The residencia of Licentiate Don Juan de Saavedra for the period of his fiscalship, which your Majesty orders me to take, has come to my hands. I am resolved to take it on the departure of the ships, for this residencia does not have the troubles of that of Don Juan de Silva and of Don Hieronimo de Silva, as these duplicates of the letters of the past year which I wrote your Majesty and which will be in these letters that I am writing [will relate]. In those residencias I shall make, as I say in the duplicates, efforts to take them, proceeding throughout as in duty bound, looking to the greater service of God and that of your Majesty. Thefts committed by the soldiers because they are not paid, and many other calamities of the country, I shall not relate because of what I have promised, and as that would be impossible. And also because that aids in putting an end to sorrow and just resentment, will your Majesty give what orders you please in everything.

I petition your Majesty for God's sake to please give me satisfaction for the insults and injuries that I have received from the governor for your Majesty's service, and also to withdraw me from this country, honoring me and showing me favor, for I have no strength to serve your Majesty here. May God preserve the Catholic person of your Majesty. Manila, July 30, 1622.

LICENTiate DON ALVARO MESSA Y LUGO

Sire:

The archbishop of these islands presented a petition in this royal Audiencia, in which he requested that depositions be accepted for him, by order and officially, in which he claims that your Majesty conceded to him an increase of his salary of three thousand Castilian ducados per year, in order that he may be able to support himself for the reasons that he alleges. Having officially received the depositions, what seems to have resulted from it, in brief, is that if the archbishop would regulate himself in the ostentation and authority that he exercises in imitation of others, his predecessors, he could live on his salary of three thousand ducados. Nevertheless they [*i.e.*, those making depositions] consider the said ostentation and authority as suitable to what is due the archiepiscopal dignity; and that, in order to sustain that dignity that he exercises and enjoys, an increase of his salary will be necessary, because the prices of articles for the sustenance of human life

have increased, as appears by the said deposition, which, if your Majesty please, you will order to be examined.

On considering the above and other reasons of your Majesty's service, this Audiencia believes that, if your Majesty wish, you may avoid the increase of the said salary. May God preserve the Catholic person of your Majesty. August 14, 622.

LICENTIA TE DON ALVARO MESSA Y LUGO
LICENTIA TE DON JUAN DE SAAVEDRA VALDERRAMA

[*Endorsed*: "The Audiencia of Manila in regard to the pretensions of the archbishop of that island."]

For the same reasons that move the Audiencia to present information that it will be just to increase the salary of the prebendaries of this church, the governor thinks it proper to increase that of the archbishop to the sum that your Majesty may be pleased; and not in the last place, since his obligations are in the first place.

DON ALONSO FAJARDO DE TENÇA

¹ In the original, the order of these two letters is the reverse of that given here. Although the letter presented here first is undated, sufficient internal evidence attests that its date is earlier than the other letter, and that it is the duplicate of a letter sent by the ships of an earlier year.

² So in original; evidently an ironical comment.

³ Our transcript reads “*gente Religiosissima*,” “a most religious race,” which is evidently intended for “*gente Belicosissima*.”

⁴ Colin, *Labor evangélica*, p. 159, in discussing the events of Fajardo’s government of the islands says: “And inasmuch as there were many complaints of the annoyances imposed upon the Indians during Don Juan de Silva’s term, because of the construction of so many and so great galleons, he was charged to moderate that, and to endeavor to give relief to the natives; in consequence of which, as soon as he had entered by the strait of San Bernardino, he ordered two galleons which he found on the stocks there to be reduced in size. During his entire government he was very favorable to the Indians, and relieved as many of their burdens as possible. Therefore they loved him as a father. He also favored particularly the progress of the Spanish community, endeavoring to get worthy soldiers to become citizens there—to whom, for that purpose, he granted encomiendas and offices. By that means the soldiers were reformed, and many daughters of Spaniards who were without protection were married.”

⁵ *Retraído*: one who has taken refuge in a sacred place.

⁶ See this and other regulations concerning suits that affect auditors, in “Foundation of the Audiencia,” VOL. V of this series.

⁷ The reading of this and following legal quotations of this document are due to the kindly cooperation of Dr. Munroe Smith, of the School of Political Science of Columbia University; Mr. Joseph FitzGerald, of Mamaroneck, New York; and Rev. José Algué, S.J., of the Manila Observatory. The passages allow for the most part, of only conjecture, while some portions are unintelligible.

⁸ Mr. FitzGerald conjectures that *ultra multa cum tiber farsnaci* is equivalent to “many [passages, texts, authorities?] besides in Tiberius Farsnaci.”

Regni col[lectio]. Possibly the citation is from the *Nueva Recopilación* of 1567. In some contemporary Latin commentaries the *Nueva Recopilación* is described as *Regiæ Constitutiones*; in others as *Collectio legum Hispania*. Book 9, title 4 of the *Nueva Recopilación* deals with “*los oficiales de la Contaduría mayor*.” *Regni collectio* would naturally refer to the Castilian law. Possibly, however, the reference is to some collection of laws for the colonies. The *Recopilación de las leyes de Indias* was not published till 1680; but, according to Antequera (*Hist. de la Legislacion*, p. 564), a previous collection of the colonial laws, down to 1596, was made “*en cuatro tomos impresos*;” also, early in the seventeenth century, “*Se publicó como provisional el libro titulado ‘Sumarios de la Recopilación’ general de leyes*.”—MUNROE SMITH.

⁹ *No ymperio, ni mero, ni misto. Imperio mero* [i.e., pure authority], the authority that resides in the sovereign, and by his appointment in certain magistrates, to impose penalties on the guilty, with the trying of the cause; *imperio mixto* [i.e., mixed authority], the authority that belongs to judges to

decide civil cases, and to carry their sentences into effect. See *Novísimo Diccionario de la Lengua Cast.* (Paris, 1897).

¹⁰ ff = Digest (ff was a Lombard form of D), and the reference is to Justinian's *Digest*, book 48, tit. 19 (*de poenis*) fragment 27, which begins "*Divi fratres*." The last paragraph of this fragment empowers the Roman governor (*præses*) to arrest and imprison any of the leading citizens (*principales*) who have committed felonies. It is cited as a precedent in favor of the Spanish president.—MUNROE SMITH.

¹¹ At this point the following citation occurs in the margin: *ultra plures cum Cobb lib. 3, variar, c. 13, n° 6. Bartol alias ex conducto et item cumquidam ff locat e inl c et divus ff de uauj e ex trah i egruti p. totum maxime n° 15 l uias De penia in l i c de principal lib. 12*. Much of this is unintelligible and there have evidently been many errors in transcription due to the illegibility of the original MS. The following conjectures and information, however, clear up certain portions of the passage.

Mr. FitzGerald conjectures *ultra plures* to be "several [authors] besides." *Cobb.* is read *Codieibus* by Father José Algué, S.J.

Ex conducto et item cumquidam ff locat. The reference is to Justinian's Digest, book 19, tit. 2 (*locati conducti*), fr. 15, which begins "*ex conducto*" and especially to the passage in the middle of fr. 15 (§ 3 of modern editions) which begins "*cum quidam*." It reads: "When a certain person alleged a conflagration on the (leased) land and desired a remission (of the rent), the following rescript is sent to him: 'If you have tilled the soil, relief may not undeservedly be given you on account of the accident of a sudden conflagration.'" The transcription of the following reference to the Digest: *Divus ff*: is too hopelessly muddled to identify. Before these is a reference to Bartolus, and at the end a reference possibly to Cujas (Cujacius). Bartolus was the leading civilian of the fourteenth century; Cujacius of the sixteenth.—MUNROE SMITH.

In l is for *in loco*, and *l i c* for *loco ibi citato*.—JOSE ALGUE, S.J.

¹² Chocolate was at that time supplied to the Philippines from Nueva España; but the cultivation of the cacao-tree (*Theobroma cacao*), of which chocolate is a product, was introduced into the islands about 1665 by the governor Diego Salcedo, at the instance of the Jesuit Juan de Avila, according to Delgado (*Hist. de Filipinas*, p. 535). Blanco says (*Flora*, p. 420), citing Gaspar de San Agustin, that this honor belongs to a pilot named Pedro Brabo de Lagunas, who brought cacao plants to Manila in 1670.

¹³ There is evidently a slip of some sort here, due either to mistranscription or to a slip between Messa's hand and brain. The sense seems to require some such phrase as "depositions were given with great fear."

¹⁴ There is a probable play on words here, the original reading *asolar*, literally, "destroy;" but the writer may have used it in the sense of "to deprive the earth of the sun," in view of the succeeding remark, *sol* being the word for "sun."

Letters from the Archbishop of Manila to the King

Sire:

In compliance with what your Majesty ordered in your royal decree of May eighteen, 619, countersigned by your secretary, Juan Ruiz de Contreras, I shall inform your Majesty in this letter¹ of the matters pertaining to the ecclesiastical government of this archbishopric, that are mentioned in the said royal decree, and I shall answer and satisfy each section in the same order as set forth therein.

*Possession of the archbishopric and residence therein.*² I took possession, Sire, of this archbishopric, July 23, 620, and I have always resided therein without having absented myself therefrom.

Visitation of the ecclesiastical cabildo, clergy of Manila, and province of Pampanga. From the said day on which I took possession of this archbishopric, I have busied myself in this city of Manila, its metropolis, visiting my cabildo, clergy, hospitals, and confraternities, and bestowing confirmation and attending to other duties in my charge, until April 20, 621, when I set out to visit the province of Pampanga. In that and in administering the sacrament of confirmation, I was busied somewhat more than one month. Then I returned to Manila, where I have resided until now, without having gone to visit the rest of my diocese, because of nine Dutch vessels that were in the mouth of the bay, and because of other events which have hindered me. I shall do so, God willing, as soon as the vessels about to go to Nueva España have set sail.

Thanks to God, the inspection of my cabildo resulted in not finding any offense for which charges ought to be brought against any prebend; nor against the other clergy of this city was anything proved that merited punishment, except that three or four had gambled with some publicity, for which they were punished. Some cases of open concubinage of lay persons have caused and are causing remark in this city; and as this city is so small,

they cannot be very well hidden. In order that such might be avoided, I have made and am making all the efforts possible.

Parochial church of Manila and number of souls under its direction. Inside the walls of Manila there is only one Spanish parochial church, namely, the cathedral. Hitherto it has had but one curate; and inasmuch as I found the curacy vacant, and thought it advisable for the better administration of the parishioners, I discussed with the governor the matter of having two. He agreed to it, and consequently a proclamation was published and the appointments given by competition to two virtuous and learned clerics, who today serve in the said curacy. In that parochial church are directed in confession two thousand four hundred Spaniards, both men and women, among whom are to be counted a few mestizos. One thousand are male inhabitants and transients, eight hundred and sixteen regular soldiers, and five hundred and eighty-four women. In the above number neither the religious, priests, nor children, are included.

Curacy of Indians and slaves inside Manila. There is also one curate who has charge of the Indian natives of this city and the slaves and freedmen living within the city. He ministers to about one thousand six hundred and forty Indians who make confession; and one thousand nine hundred and seventy slaves, among whom are some few freedmen. Although that seems considerable for only one curate, he can comfortably take care of them, for the majority of them confess in the convents of St. Augustine, St. Francis, St. Dominic, the Augustinian Recollects, and the college of the Society of Jesus of this city. The said Indians are ministered to, although with much inconvenience, in a chapel of the royal Spanish hospital, and are buried in the church or cemetery of the cathedral. If your Majesty so wish, they can have a church of their own, and the expenses therefor can be secured from the royal treasury, as is done in the villages outside Manila, where tribute is collected, since they and the freedmen pay it to your Majesty.

Parochial church of Santiago, a suburb of Manila, and the souls cared for therein. In the village of Bagumbaya, which is a suburb of this city, is the parochial church of Santiago, in charge of a beneficed secular priest. There one hundred and fifty Spaniards (one hundred and twenty of whom are

men), besides another hundred and fifty mestizos and freedmen, and four hundred Indians and slaves are ministered to.

Parochial church of the port of Cavite and the souls directed therein. In the port of Cavite, three leguas from Manila, there is a parochial church in charge of a beneficed secular priest. In it four hundred and thirty Spaniards are cared for; fifty of these are soldiers of the fort, fifty women, and all the others sailors, some of whom are mestizos. The said beneficed priest also ministers to two thousand four hundred Indians and some slaves and people of various nations, who number about four hundred. The religious of St. Francis, St. Dominic, the Society of Jesus, and the Augustinian Recollects, who own convents in the said port, assist him.

Benefices, and mission villages of Indian natives in the diocese of the archbishopric of Manila both in charge of the secular priests and of religious; and the number of souls cared for in the archbishopric.

The missions of the Indian natives of all this archbishopric are in charge of secular priests and of religious of St. Augustine, St. Francis, St. Dominic, the Society of Jesus, and Augustinian Recollects.

Those of the secular priests are divided into twelve benefices, among which are the three above-mentioned, namely, Manila, Bagumbaya, and Cavite. Altogether, twenty thousand souls of the said natives are ministered to.

Order of St. Augustine. The Order of St. Augustine has thirty-two convents, all of which contain together fifty-six priests, who minister to ninety thousand souls.

Order of St. Francis. The Order of St. Francis has thirty-eight convents of *guardianías*³ and presidencies, in which are forty-seven priests, who all together minister to forty-eight thousand four hundred souls.

[*Order of St. Dominic.*] The Order of St. Dominic has three convents. They minister to three thousand souls and have five religious. The rest of their religious are stationed in the bishopric of Nueva Segovia. In the province of Pangasinan, the Order of St. Dominic has ten convents, with sixteen priests, who minister to twenty-five thousand souls.⁴

The Society of Jesus. The Society of Jesus has three residences, with eight priests, who minister to ten thousand six hundred souls.

Augustinian Recollects. The religious of the Augustinian Recollects have three convents with six priests, who minister to eight thousand souls.

Consequently the number of souls of the natives alone, who are cared for in the territory of this archbishopric of Manila, amounts to two hundred and one thousand six hundred.⁵

Method of administration and direction of the villages and missions. The benefices of secular priests, and the convents and residences of religious, above mentioned, are directed and instructed as follows. Some have only one village; while for others—the most common—besides the capital or principal village, there are two, three, four, or five small villages, and in some even more, all of which attend the church of the capital, when they are near it and in a place suitable for that—which is generally the case, as the distance is short, and can be traversed by waterways of lakes and rivers. But when the distance is great, in the said villages (or in some of them) there are churches where the priests go to celebrate mass, on holy days and other days, from the capitals when there are two or more priests; and they teach and administer the sacraments. But when there is only one priest, as in the benefices of the seculars and some of the orders, he says one mass in his capital, and another in another village or visita of his district where all or almost all of the people of it are gathered. In some districts, inasmuch as the distance is considerable, the minister lives two or three months in one village of his district and two or three in another, and in this way goes the round of his benefice.

The orders have their distinct districts assigned in provinces, and thus by their contiguity those of each order are a mutual aid among themselves.

Although it is impossible to deny that the natives would be better instructed and would live in more orderly ways if the small villages were to be reduced to the capital, making one or two settlements of each benefice, they consider it such an affliction to leave their little houses where they were born and have been reared, their fields, and their other comforts of life, that it could only be attained with difficulty, and little fruit would result

therefrom. Thus has the experience of assembling the people into communities in Nueva España proved, and so has what little of it has been attempted here. However, in the visit that I shall make in this archbishopric, I shall try to reduce them to as few settlements as possible.

Inasmuch as I deem it greater prolixity than is advisable for what your Majesty desires to know about the missions of the Indians, if I set down the name and number of their settlements, I have refrained from doing so.

Sangley missions of the diocese of the archbishopric of Manila, and the number of souls directed in them. Besides the said missions to the natives, the Order of St. Dominic has in the town of Binondo, which is near Manila on the other side of the river, Christian Sangleys, most of whom are married to Indian women of this island, while others are married with women of other nations. At present they number five hundred Sangley mestizo inhabitants, who are cared for in their own language in the convent of the above-mentioned order in the said town.

Besides the said Sangleys of Binondo—who cannot return to their own country, because they are married, and have no cues, and have become residents here—some have been baptized these last four years who have retained their long cues, without binding them not to return to their own country. Some of these are ministered to in a church in charge of the Order of St. Dominic, near the Parián; and others in two other churches almost in the suburbs of Manila, and in one other somewhat farther away—all three of which are in charge of the Order of St. Francis, and number about one thousand Sangleys, who are directed in their own language.

Japanese missions, and the number of souls ministered to therein. In the parochial church of Santiago, and in the villages of Dilao and San Miguel, which are suburbs of Manila, and in the part of Cavite, most of the Japanese in these islands are instructed. Some of them are married, and although, because they are a people who go to and fro to their own country, they have no fixed number, at present there are more than fifteen hundred Christians.

And now, Sire, I have given your Majesty a report of the souls ministered to in the territory of this archbishopric, as exactly, accurately, and clearly as I have been able. Inasmuch as your Majesty will be pleased to have me report

likewise on the three bishoprics of these islands that are suffragan to this archbishopric of Manila, although that report be summary, a brief relation of it is here appended, which has been abstracted from the reports given to me by the provincials of the orders and other persons.

Benefices and missions of the bishopric of Zibu, and the number of souls ministered to.

In the bishopric of Santísimo Nombre de Jesus in the city of Zebu—the residence of the bishop—there is one Spanish parochial church, namely, the cathedral, whose benefice is served by one secular priest. He ministers to one hundred Spaniards (fifty of whom are soldiers, and twenty are women), and to two hundred and fifty Malucans, Ambuenos, and those of other nations.

In the same city of Zebu is one other benefice, also served by a secular priest, where one thousand six hundred souls, counting Indian inhabitants, wandering Indians, and Sangleys, are directed. They are attended to by the convent of St. Augustine, and the residence [*colegio*] of the Society of Jesus in that city.

In the city of Arebalo, which is situated in the province of Oton, and which belongs to the same bishopric, is a parochial church for Spaniards, who, counting the women, number about one hundred. In the island of Caraga are fifty Spanish soldiers, to whom, together with four hundred Indian natives, one secular priest ministers.

Besides the said benefices of Zebu, Villa de Arebalo, and the island of Caraga, that bishopric has twelve secular benefices which minister to fifteen thousand four hundred souls. The Order of St. Augustine minister to forty-eight thousand souls of the Indian natives in the fifteen convents with their visitas that they maintain in that bishopric. The Society of Jesus minister to fifty-four thousand souls in their residences. They give the name of residence to the college or chief place to which the fathers of that district, who have other houses and churches of their own where they live, are subject.

Thus the souls of the Indian natives ministered to in the bishopric of Zebu total one hundred and nineteen thousand six hundred and fifty, including the few Malucans, Ambuenos, and those of other nations, as above stated.

Missions of the bishopric of Cagayan, and the number of souls cared for therein.

The bishopric of Cagayan, whose capital is the city of Nueva Segovia, has twenty Spanish inhabitants and fifty soldiers in the said city.

There is not a single secular benefice in all that bishopric, and it is administered by the orders of St. Augustine and St. Dominic.

The Order of St. Augustine has fifteen convents, in which fifty-eight thousand souls of Indian natives are cared for.

The souls of the natives ministered to in the said bishopric of Cagayan amount to one hundred and twenty-eight thousand.

Benefices and missions of the bishopric of Camarines, and the number of souls instructed therein.

In the bishopric of Camarines, whose seat is in the city of Caceres, there are at present only twelve or fifteen Spanish inhabitants, the alcalde-mayor, some few soldiers whom he takes with him, and the collectors of tribute for that province, all of whom do not number fifty men. They are ministered to in the cathedral by one secular priest, who has in charge two small villages near by, where live two hundred souls of the natives.

That bishopric has five secular benefices, where eight thousand four hundred souls of natives are ministered to.

The Order of St. Francis owns twenty-four convents with guardianías and presidencies, and ministers to forty-five thousand souls.

The Society of Jesus has one residence, where they minister to three thousand two hundred souls. Hence the souls of the natives cared for in the said bishopric of Camarines amount to fifty-six thousand eight hundred.

The number of souls of Indian natives ministered to in the Filipinas Islands. According to the evidence of this relation, the souls of Indian natives ministered to in this archbishopric and in its suffragans, the three above-mentioned bishoprics, amount to five hundred and six thousand.⁶

The need of ministers, which explains why many souls of Indian natives remain to be converted to our holy religion. The number would be far greater, Sire, were there more ministers. Through lack of them a considerable number of those already pacified and who pay tribute remain to be converted. There are some of these even among the Indians who are Christians, especially in the bishoprics of Zibu and Cagayan; while even in the bishopric of Camarines there are some pagans, but not so many, and those of this archbishopric of Manila are still fewer. Consequently it will be very advisable that religious of the said orders come to these islands, so that they may attend to this instruction and conversion, for all the islands are in pressing need of them.

The arduous work of the ministers in the conversion of the Indians. One would not believe how arduously the ministers to the Indians in these islands work, and how they should be esteemed; for not only do they attend to their baptisms, confessions, communions, marriages, and burials, but also—and this is of far greater labor, work, and occupation—to the daily instruction of all in the church (even though they be the children and grandchildren of Christians) in the prayers and whatever is necessary so that they may know and understand our holy faith, in order that the holy sacraments may be administered to them.

Hospitals

Royal hospital of Manila, where Spaniards are treated. There is, Sire, within the city of Manila, the royal Spanish hospital, where all the ailments of only the Spanish men are treated. It is maintained from your Majesty's royal treasury, the medicines, delicacies, wine, and some other things being brought from Nueva España, while the rest are bought here. There are generally from seventy to one hundred sick men, most of them soldiers of this camp. As the needs of the royal treasury have been so great these years, the sick have so little comfort that for lack of it many of them die. The

hospital is in charge of a steward appointed by the governor, and has its physician, surgeon, apothecary, barber, and other paid helpers. The Order of St. Francis administer the sacraments to the sick. One or two priests of that order live in the hospital, and two others, lay brethren, act as nurses. It would seem advisable that that hospital and the others be placed under the charge of the brothers of St. John of God (who have the care of hospitals as an object of their profession), if a sufficient number of them came from España.

Hospital of La Misericordia, where slaves and Spanish women are treated. In another hospital, called that of La Misericordia,⁷ also inside the walls of Manila, sick slaves are treated for all ailments—both men and women, in separate quarters. There are generally from eighty to one hundred sick persons in it. It has one separate room where poor Spanish women are treated, which generally has from twelve to twenty women. That hospital is in charge of the Confraternity of La Misericordia [“mercy”], which bears all the expenses and keeps the hospital very well supplied with medicine and delicacies. It is administered by religious of St. Francis.

Hospital of the natives. Five hundred paces from the wall of Manila stands the hospital of the native Indians, where only Indian men and women are treated (in distinct rooms), for all ailments. It has generally from about one hundred to one hundred and fifty sick. Five hundred ducados are given to it annually from the royal treasury by the order of your Majesty, besides one thousand five hundred fanegas of uncleaned rice, one thousand five hundred fowls, and two hundred blankets [*mantas*] from Ylocos, while the medicines brought from Nueva España are shared with them. With the above and four toneladas of the cargo which are given in the ships that ply to and from Nueva España (which are sold), some income that it possesses from the rent of certain lands, and a farm for large stock, there is enough for the treatment and care of the sick. However, at present the hospital is short, because the toneladas of the cargo have been worthless during these last years; and because of the needs of the royal treasury the five hundred ducados have been owing for more than three consecutive years. The hospital is in charge of a steward appointed by the governor, and is administered by the Order of St. Francis.

Hospital of the Sangleys. In the town of Binondo, which lies near Manila on the other side of the river, is the hospital of San Gabriel, where the Sangleys, both Christian and pagan, are treated. Although the sick who go thither are very few when compared with the so great number of that nation in these islands, since the sick generally do not exceed thirty in number—and perhaps quite naturally, for since they have no hospitals in their country, they shun and despise them—yet very great results are obtained there; for very few or none at all die without the water of baptism, while of those cured the most become converts, thanks to the preparation of the usual and familiar conversation and intercourse that they hold with the religious of the Order of St. Dominic, who minister to the said hospital, and endeavor most earnestly to convert them. That hospital is sufficiently maintained by the money collected from the tolls of the Sangleys themselves, who pass from one district to the other opposite the Parián,⁸ and with some income that it possesses. Although the said tolls are collected from the Indian natives of these islands, it would be just to allow the latter to pass freely, as do the Spanish, slaves, freedmen, and those of other nations; for the natives ought not to be, in this matter, placed on a worse footing [than the others], especially since the money so obtained from them is only converted to the benefit of the Sangleys who are treated in the said hospital.

Hospital of Los Vaños [*i.e.*, “the baths”]. On the shore of the Laguna de Bay, twelve miles up stream from Manila, stands a hospital called Los Vaños. It was established there a few years ago, as it was found by trial that the hot water that bubbles up from certain springs was good for those having humors, buboes, and colds. Hence many Spaniards, natives, and those of other nations, both men and women (who have separate quarters), are treated in that hospital, for the said ailments. Most of what is expended there is derived from the royal treasury and royal magazines, but because of the scarcity of funds in these times it is not as well looked after now as it was some years ago. Consequently, it is in debt and suffers great need. The steward who has charge of it is appointed by the governor, and religious of the Order of St. Francis conduct it.

Confraternities of Manila

The confraternities, Sire, in this city of Manila are as follows:

Of the most Holy Sacrament [Santisimo Sacramento]. The Confraternity of the Most Holy Sacrament, in the cathedral; with only thirty pesos income, which, with the alms procured by the brethren and others, is spent for wax.

Of the Souls [Las Animas]. That of the Souls in Purgatory, in the same cathedral. It has an income of one hundred and ten pesos. With this and the alms that are collected, they furnish the solemn mass and its responses Monday of each week, and perform other suffrages and anniversary masses.

Of the most Holy Name of Jesus [Santisimo Nombre de Jesus]; the Nazarenes [Los Nazarinos]; and the Solitude [La Soledad]. The confraternities of the most Holy Name of Jesus, of the Nazarenes, and of the Solitude of our Lady, are established in the convents of St. Augustine, the Recollects, and St. Dominic. They have no incomes, except alms that the brethren gather. That is spent in wax and ornaments by the said convents, each convent buying one day every week during Lent the wax for the sermons that are preached, and the floats of the passion that are carried in the processions of the discipline during Holy Week, in which the brethren and others take part.

Of the Rosary [El Rosario]. The Confraternity of the Rosary of our Lady, which was founded in the convent of St. Dominic, has some income bequeathed it by pious persons, from which, together with the alms gathered by the brethren, four or six orphan girls are married yearly, to each of whom three hundred pesos are given as a dowry.

Brotherhood of the Confraternity of La Misericordia [“mercy”]. In the year five hundred and ninety-three, the Confraternity of La Misericordia was started in this city. It has continued to increase daily to greater estate, until now it is of the utmost importance in the city, because of the many needs that it succors and relieves, and the charitable works that it undertakes. It was founded with the same rules and for the same end as that of the city of Lisboa, and others that were begun in imitation of the latter in Portuguese India—whence it must have been introduced here on account of its nearness to, and communication with, these islands. It has two hundred brethren, and every year twelve of these are chosen, who are called “brethren of the bureau of accounts.” They, together with one brother, who is their chief, have charge of the government of the said confraternity. They beg alms two

days of every week and collect whatever they get from this source and from the bequests left by most of the dying. They spend annually on the average more than twelve thousand pesos, which includes three thousand six hundred of income that they now possess, that was bequeathed them by certain persons. That sum they use for the general support and relief of self-respecting poor men and women who live uprightly; on the poor of the prison, whose suits they urge; on helping many of the girls sheltered in the seminary of Santa Potenciana; on the support of certain collegiates who study in the convent of Santo Thomas of the Order of St. Dominic, and in that of San Joseph of the Society of Jesus; in marrying girls and orphans; on the support of the hospital built by them where slaves are treated, and which I mentioned above; on the alms for masses, and for other similar purposes. Many of the dying appoint the brethren of the bureau of accounts as their executors, and they carry out the terms of the wills with great strictness. They attend to the burial of the poor, and of the bones of those who are hanged, which duty they see to once each year.

Colleges of Students

College of the Society of Jesus, called San Joseph. There are two colleges for students. One was founded by Captain Estevan Rodriguez de Figueroa, and is named San Joseph. It is in charge of the Society of Jesus, and the collegiates go to attend lectures at the residence [*colegio*] of the same Society (which is close by) in grammar, philosophy, and ecclesiastical and moral theology. At present it has twenty collegiates who wear the *beca*.⁹ Some of them pay their tuition, but others are aided by the Confraternity of La Misericordia; for the income of the founder falls somewhat short now of sustaining the college, because of expenses in erecting the buildings of the said college.

College of Santo Thomas, which is in charge of the Order of St. Dominic. The college is called Santo Thomas de Aquino. It is in charge of the Order of St. Dominic, and is very near their convent. For two years it has had collegiates. It was founded by the alms of deceased persons and by other contributions from the living, which the fathers have procured and collected. It has some income and is continuing to increase. At present it also has twenty collegiates who wear the *beca*, some of whom also pay their

tuition, and others are supported by the Confraternity of La Misericordia and certain persons. They take lectures in grammar, philosophy, and theology in the same college, where they have a rector and masters belonging to the Order of St. Dominic.

These two colleges aggrandize the city greatly and the sons of the inhabitants of these islands are being reared in them in culture, virtue, and learning. It will be of the utmost importance to the city's progress for your Majesty to honor them by granting them authority to give degrees in the branches that they teach.

Seminary of Santa Potenciana. Many years ago the seminary of Santa Potenciana was founded in this city at your Majesty's command, in order to maintain in it poor girls, both Spaniards and mestizas, who being reared there in a safe retreat and under good teaching might leave it virtuous, and as such be sought as wives. It has been supported hitherto by an income of one thousand pesos that it possesses, and with eight hundred pesos which is about the value of an encomienda granted it by your Majesty, besides three toneladas of the cargo given it annually by allotment in the ships despatched hence to Nueva España, and certain alms bequeathed to it by certain dying persons. For some few years past the seminary has been greatly in debt, both because of increasing the number of their girls, and because the toneladas of the cargo have had no value, and on account of the greatly increased cost of living; and it is suffering so great need that it has not enough for the ordinary maintenance of the fifty girls who are there at present, some of whom are aided by the Confraternity of La Misericordia. It will be advisable, since the work is so consecrated to the service of God and so suitable to that of your Majesty, whose royal person is patron of that seminary, for you to order the governor to aid it from the royal treasury, or—and this would be more secure—apportion to it more Indians, so that a work so holy and necessary in this community may continue to advance, since it is served by slave women and has never been served by Spanish women. It is certain that if this retreat, from which the girls go out married, were to fail, they would perish and be lost.

How the Indians are treated by the curates and ministers. The Indians, Sire, of this archbishopric are generally treated with mildness, love, and zeal for

their salvation, by the priests and ministers who instruct them. Whenever the contrary is heard from anyone, he is corrected, admonished, and punished—by myself if he is a secular. If he is a religious, his superior does it, when he deems it best; for I (even though the case be one of the ministry and care of souls) alone have power to warn and ask his superior to remedy it. In regard to that, it would be greatly advisable that the bishops of the Philipinas have more power over the ministers of souls in their charge, and that the latter be obliged to give account. But, however this may be, it is not a matter from which results any considerable annoyance or harm to the Indians, except that of the bad example which they might derive from it, if they saw their priest and teacher do the contrary of what he teaches them and censures them for by word of mouth. The most powerful cause, then, that destroys and consumes the Indians of Philipinas is the same one that has destroyed and consumed the Spaniards. All have been ruined by the continual and large fleets with which the Dutch enemy persecute us, and because our forces are so few to oppose them, as I have represented in other letters that I am writing to your Majesty. It is impossible to prevent us all from suffering, and even perishing very speedily, if your Majesty's most powerful hand does not help and defend us. Consequently, Sire, I consider as inexcusable the vexations that have come and are coming upon the Indians in the building of ships and the making of other preparations to defend us; for these would be very much less if the Indians were paid for their work as your Majesty orders, if they were placed in charge of disinterested persons, and if compassion were shown them.

Preachers for the Indian natives. There are as many preachers for the Indians as there are priests who minister to them; for although the chief and most important instruction which can be preached to them is to make the Indians understand the ministers of our holy religion, and for the minister that he know the language thoroughly, there is no difficulty in preaching to them, if one does it (and thus it is advisable) simply and plainly.

Preachers for Spaniards. There is not any lack of preachers for the Spaniards either, for generally each of the convents of St Augustine, St. Francis, St. Dominic, the Society of Jesus, and the Augustinian Recollects of this city have two preachers, who are erudite fathers and of exemplary life. Besides, there are certain others, who by reason of living in the

convents and surrounding missions attend to the preaching of several sermons during the year. These with holy zeal reprehend vices with thorough modesty and prudence, and tell us what is suitable for our salvation. But your Majesty is assured that the chief preacher and teaching for the inhabitants of Manila, and the best method of banishing public sins from it, is the good example and life of the governors. With that, and with the affability and love that they would exercise toward the virtuous, and with the displeasure and asperity with which they would treat the vicious, there would result, at least in the exterior court, the good or evil conduct of the inhabitants of this community. Inasmuch as the community is small, and all its inhabitants need the governor and are watching him, they will try to imitate him.

In regard to sending a relation of the persons worthy and capable of being appointed prelates. Your Majesty ordered me in the said royal decree to send a separate and very secret relation of those persons most worthy and capable in this archbishopric of being appointed to prelacies—recounting their virtue, morals, and example, character, prudence, age, and modesty; and of the intellect, learning, degrees, and governing ability of such persons, besides other circumstances. Obeying the commands of your Majesty, I report all that in a separate letter, and I shall continue to do so in the form and manner in which your Majesty may advise me.

Whether there are vacant prebends or benefices. At present, Sire, there is no vacant prebend in the cathedral of this city, although some are being filled by appointments by the governor until your Majesty shall confirm them or shall appoint to these posts persons who are pleasing to you. In regard to that, I refer to what I am writing to your Majesty in a separate letter. The benefices are appointed by competition as soon as they become vacant, in the manner prescribed by the holy council of Trent, in accordance with the royal patronage and last royal decree of your Majesty that treats of this matter. Consequently, throughout this diocese there is no vacant prebend or benefice. As soon as any become vacant, I shall take care to provide for them as speedily as possible, as your Majesty so piously orders me.

Regarding the number of curacies and missions, and of the persons who administer them. In regard to the relation and report that your Majesty

orders me to make of the curacies and missions of this diocese (both of Spaniards and of Indians); of the persons who serve them, and the manner of their presentation, whether of seculars or of friars, and of what orders; the age of each, and his length of service in those curacies and missions; and whether he serves with the good-will, humility, unworldliness, and good example to which he is bound; as well as of other things contained in the section that treats of this. I refer to what I have said in my letter, without going into particulars regarding the names and ages of the ministers; for that appears to be less necessary, since the benefices at present held by seculars in these islands are so limited in stipends and obventions that nearly all of them are compelled to beg for these, in order not to desert their benefices. In the missions in charge of the religious, the same persons do not live continuously, for their provincials remove and change them from one to another, according as they deem most advisable.

That this relation shall be continued on all occasions. I shall have the care that your Majesty orders, in sending duplicates of this relation until I am advised that your Majesty has received it, and I shall add to it whatever occurs later. When I learn that your Majesty has received it, I shall observe the order given me, to refer to what I shall have written in what may not be new matter, increased and corrected by the past relations as far as may be advisable. I shall continue to do that without awaiting any new order for it from your Majesty, whose very Catholic person may our Lord preserve for the increase of new kingdoms and the prosperity of those which you possess, as is necessary to Christendom, and as we your Majesty's humble chaplains desire. Manila, August, 1621.

This, Sire, is the relation of that I wrote to your Majesty in the past year of 1621. I found nothing to correct except the section treating of the number of the convents in charge of the Order of St. Dominic, which is amended in its place in the margin. Manila, July last, 1622.

FRAY MIGUEL GARCIA SERRANO,
archbishop of Manila.

¹ This letter is published, in an abridged form, by Rev. Pablo Pastells, in his edition of Colin's *Labor evangélica*, ii, pp. 688, 689; but he there dates the letter July 25, while the Sevilla MS. (here

followed) makes it August, in 1621.

² The italic side heads and center heads throughout this letter appear in the margin of the original, and were made either by the archbishop himself or by a government clerk.

³ *i.e.*, guardianship: the district allowed to each convent in which to beg.

⁴ This last sentence is evidently the correction in the margin noted by the archbishop in the last clause of the present letter.

⁵ The numbers given in the text (all written out in words, not figures) amount to 205,000.

⁶ The numbers given in the text, for the various bishoprics, amount to 509,450.

⁷ Conducted by the confraternity of that name; see letter of Audiencia regarding the objects and work of this association, in VOL. XIV, pp. 208–313. See also Dasmariñas's account of the royal hospital, in VOL. X, pp. 28–40.

⁸ At that period the (new) Parián, as shown by a plan of 1641, was opposite the city of Manila on the other side of the Pasig River. Evidently, then, the Chinese and Indians were obliged to pay tolls for crossing the river to the city.

⁹ See VOL. XIII, p. 185, note 33. *Beca* is most suitably translated “sleeves.”

Royal Decrees Regarding the Religious

Ordering the Dominicans Not To Meddle in Government Affairs

The King. Venerable and devout father provincial of the Order of St. Dominic of the Philipinas Islands: I have been informed that the religious of your order are living with great lack of restraint, and are meddling in the government of those islands, from which have resulted and are resulting very great difficulties. Moreover, the honor and procedure of those who have been men of those islands have suffered; for, both in the pulpit and in other ways, the religious are trying to sully the reputation of those persons when they are not acceptable to them. Now inasmuch as that is unworthy of any person whatever, and more so of religious who have to furnish an example to all by their retirement from the world and their method of procedure; and inasmuch as it is very advisable to reform that efficaciously: therefore after examination of the matter by my Council of the Indias, it has been deemed best to charge and order you, as I do, to summon immediately all the religious of your order. By the best method that you shall deem advisable you shall censure them for their irregularities, and represent these to them; and warn them to engage only in their devotions and the conversion of souls according to their obligations—which is the main purpose for which they went there—and that they shall not meddle in government matters, or in any other matter that does not concern their order. You shall advise me of what you shall do in this matter. Given at Madrid, December thirty-one, one thousand six hundred and twenty-two.¹

I THE KING

By order of the king, our sovereign:

JUAN RUIZ DE CONTRERAS

Signed by the Council.

[*Endorsed*: “To the provincial of the Order of St. Dominic of the Philipinas Islands, ordering him to summon the religious of his order, and censure them for their irregularities, warning them to engage only in their devotions

and conversion of souls, without meddling in government matters or in any other matter that does not concern their order.”]

Ordering the Archbishop of Manila To Examine Religious

The King. Very reverend father in Christ, the archbishop of the metropolitan church of the city of Manila of the Philipinas Islands, and member of my Council: The king, my sovereign and father—may he rest in peace—by his decree dated November fourteen of the past year, six hundred and three, charged the archbishop then governing that church [*i.e.*, Benavides], that in accordance with the rules and ordinances he should not permit or allow any religious in the missions in charge of the orders to enter upon or exercise the duties of a priest [*cura*] unless he had first been examined and approved by the said archbishop or by the person appointed for that purpose, so that such religious should have the necessary competency, and know the language of the Indians whom he should have to instruct—as is contained more minutely in the said cedula, which is of the following tenor.

“The King. Very reverend in Christ, the father archbishop of the metropolitan church of the city of Manila of the Philippinas Islands and member of my Council: Although it has been stringently ordered that the ministers appointed to the missions of the Indians, both seculars and friars, must know the language of the Indians whom they are to instruct and teach; that they be possessed of the qualities required for the office of priest [*cura*] which they are to exercise; and that the teachers among the religious, in so far as they are priests [*curas*] be visited by the secular prelates: I have been informed that those orders have not been observed as is needful; that you prelates do not exercise the fitting care in examining the said religious teachers in order to be assured of their competency and thorough knowledge of the language of those whom they are going to instruct; and that in the visitations many of their omissions and irregular acts in the administration of the sacraments and in the exercise of their duties as priest are not remedied. That is a matter of considerable annoyance. And because the Indians suffer greatly, in the spiritual and temporal, from those appointed by their superiors, both in this and in the choice of persons less careful than they should be; and because it is advisable for the service of God our Lord, and for our service, and for the welfare of the Indians, that the ministers of instruction be such as are required for that ministry, and

that they know the language of the Indians: therefore I charge you straitly, in accordance with the rules and ordinances, not to permit or allow any religious to enter upon or exercise the duties of the office of priest in the missions in charge of the religious in the district of that archbishopric, unless he first be examined and approved by you or the person whom you shall appoint therefor, in order to satisfy yourself that he has the necessary competency, and that he knows the language of the Indians whom he is to instruct. In the visitations that you shall make you shall remove those whom you shall find to be incompetent, or lacking in the ability and good morals that are requisite, and those who do not know sufficiently the language of the Indians whom they instruct; and you shall advise their superiors of it, so that they may appoint others who shall have the requisite qualifications, in which they are also to be examined. You shall advise me of whatever is done in the matter. Given in San Lorenzo, November fourteen, one thousand six hundred and three.

I THE KING

By order of the king, our sovereign:
JUAN DE YBARRA.”

And inasmuch as my intention and will is that the orders and commands on the said subject be obeyed and executed exactly, I request and charge you to examine the said decree, above inserted, and to observe and obey it *in toto*, exactly as is contained and declared therein. Such is my will, notwithstanding that, in the course of time and with the claims of the prelates, any other custom may have been tolerated or introduced. That shall not be allowed, under any consideration whatever. In order that the above order may have more complete effect, I am having the Audiencia there ordered, by another decree of the same date with this, to give you the necessary protection and aid for it. You shall advise me of all that is done in this matter. Given at Madrid, December thirty-one, one thousand six hundred and twenty-two.

I THE KING

By order of the king, our sovereign:
JUAN RUIZ DE CONTRERAS

Signed by the Council.

[*Endorsed*: “To the archbishop of Manila, that he observe the decree above inserted, so that the religious of the missions shall be examined in the language of the Indians.”]

[*Endorsed*: “*Id.* To the bishop of Nueva Segovia in Philipinas.” “*Id.* To the bishop of Nueva Cáceres.” “*Id.* To the bishop of the city of Santisimo Nombre de Jesús.”]

¹ A decree of like tenor was sent to the Audiencia on the same date. It is quite probable that similar decrees were sent to all the orders.

Documents of 1623–1624

- [Letter to Fajardo](#). Felipe IV; October 9, 1623.
- [Royal permission for the Dominican college in Manila](#). Felipe IV; November 27, 1623.
- [Expedition to the mines of the Igorrotes](#). Alonso Martin Quirante; June 5, 1624.

SOURCES: The first of these documents is obtained from the “Cedulario Indico” in the Archivo Historico Nacional, Madrid; the second, from *Algunos documentos relat. Univ. de Manila*, p. 21, and Pastells’s edition of Colin’s *Labor evangélica*, iii, p. 565; the third, from a MS. in the Archivo general de Indias, Sevilla.

TRANSLATIONS: All these are made by James A. Robertson.

Letter from Felipe IV to Fajardo

The King. Don Alonso de Tenza, knight of the Order of Alcantara, my governor and captain-general of the Philipinas Islands, and president of my royal Audiencia thereof: The letter which you wrote me on August 20, 1622, containing information regarding the state of those islands, has been received; and in my royal Council of the Indias the points that belong to their province have been considered, and you will be furnished with the resolutions adopted thereon.

You mention the revolt and retreat to the hills of certain natives of the provinces of Pintados, Nueva Segovia, and Cambales, and the reason which you think they had for it. I appreciate the care which you have exercised in that matter, since on other occasions when you have been directed to see that the Indians be treated as well as possible, you have endeavored to have my orders carried out, for in this way they will be preserved as we desire. Again I charge you that you inform the superiors of the convents, and religious who are busied in the conversion and teaching of the Indians, how important it is to treat them well.

Since you were unable to attend to the mines of the province of Pangasinan, in the mountains and the lands of the Ygolotes, on account of the press of business which you have had, you will now carry on their exploration, since you see that it is desirable to accomplish this enterprise.¹ As for the efforts that you have made to discover certain fruits of the land, and your assertion that a considerable quantity of nutmeg² has been discovered similar to that from the Malucas Islands, you will make the necessary investigations to ascertain this accurately. I also charge you to continue what you have begun, and to send a quantity of the said nutmeg to the officers of my royal exchequer in the City of Mexico in Nueva España, so that they may send it to these kingdoms; and there also shall the investigation be made, according to the orders sent in my decree.

As regards your remarks concerning the Licentiate Geronimo de Legaspi, auditor of that Audiencia, you will execute your orders in the matter, and I shall await the result. What you write in response to my decree, which was sent you on June 8, 1621, that you should investigate the mode of life of the wives of the auditors and other officials therein mentioned, is noted; and all this is placed in your charge and on your conscience. You are to correct the

abuses which you find existing, no matter whom they concern, and shall read this section in the Audiencia, so that they may know my will.

I am advised of what you say, and have often represented, as to the necessity that the persons who are appointed to that Audiencia shall be well-known and approved. I am also advised as to what you say of the person of Don Geronimo de Silva, and the assistance which you have had from him. The embassy for Japan—with a gift, which shall not seem an acknowledgment—you say, could not be sent off last year, which is well. In the future, you will execute your orders in this matter.

All the other sections which your letter contains have been considered, and now nothing remains but to make suitable provisions regarding them.
[Madrid, October 9, 1623.]

I THE KING

By order of the king, our lord:
JUAN RUIZ DE CONTRERAS

¹ Regarding this, Fajardo wrote thus to the king, on August 17, 1623 (a letter found in the Sevilla archives): “The expedition to take possession of the gold mines of the Ygolotes, which border on peaceful lands of this island, has been accomplished, although it has entailed some expense, not a little labor, and some bloodshed; for those barbarians are so indomitable, and occupy fortifications, in which are Spaniards and Indians belonging to the peaceful vassals of your Majesty. The indications of the mines, the disposition of the ridges, and the quality of the earth where they were, promise more richness than do the trials which have been made thus far by washing and separating the gold. Until all the tests which are used for this purpose have been made, it can not be certainly said what their value, will be—although it appears to me that that cannot be small, considering the large amount of gold which these natives take from the mines and barter with the friendly Indians. Even if the profit is not large enough to make it expedient to administer it on your Majesty’s account, in pacifying and reducing to obedience these Ygolotes Indians there will be no little advantage, besides the taxes, from reducing them to the vassalage of your Majesty, and to instruction in our holy Catholic faith, which they have never received.”

² “The nutmeg [*Myristica fragrans*] grows naturally in Cebu and in Laguna province, and will grow in all parts of the islands cultivated” (*Report of U.S. Philippine Commission*, 1900, iii, p. 271).

Delgado states (*Historia*, p. 537) that in 1737 he found the nutmeg growing wild in Leyte, a native of the Visayas Islands. He adds: “It could be cultivated in these islands, if the natives would apply themselves to this work—or at least if the *alcaldes-mayor* would compel them to do so, as they do now in La Laguna of Manila, from which results to the people of the islands no little benefit.”

Royal Permission for the Dominican College in Manila

By license of the ordinary and the governor of the Filipinas Islands, and the consent of our royal Audiencia therein, the religious of the Order of St. Dominic in the city of Manila founded a college, where grammar, the arts, and theology, are taught. In it they established two religious for each subject, and they have twenty secular collegiates. From this has resulted and now is resulting a great advantage to the youth, to the preaching of the holy gospel, and to the instruction of the sons of the inhabitants. We order that now, and until we order otherwise, the said religious make use of the said license given them by the governor to found the college, and to study the said branches. This is and shall be understood to be without derogation or prejudice to any decrees concerning like foundations, in order that they may not be established and begun without our express permission, which must be observed throughout our Indias, without any exception. [Given in Madrid, November 27, 1623, by Felipe IV.]

The King. Inasmuch as Fray Matheo de la Villa, procurator-general of the Order of St. Dominic in the Philipinas Islands, has reported to me that a college was founded in certain houses that they held as theirs in that city, by the license of the ordinary and of Don Alonso Faxardo de Tenca, my governor and captain-general of those islands, where grammar, the arts, and theology are taught; and that there are two religious of each department in it for that purpose, and twenty secular collegiates; and that from it has resulted, and is resulting, great advantage to the youth, the preaching of the holy gospel, and the instruction of the sons of the citizens: and petitioning me, in consideration of the above, and of the fact that the license which was conceded to them was on condition that they obtain my confirmation of it, if I should be pleased to give it; and the matter having been considered in my royal Council of the Yndias, I have considered it advisable to give the present. By it I order that for the present, and until I order otherwise, the said religious of the Order of St. Dominic enjoy the license that the said my

governor gave them to found the said college and to teach in it the said branches; and such is my will. Given in Madrid, November twenty-seven, one thousand six hundred and twenty-three.

I THE KING

Countersigned by Juan Ruiz de Contreras, and signed by the members of the Council.

Expedition to the Mines of the Igorrotes

Relation of the discovery of the mines and of the pacification of the Ygolotes in the province of Pangasinan

Relation of the voyage and entrance that I, Captain and Sargento-mayor Alonso Martin Quirante, made by order of the governor and captain-general, Don Alonso Faxardo de Tenca, during this present year, one thousand six hundred and twenty-four, to the province and mines of the Ygolotes; and the tests or assays made of the metals there by various miners; the nature of the country, and what I was able to learn of its inhabitants.

First, I left the city of Manila by order of the said governor and captain-general, to attain the said entrance, on December twenty-two, one thousand six hundred and twenty-three, and went overland to the province of Pangasinan. I reached that province on January first, six hundred and twenty-four, and took over the offices of justice and war from Captain and Sargento-mayor Antonio Carreño de Valdes. As he notified me of the royal decree ordering his residencia to be taken, in fulfilment thereof I took it, and sent him to the said city on the fifth of the following February.

On the eleventh of the said month of January, the champan which was despatched at my departure from the said city, laden with the infantry, ammunition, and other war-stores necessary for the said entrance, reached the port and storehouses of Arrimguey.

From the said day, January first, until the eleventh of the following February, when I reached the said town and storehouses of Arrigüey [*sic*] I collected and gathered provisions and everything else important for the success of the said expedition. Likewise, together with the preparation that I made of food in the said time, in the said month of February, I caused to be collected, in addition to the seventy Spanish soldiers and officers of my company, fourteen adventurers [*extravagantes*] or substitutes [*sobresalientes*], besides two sailors (one of them a miner), two Japanese miners, and one armorer; a clerk [*tenedor*] and notary; eleven of his Majesty's negro slaves, and nine Indians imprisoned for crimes; forty-seven Sangley carpenters, smiths, and sawyers; and one thousand seven hundred and forty-eight other Indians—eight hundred and ninety-three from the province of Ylocos, formed into twelve companies; and eight hundred and fifty-five from the province of Pangasinan, formed into ten other companies—who in all totaled one thousand nine hundred and three rations. Father Fray Raymundo Beger¹ of the Order of Preachers, and Licentiate Augustin Tabuyo Baldecañas, who was supplied by the bishop of Nueva Segovia, also went with us as our curas and vicars for the success of the said expedition.

On the fourteenth of the said month, I made a muster and enrolment of the said men. The next day rations were given to all of them for a fortnight, and I began to despatch them by troops in the manner and order following. On the sixteenth of the said month of February, I despatched Adjutant Andres Tamayo with twenty soldiers and two hundred Pangasinan Indians, a chosen and light troop, in order that being unencumbered or discommoded by their rations, arms, and tools they might open and clear the road, arranging camping-places along it during the assigned marches. They were given orders to stop in those quarters only over night, so that afterward and without joining them the second troop who were to follow could occupy the same. On the next day, the seventeenth, after having formed three divisions from the other men, with eighteen soldiers in charge of my sargento and of a corporal, I despatched five hundred and sixteen of the Indians of each province—all except their officers with their packs—with orders to follow the first divisions. They were to make the same marches, but were not to unite with the first troop, nor with the following one. This was in order to avoid the confusion and obstacles that might arise from both troops, since

they were men of so little reason, both in camp and in marching; since they had to go by only one path, where because of its narrowness and poor condition they had to go in single file.

I despatched the third troop consisting of a like number of natives with seventeen Spanish soldiers, on the eighteenth of February, in charge of another corporal, ordering them to follow the other two preceding divisions, in the same order and marches.

The next day, February nineteen, having assigned eight soldiers under a half-pay alférez, and twenty-five Pangasinan Indians under their captain, as a guard to the said storehouses—and having despatched the master-of-camp of the province of Ylocos for more men, in order to exchange them after a month with those who had gone out before, who, I feared, were already beginning to desert in part—I started with the rest of the men that were left. I went to pass the night at the place called San Juan, two leguas along the road, where, at the foot of a cross set up there, I found a letter from the troop ahead, announcing that they had found the quarters burned to the ground, and that they did not know who had set the fire, but suspected it was the Ygolotes.

I left the above place on the twentieth, and went to pass the night with the said last division at the site of Duplas, located about four leguas along the road. I also found the camp and the country round about burning, the said Ygolotes having set it afire only a short time before.

Next day, Wednesday, the twenty-first of the said month, after the conclusion of sprinkling ashes on all the soldiers, I left the said place and went to pass the night at another place called San Francisco. On that day not more than one and one-half leguas could be made, because of the many rivers.

On Thursday, the twenty-second, at noon, after another one and one-half leguas made as above, my said division and I reached Buena Vista, where I found all three divisions had halted because the Ygolote Indians had occupied the road; and they were building forts at a narrow passage on it, with a stockade, where, when the said adjutant tried to pass ahead, they

wounded him and some of the other Spaniards, and some Indians who accompanied him.

Next day, the twenty-third, I went out with thirty soldiers and about one hundred and fifty Indians to the said pass that the Ygolotes were defending; and although they resisted for some time, and killed some soldiers and natives, I gained the pass and destroyed the fort, so that the enemy could not remain in it longer or make any other sortie, as it was all unsheltered.

Saturday, the twenty-fourth, I left the said place of Buena Vista, and went with all my troops united to pass the night at Los Pinos, a march of three leguas. That distance was made with some difficulty as the roads in some parts are very closely grown with reed-grass; and in the bad passes are fallen trees which form the best defense that the Ygolotes can have, so that if we were perceived they could attack us in safety or could shelter themselves.

Sunday, the twenty-fifth, I went to pass the night, on account of the convenient supply of water, at Rio Frio [*i.e.*, “Cold River”] with my said men, marching through the extremely hot sun for one and one-half leguas. Next day, Monday, February twenty-six, about one o’clock, I reached the new mines called Galan by their natives, located about three leguas from Rio Frio. As the Ygolotes had learned of our approach, or had seen us about to set fire to some houses—about two hundred which they had located in various places about the said mines and hill—they sought shelter without leaving anything except some small heaps of metal which they were digging in order to work.

Next day, the twenty-seventh, having reconnoitered the said place, and having seen that it was suitable and secure, and that within a stone’s throw on the same elevation were the mines and veins of most importance that are yet known to exist among the said Ygolotes, according to the information given by men who already had experience of them before, I determined to establish a camp and fortify myself in them. That I did, locating in a place where in no direction could we fail to succor and overlook all the paths and ravines where any danger could be feared, or any difficulty of getting food and water close at hand and in the quantity desired. In the course of the said march, I saw and noted that from the time of my departure from the said

village of Arringuey, we were always going from one peak to another, until we reached that of Los Pinos, from which other higher ones were discovered; while some small streams were passed on the way, not of great volume, but to some extent shut in with mountains and lands full of reed-grass.

Up on the said peak the mountains were almost everywhere destitute of forests; for except in the very damp ravines, reed-grass does not grow, or any tree except pines. For that reason, wherever one looks from the height, very many mountains are to be seen, so jagged, steep, and near together that it seems impossible for men or any other living thing to exist on them.

The climate of those mountains is cold rather than temperate, and less healthful than sickly. The winds that usually prevail are north and south, and the south winds generally bring rain, accompanied by extremely violent thunder-storms. Dense fogs always prevail, and generally make the country very damp.

Certain streamlets of water issue from the springs of those mountains, from which people drink; and these waters are so cold and thin that, if one does not eat sufficient, they do him much harm. For that reason it must be that birds do not breed there; for, since the first is lacking to them, those that can escape do not await their destruction. Only certain little birds like linnets are seen, and at times some crows, which must be foreign to them.

None of the most common useful and fruit trees, which abound in all the neighboring provinces, are found there; and less any of new or old España; nor any other that yields either known or wild fruits: so that the mountains are covered only with a great quantity of pines, whose roots do not penetrate the ground more than half a vara. The ground to that depth is black, but below that red and so hard² that the roots, not being able to penetrate it, are very easily torn up at any violent wind. All the said peaks are so cleared and despoiled of trees that they do not hinder one from noticing and seeing, for a great distance below the pines, whatever preparations are being made.

The houses in which those Ygolotes protect themselves from the inclemencies of the weather—which is intolerable, both because of the sun

when it shines, and from the rains and cold—are very small, built of straw and short wood. They have no walls, for the roofs serve as everything, extending from above even to the ground. They sleep high up, on some boards or planks roughly put together. The doors of their houses, which are very small, are so low that one must get down on hands and knees in order to enter them.

Their settlements are established on the peaks of the mountains, and on the roughest of them, whence afar off they can see all the paths, so that no one can approach them without being seen by their sentinels, who always guard their posts day and night. If there is any danger, they can easily retire without being seen, leaving behind nothing more than their miserable huts; and, not fearing whether any go to seek them, they defend themselves as they may by hurling down huge rocks which they have suitably placed, sharp-pointed reeds,³ and stones; and especially do they seek the sure and convenient site. In the rainy season they fear firearms but little, for they know that they are of less effect than none at all.

The usual dress and clothing of that people is a loose shock of disheveled hair that reaches below the ears, and certain bands about one *jeme*⁴ wide made from the bark of trees. Having wound these about the waist, they twist them so that they cover the privy parts. They call these *bahaques*, and they are worn by all classes of people, men and women. Besides the said *bahaque*, the chiefs wear Ilocan blankets, which they have inherited from their ancestors; this garment is crossed from the shoulder to the waist, where they knot it. Thus do they go, without any other clothes or shoes.⁵ The chiefs of those natives are not differentiated from the rest of the people in other things than in the possession of more bones of animals that they have killed in their feasts, more clothes, and greater age. There are more chiefs than in other nations, for there is one in every ten or twelve houses, who is head of his kinsfolk. They inherit from father to children, or by blood, and do not recognize one as greater than the other. Those chiefs generally insert gold in the teeth, which is so well fitted that it does not hinder their talking or eating at all.

The Ygolotes are in general a very active people, bold, well built, and feared by the other nations surrounding them. As they have discovered that,

and that others, even when numerous, always run from them, the Ygolotes attack with but few men. Whenever they kill anyone, scarcely has he fallen before his head is cut off. On that account they make many feasts, and at night light many fires on many peaks. They make cups of the skulls, from which they drink in their feasts and revelries; and leave them as household effects to their heirs. If any of them are killed, and they can conceal it, they endeavor to do so; for they grieve greatly and consider it as a very great insult if the bodies of their dead are not carried away.

The arms used by them consist of a pointed lance one-third of a vara long, which they generally carry, well polished, and set in a handle of strong wood more than one braza long. They have others with which they usually fight, made from heavy green poles, larger than the above. At the head they insert a bamboo knot, with its point well sharpened into two edges. They cover themselves with their shields, which consist of certain short and very light boards, about four or five palmos long and two or more wide. They use many sharp-pointed stakes with which they sow the ground, particularly about their haunts, and wherever harm might come to them.⁶

The Ygolotes are an idolatrous race. They say that their god is the sky, whom they call Cabunian; and they offer and sacrifice to him, in their banquets and feasts, swine and carabaos, but under no consideration cows or bulls. The method of sacrifice practiced by them is [as follows]. Having tied all the animals not prohibited about the house of the sacrificer, after the ceremony an old man or old woman, having placed on the ground a painted cloth that resembles a surplice, and which they call *salili*, they continue to kill the animals, and make a great feast. They keep that up for two or three days until they have finished eating what they have, when their feast or *magunito* also finishes. He who keeps up such entertainment longest and kills most of the said animals is most respected.

Their sages or philosophers are the oldest men and women, whom they respect and obey in an extraordinary manner, and most when they are occupied in the said feasts; for they say that then and even ordinarily those persons are wont to talk with the devil, who keeps them blinded.

That race lacks all good natural reasoning power. They cannot read, nor do they know what day, month, or year, or the increase and decline of the moon, signify. They govern themselves by one star that rises in the west, which they call *gaganayan*, while they call the natives of their neighborhood by the same name. On seeing that star they attend to the planting of their waste and wretched fields in order to sow them with yams and camotes, which form their usual and natural food. They do not have to plow or dig, or perform any other cultivation than that of clearing the land where they are to plant.

When any one of those barbarians dies, they do not bury him for many days, for, as they say, they pass one month, during which period they amass quantities of food about the deceased, to whom they give his share as well as the others. Then they continue to prick the body, and, as they say, they draw off or suck out the humors until the body is left dry. When that time comes they wrap it in their blankets, and fasten buyos and other things about the waist for the journey. Some are buried in a sitting posture and placed with their backs against their shields, in caves under the rocks, the mouths of which are stopped with stones. Others they set in the trees, and they carry food for so many days after having left them in either one of those places.

It is not very easy to ascertain the number of those people, who are scattered, for they are so intractable, and do not let themselves be seen, moving from one place to another on slight pretext, without any hindrance; for their houses, to provide which would be the chief cause of anxiety, they easily build anywhere, with a bundle of hay, while they move their fields of yams or camotes (on which they live well) from one place to another without much effort, pulling them up by the roots—for, because of the dampness of the country, these take root wherever they are placed. In the same manner, they carry their ornaments or bones;⁷ and since their arms and clothes are but little or nothing, they are not embarrassed, because they always carry these with them. Yet it is known that, if those called Ygolotes reach one thousand men, that is a great number. They can scarcely gather in one body or live on friendly terms with one another. For those of Banaco and those of Atindao, villages of the same mountains, have little or no communication with them, as neither do those of Aytuy and Panaquy,

villages on the other side of the said mountain-range—to whom it is said that they pay tribute or a sort of recognition; but both are hostile to those of Alrade, Vigan, and Oyrraya, so that, all those Ygolotes being so separated, cautious, malicious and treacherous, no message or despatch can at all be sent them. For if it be done with few Indians, they secure and kill them; and if there are many, they fight them, and will not listen to or believe them. If Spaniards go with an interpreter to talk to them, as I have sometimes attempted to do, they anticipate them on seeing them and no one remains in his house, but they flee from the Spaniards. Then, if perchance they hear some arguments that are shouted out to them, they laugh, and answer that we are deceiving them, and that they will not trust us; that they know us for people of bad faith; and that we must lay aside our firearms if we wish them to approach. And if we did that, they would employ their usual treachery and evil methods, as they generally do.

In the rainy season, that wretched race, most of whom are miners, unite with their wives and children to wash the sand of the streamlets that flow from the mountains, where with less work than in their mines, by avoiding the digging and crushing of the metal, they get some gold, although very little.⁸ With what all of them get in one way or another, they go down peacefully to the villages nearest to them, to trade for certain animals or cattle. They do not trade the gold by weight, but by sight. Those cattle are the ones that they eat, with the solemnity above described, in a general assembly; for they do not breed any kind of cattle or any other living thing for their feast or sustenance, except certain small and very wretched dogs which we have often had a chance to see.

It is not easy for us or even for them to ascertain the strata, veins, or ores whence that product is yielded, since it is well known that it does not originate or form in the sand, which does not contain nurseries for it, since so many streamlets descend from so many ravines and slopes. For it is not yet known that, moving about ordinarily and having signs of that product, without ascertaining or knowing any other in all the country, the natives have discovered more than five elevations or hills within a distance of five or six leguas, which they have worked during the dry season, in order to support themselves so wretchedly as is known. Besides, those Ygolotes are indebted to the natives of the villages who are our friends, and are unable to

pay those who give them credit; the wealth and wit of both peoples being so small and restricted that, although those people have no other kind of expenses, or other thing to attend to, than the product of their mines, they are very generally in debt—a sure proof of the mistake made in believing that the gain is much, or the said mines of much importance, as has been and is demonstrated by experience.

On one of the five elevations which I have said that the Ygolotes worked, namely, the said new one called Galan (it being the chief one, as I have said), I camped, and built the fort of Santiago, under whose advocacy [*i.e.*, of Santiago or St. James] they say it was before. Retaining with myself about two hundred natives from both provinces [*i.e.*, Pampanga and Ilocos], with the Sangleys and prisoners whom I took with me, I sent back all the others with thirty soldiers on the twenty-eighth of the month of February, to get more provisions, ammunition, and other necessary things, at the village and storehouses of Arrimguey, although afterward some Ylocos Indians deserted in the one month and six days while I occupied that place, the natives having returned by a third path. In all three months, their provisions amounted to two thousand and eighty-seven baskets of rice, each of fifteen gantas; and for the rations of all the men from January sixteen (when food began to be issued at my account) until March twenty-four following, were consumed two thousand and ninety-four baskets. These rations were given to all the said natives, and to seven hundred and sixty others besides, who were brought from Ylocos by the said master-of-camp in order to exchange with the first, as has been said. On the said day, March twenty-four, I mustered all the men, and paid and despatched them, except about one hundred and twenty from both provinces, thirty-one Sangleys, and about five adventurers [*estravagantes*] and substitutes who remained with me to aid and accompany us.

Having despatched the said men, I ordered the lieutenant of the province of Pagasinam not to advise me of anything unless it were a matter of great importance until the fifteenth of May, when he should send me four hundred other natives [from Pangasinan] and one hundred from the said province of Ylocos, all laden with beans and other things necessary for the sustenance of the men of the said presidio. That was done in order that I might more freely attend to the investigation of the mines of the said

Ygolotes and what substance they contained. For that purpose I immediately ordered Martin de Vergara, my alférez, Rodrigo Lopez Orduña, Juan de Mugaburu, Graviel Molinero, and Diego de Tovar, soldiers of my company and all miners, and other persons who understood something [of mines] to investigate and reconnoiter the said new mines where the said Ygolotes were working. The mouths of those mines are in the northern part [of the ridge], about a stone's throw from the said fort, and the mine discovered extends from above downward in the manner of a horizontal vein or shell for the distance of a musket-shot from northwest to southeast, and then twists about for another equal distance to the direction that looks toward the northwest and west, until it disappears into the depths of a ravine or watercourse where there is but little sun. That is not the case with the one that extends northwest and southeast, for it is flooded with sunlight most of the day. When I reached that place the Ygolotes were working the said mines through many mouths or passages that they had opened, following the metal of one large vein, from which they were taking out the ore that was softest and easiest to dig, although it contained blue iron pyrites that contain antimony.

Having investigated and examined the above-mentioned, I judged it best to open a trial place or mouth high up, and in the middle of all the mine works that the said Ygolotes were carrying on, in order to get all the body of the metal from the top which is more than one braza wide, and from the crust of the earth. On the fifth of March following, we began to open it, and, following the opening for ten estados, we encountered the said mines that the Ygolotes were working, by which our field of work was enlarged much more on the level, at the sides, and vertically; and we continued to get metal for assaying.

The second hill or mine is that called Arisey and Bugayona, which is but little more than three leguas from the new one above. It issues from the same ridge or elevation, where the old fort Del Rosario [*i.e.*, "of the rosary"] was established, which was destroyed by fire in November of the past year one thousand six hundred and twenty-three. It is on the slope facing west, and the sun floods it from nine until four. It has a descent of one-half legua that is very troublesome as it is very steep, with two divisions and ravines at the side, and precipices along both slopes and also

in front; for it is very steep, with a hollow in the middle, in which a spring of water is enclosed, that rises near the place where the said fort stood. [There is] a slope which is at the foot of the work where the natives washed [gold], and gathered certain small stones known to them, which they crushed for their profit; for in no other way is there any known or constant source from which to obtain the metal—but only loose dirt with certain ores, and those of the said red metal, which traverse the soil—without digging down to the bottom. Nor can this dirt be worked without danger of caving in, as was the case in all the veins and works that were on that elevation. Nothing more of these remained than only the indications of having been opened and worked from the vertical within the elevation; for they do not follow the level and center as that has been found to be of no benefit. From that one is led to believe that the mines were abandoned long ago. Yet from the mouths of those sunken mines, inasmuch as no other place was found whence one might get ore, about fifteen small baskets of ore were obtained by the said miners, Alférez Martin de Bergara, Rodrigo Lopez Orduña, Juan de Mugaburu, and Diego de Tovar, from that which appeared best for assaying and examining its nature or the benefit that could be derived from it.

The third elevation and mine is that called Baranaban, which is about one legua from the said fort and mine of Arisey, on a barren hill that faces south, which is flooded by the sun all day long. Through it runs a vein about one vara wide, extending east and west for some distance. There are some works and openings there, narrow, and distinct one from the other. Thence were taken fifteen baskets of gravel and dirt, which has the color of coal, in order to assay it. One can get a quantity of it from the said vein, although with little security from the earth caving in unless the works be propped up; for all of them are of shifting dirt, which is easily undermined, for which reason the said works have caved in, and bear the aspect rather of neglect than of having been worked.

The fourth hill or mine is that of Antamog, which is perhaps more than two leguas from the said old fort and mine of Arisey, and five and one-half from our fort of Santiago, which faces south from a large hill whose peak extends east and west, the said elevation having been undermined by one of its springs, and traversed by very narrow small threads of white and yellow

metal; while all the elevation is traversed by and filled with passages, which are found intermixed, opened sidewise from the vertical and inward, and dipping downward scarcely at all, as the threads of the metal are not deep. In order that these may not cave in, they are propped up with stakes and boards; for otherwise, inasmuch as the dirt is so loose, they would not remain at all secure, as has happened to those unpropped, since we saw some that were blocked up and caved in. The said works are very narrow, and all were examined without finding metal, because of the high level, or sides, or any kind of vein, except at the entrance of the openings whence they were drawn.

From the said threads they obtained a kind of brass-colored and less dirty earth, in order to wash it in another large placer, that they had at one side of the said elevation, with a small stream that rises on top of the elevation, where they had a small settlement. They could, to all appearances, obtain but little profit, and with great difficulty, even with the community so near by. According to the signs, it was a long time since those workings and mines had been worked, and they were more neglected than the others; yet they produced the best (or the best-appearing) ore that could be found. Twenty baskets of it were obtained by the said miners to assay and investigate its nature, and determine what it might be.

The fifth and last elevation, hill, or mine is that called Conog, which is about one-half legua from the preceding and located in the same chain. It is flooded by the sun all day long, as is the other. The said elevation, turning, extends toward the north. In it are to be seen five or six openings or passages, that differ but little from those of Antamog. No considerable or fundamental vein was found, but only brass-colored earth that contained some small bits of blue metal containing iron pyrites, all of them very soft. In one passage that was lower was found on the level a small stream of clear water which empties through another opening lower down than it, both of those openings having been made for one excavation. To all appearances those mines were abandoned long ago; and although they were not being worked, and were seen to be so neglected, they contained the best-appearing metal that was seen. The said miners got about ten small baskets of it to assay.

The tools with which those Ygolotes worked, or work, their mines are certain stakes of heavy wood fashioned like pickaxes, with the knot of the said stake larger at the end of it, where, having pierced it, they fit into it a small narrow bit of iron about one palmo long. Then seated in the passages or works, as the veins prove, they pick out and remove the ore, which having been crushed by a stout rock in certain large receptacles fixed firmly in the ground, and with other smaller stones by hand, and having reduced the ore to powder, they carry it to the washing-places. For that purpose they have some small streamlets near at hand, with two or three hollows in their beds. There passing the said ore from one to the other until they clean away the mud from it, by means of the sunlight, which floods everything, they discover and collect some dust or grains of gold. Then they again crush the large grains of ore, and wash and rewash it, until, having passed through the said basins, what remains at last is entirely useless. To judge by the tools that have been seen and which the said Ygolotes have, as above said, the most usual and only working that they give their ores is the above, and nothing further. With their little ability for discovering these, if nature and poverty—which reduces them to subjection without any expense—did not compel them, they would vainly spend their time, in one way or another, in searching for something to eat, which they do not possess or produce.

All the hills and elevations, mines, passages, veins, and works above mentioned have been examined and entered by the said miners. They have obtained and assayed metals with the greatest care possible. Each assay is set down separately so that it will stand as a testimony and token of service, with the day, month, and year, just as they have been made, in the following manner.

Refinement [of metals]. 1. First, on Palm Saturday, on the night of the thirtieth of March, one thousand six hundred and twenty-four, a refining fire was made by the said Alférez Martin de Vergara and the other miners. Upon it and seventeen libras of lead was fed the dust and sediment of one-half quintal of ore that was obtained from the hole which I have said was opened in the veins and new mines of Galan, at a depth of ten estados. A grain of the appearance of silver, and weighing as much as one real, was obtained.

Quicksilver. 2. On the said day, April six, of the said year, three quintals of ore from the same hole and veins were incorporated with three libras of quicksilver and compounded with salt. On the tenth of the said month it was washed, and a small grain of gold was obtained that weighed one-half real. In the said assay ten onzas of quicksilver were lost.

Quicksilver. 3. On the said day, April six, three libras of quicksilver were incorporated with three quintals of ore from the said hole and vein, which was obtained at a depth of ten estados; and the mixture was compounded with salt. It was washed on the tenth of the said month, and a small grain of gold of the weight of one-half real was obtained. Eleven onzas of quicksilver were lost.

Quicksilver. 4. On Sunday, April seven, two quintals of the same ore from the said hole and vein were incorporated with two libras of quicksilver, having roasted the ore while in the form of stone, before crushing it. On the eleventh it was washed, and a small grain of gold of the weight of one-half real was obtained. Six onzas of quicksilver were lost.

[5.] That day, the eleventh of the said month, in a second refinement, the dust and sediment that remained from a quintal of the same ore was put on the fire. On being fused with twenty-three libras of lead, nothing was obtained from the said assay.

Quicksilver. 6. Saturday, the thirteenth of the said month of April, one libra of quicksilver was incorporated with two and one-half arrobas of ore obtained from certain excavations found below the earth inside a little hut, near our fort and the said mine, which was burned by the Igolotes. On the eighteenth of the month it was washed, and a grain of gold weighing one real was obtained; and three onzas of quicksilver were lost.

Quicksilver. 7. Tuesday, the sixteenth, four libras of quicksilver were incorporated with four quintals of ore obtained at a depth of ten or eleven estados in the said mine and hole. Having made that assay in a stove, on the twenty-second of the said month of April they washed the said four quintals of ore, and obtained a grain of gold of the weight of one real. Two onzas of quicksilver were lost.

Quicksilver. 8. Wednesday, the seventeenth, one libra of quicksilver was incorporated with one quintal of the said ore, obtained at a depth of eleven estados. Having been treated in a reverberating furnace, on the twenty-second of the said month it was washed and a small grain of gold of barely the weight of half a real was obtained. Three and one-half onzas of quicksilver were lost.

Quicksilver. 9. Thursday, April eighteen, they recrushed and washed the sweepings and residue of the first three quintals of ore which had been compounded with quicksilver. With the one quintal that resulted therefrom, they incorporated on the said day one libra of quicksilver. On the twenty-second it was washed, and for the second time a small grain of gold was obtained of the weight of one-quarter real. Two and one-half onzas of quicksilver were lost.

Quicksilver. 10. Wednesday, the twenty-fourth of the said month of April, four libras of quicksilver were incorporated with four quintals of ore, obtained from a passage or opening carefully concealed in the bed of the streamlet, almost at the end of the said vein, and at the end of the other openings in it on the northwest side, where it obtains but very little sun and considerable dampness. It is an ore that contains a quantity of antimony, and one can obtain much of it, to judge from the works that the Ygolotes had, and those that we were making, as it seemed an ore of fairly good appearance. Compounding the assay of the said four quintals with salt and magistral,⁹ the compound was washed on the second of May following, and a grain of gold of one-half real weight obtained. Two onzas of quicksilver were lost.

Quicksilver. 11. On the twenty-ninth of April, three libras of quicksilver were incorporated with three quintals of ore obtained from a washing-place made by the Ygolotes below the openings, and near the preceding place. The compound was washed on the fifth of May, and a grain of gold weighing one and one-half reals was obtained. Eight onzas of quicksilver were lost.

Quicksilver. 12. On the third of the said month of May, one libra of quicksilver was incorporated with one quintal of ore obtained from the said

hole and vein as the four preceding assays. Having been crushed and burned in the openings before being incorporated with the said quicksilver, it was washed on the sixth; a small grain of gold, weighing less than one-half real, was obtained from that assay, while three onzas of quicksilver were lost.

Quicksilver. 13. April twenty-nine, one libra of quicksilver was incorporated with one quintal of ore obtained from the old mines, of which I have made mention, called Baranaban. On May sixteen it was washed, and a small grain of gold obtained of one-quarter real weight. Three onzas of quicksilver were lost.

Arisus. Quicksilver. 14. Tuesday, April thirty, one libra of quicksilver was incorporated with another quintal of ore obtained from the said old mines called Arisey and Bugayona. On May seven following it was washed, and a small grain of gold, weighing less than one-quarter real, obtained. Two and one-half onzas of quicksilver were lost.

Quicksilver. 15. The first of the said month of May, one libra of quicksilver was incorporated with one quintal of ore obtained from the said old mines and from those called Antamo. On the eighth of the said month it was washed, and a small grain of gold about as large as the head of a pin, which could not be weighed, obtained. Six onzas of quicksilver were lost.

Quicksilver. 16. The said day, May first, one libra of quicksilver was incorporated with one quintal of ore obtained from the said old mines—from the one called Conog. On the eighth of the said month it was washed, and another small grain of gold obtained, of the same size as the preceding. Four onzas of quicksilver were lost in the said assay.

Quicksilver. 17. May two, one-half libra of quicksilver was incorporated with two arrobas of ore obtained from the vein and works of the streamlet at the new mine mentioned above as being near our fort of Santiago. Compounding that assay and calcination with magistral, nothing was obtained. Three onzas of quicksilver were lost.

Quicksilver. 18. The said day, May two, another one-half libra of quicksilver was incorporated with another half libra, I mean one-half quintal, of ore obtained from the preceding opening and vein. It was washed

on the sixth of the said month, as also was the preceding assay. Only a small grain of gold weighing one-fourth real was obtained from that [mass] which was only compounded with quicksilver. Two and one-half onzas of quicksilver were lost.

Quicksilver. 19. On the fifth of the same month of May three libras of quicksilver were incorporated with three quintals of ore from the first hole and mouth opened near our fort, as above stated. On the twelfth of the said month it was washed, and a grain of gold weighing scarcely one real obtained. Two onzas of quicksilver were lost.

Quicksilver. 20. Saturday, May eleven, one-half libra of quicksilver was incorporated with two arrobas of ore obtained from an enclosure found at one-half legua's distance from our fort and the new mine, on the edge of a river. It was washed on the sixteenth of the said month, but nothing was found in it. One and one-half onzas of quicksilver were lost.

Quicksilver. 21. On the fourteenth of the said month one libra of quicksilver was incorporated with one quintal of ore obtained from a passage which was discovered to have been worked by the Ygolotes in the same vein and new mine, in its western part of which mention has been made. The said vein extends to the southwest. The mixture was washed on the eighteenth of the said month, and a small grain of gold, weighing one-half real, was obtained. One-half onza of quicksilver was lost.

Quicksilver. 22. On Thursday, May nine, three libras of quicksilver were incorporated with three quintals of ore obtained from the first hole and vein of the new mine, of which mention has been made. May nineteen it was washed, and a small grain of gold, of one-third real weight, obtained. Twelve onzas of quicksilver were lost.

Smelting. 23. Monday, the twentieth of the said month, another assay was made by fusing one quintal of litharge¹⁰ and two of ore obtained from the said hole and vein preceding. From the said mixture, although they tried it several times, it was impossible to fuse or melt the said ore. On the contrary, there was a loss of the lead consumed with the said litharge, and the mixture continued to be consumed; so that having been exhausted and the oven having become clogged, it was necessary to stop without

succeeding with the said assay. They attributed that to the said ore being unfit for smelting.

Quicksilver. 24. Thursday, May twenty, two libras of quicksilver were incorporated with one and one-half quintals of ore obtained from a depth of fourteen estados in the said vein and hole which was opened as above stated. On the twenty-fifth of the said month it was washed, and a small grain of gold, weighing one-half real, was obtained. Two onzas of quicksilver were lost.

Smelting. 25. Sunday, May twenty-six, a second assay by smelting was made with three quintals of litharge and one of *tesmiquitate*,¹¹ refined; both were fluxed with three quintals of ore obtained from the second hole or passage above mentioned as being near the level of the streamlet in the said vein and new mine. That was a second and different compound and was made by smelting and with the said flux; but they were unable to fuse the ore, although many efforts were exerted. It was useless because of the poor quality that the miners ascribed to the said ore. Finding that there was considerable loss and waste of the lead, they had to desist.

Smelting. 26. Monday, May twenty-six, a third assay was made by refining or smelting, by feeding the dust that was left from one quintal of ore, obtained at a depth of fourteen or more estados from the first vein and hole which, I have said, was opened in the said new mine. Having consumed twenty-five libras of lead, upon which the metal melted, a grain resulted that resembles silver, and weighs one and one-half reals.¹²

The said tests or assays having been made and finished, the lay of the land, and its natives and mines, having been examined, and having obtained a quantity of ore from all the mines, I left the said presidio and fort of Santiago well fortified with a garrison of fifty-six Spaniards and fifty Indians—twenty-five from the province of Pangasinan and twenty-five from that of Ylocos—eleven galley negroes, and one armorer, with food and all other things necessary for more than fifteen months. Then, with the said last division of the said five hundred Indians, who, as I have made mention, were to be sent me by a lieutenant by the twenty-fourth of May, I set about my descent, carrying with me, by the end of the said month, one

hundred quintals of the said ore; this I am sending to the city of Manila in four hundred small rice-baskets, each numbered with the mine whence it was taken, so that proof may be made there of the efforts mentioned above; since it is the self-same ore, the governor and captain-general, the royal Audiencia, and the royal officials can confirm it anew and make the tests again, so that, understanding the said mines fully, they may report to his Majesty, and resolve upon the measures that they deem fitting in regard to the holding of the said presidio in a land of so little or no profit as is that land.

ALONZO MARTIN QUIRANTE

Act. In the camp of new mines and the fort of Santiago of the Ygolotes, on the twenty-ninth day of the month of March, one thousand six hundred and twenty-four, Captain and Sargento-mayor Alonso Martin Quirante, chief magistrate of the province of Pangasinan and military commandant of that province and of that of Ylocos, in whose charge is the conquest or pacification of the Ygolote Indians, and the discovery, working, and opening of their mines, declared that inasmuch as he was ordered by Governor and Captain-general Don Alonso Fajardo de Tença, he has come for the said purpose of the said conquest, pacification, and discovery of the said mines. And inasmuch as he had been informed by experienced men that the productive mines, to which the said natives are giving most attention at the present time, are the new ones among them called Galan, he has located and planted upon them the said camp and fort of Santiago, so that, having made a fort among them and placed in safety his men, food supply, and other military stores, he might make expeditions and explore the other mines of which he has or may have information that the said Ygolotes have profitably worked, or can work, throughout all this region. He declared that it should be ascertained what ore could be obtained from those mines, and the amount of metal that should result from them, and the loss of materials that should be allotted for their treatment. He ordered me, the present scribe, to make and prepare a blank book in which to set down as evidence, with the day, month, and year, the assays of the said ores obtained from such mines, and the materials used in their treatment; and that this act be placed at the head of such evidence, which should therefore

be given, in the said manner, so that it might be seen for all time. Thus did he decree and order, and he affixed his signature. I, the said scribe of this said camp of mines and forces of Santiago, attest it.

ALONSO MARTIN QUIRANTE

Before me:

ALONSO CALLEXAS

Attestation. 1. I, Alonso Callexas, scribe of these new mines of Santiago of the Ygolotes, in fulfilment of the order given me by the said act above declared, having made this blank book, do hereby attest faithfully and truly, that today, Saturday, at ten o'clock at night, or thereabout, the thirtieth of this current month of March, one thousand six hundred and twenty-four, the first assay was finished by Alférez Martin de Vergara, of the company of the said captain and sargento-mayor Alonso Martin Quirante, in the presence of Juan de Mugaburu, Rodrigo Lopez Orduña, Grabiél Molinero, and Diego de Tovar, all miners. The assay was for one-half quintal of ore which was obtained from a hole made in these new mines from the crust of the earth to the openings and veins whence the said Ygolote Indians evidently had been and were obtaining it, and when we had dug down about ten estados. The said assay was made by refining, by feeding [the dust of the ore] upon sixteen libras of lead. From it was obtained a grain that resembled silver, which, having been weighed by me, weighed a trifle more than one real. In order that that may be evident, I gave the present at the petition of the said captain and sargento-mayor, who, together with the said alférez, affixed his signature. Witnesses were Licentiate Augustin Tabuyo Baldicañas, cura and vicar in this said camp and fort, Adjutant Andres Tamayo, Alférez Don Joseph de Renteria, and many others who were present at this royal camp and fort of Santiago, where this is dated on the said Saturday, March thirty, one-thousand six hundred and twenty-four.

ALONSO MARTIN QUIRANTE

MARTIN DE VERGARA

Before me: ALONSO CALLEJAS, scribe.

[Twenty-five other attestations, one for every following assay after the first, all similar to the above, follow. The document continues:]

Attestation. 27. I, Alonso Callejas, scribe of these said new mines and fort of Santiago among the Ygolotes, attest and witness truly that the twenty-six assays contained in these six leaves and in this form, are of the mines and ores declared therein; and that from the said mines, in my presence, of which I give attestation, one hundred quintals of ore, besides that used in the said assays, were taken by order of Captain and Sargento-mayor Alonso Martin Quirante, in order to send them to the city of Manila, by Alférez Martin de Vergara, Juanes de Mugaburu, Graviel Molinero, Rodrigo Lopez Orduña, and Diego de Tovar, all miners. Accordingly that ore, having been weighed by me, is being carried in four hundred small rice-baskets of an arroba apiece—so that, since they are from the same ores as those from which the said assays have been made, the governor and captain-general, Don Alonso Faxardo de Tença, and the royal officials may have the assays made again in the said city; and so that, with verification of the efforts that have been made in these mines, they may understand and see the truth concerning and the possibilities of the mines of the Ygolotes of which we have as yet had notice, and that have been worked or may be worked all about this said camp and for some leguas about it. And so that it may be evident, I gave the present at the petition of Captain and Sargento-mayor Alonso Martin Quirante, who affixed his signature together with the above mentioned miners. Witnesses were Licentiate Agustin Tabuyo Baldecañas, Captain Joan de Salinas, and Adjutant Andres Tamayo, while in this camp of new mines and the fort of Santiago, where this is dated on the twenty-seventh day of the month of May, one thousand six hundred and twenty-four.

ALONSO MARTIN QUIRANTE
MARTIN DE VERGARA
JUANES DE MUGABURU
RODRIGO LOPEZ ORDUÑA
DIEGO DE TOVAR
GRAVIEL MOLINERO

Before me:

ALONSO CALLEJAS, scribe.

By order of the captain and sargento-mayor, Alonso Martin Quirante, chief justice of this province of Pangasinan and military commandant of it and of the province of Ylocos, I, the present scribe, ordered to be drawn and drew this copy of the original attestations and investigations which were made for the said purpose. It is a true and faithful copy, and has been collated and revised with the said originals which were sent to the said governor and captain-general of these islands, Don Alonso Fajardo de Tenga. In the copy, for its greater validity, the said captain and sargento-mayor interposed his authority and judicial decree in due form, and so that it might be credited in and out of court. And he affixed his signature, witnesses being Alférez Alonso Tellez de Prado, Sargento Domingo Ruiz, and Captain Joan de Salinas, who were present in this village of Alingayen, where this is given on the fifth day of the month of June, one thousand six hundred and twenty-four.

ALONSO MARTIN QUIRANTE

I sealed it in testimony of truth:

GASPAR DE LOS REYES, notary-public.

Quicksilver that was lost

No. 1. It is silver.

10. No. 2. It weighed scarce one maes, or nine diezmos, of the fineness of eighteen or nineteen carats, alloyed with silver. It is worth on this occasion four reals.^{[13](#)}

11. No. 3. It weighs two and one-half diezmos. Ten diezmos make one maes of the same gold of the above standard. It is worth one and one-half reals.

6. No. 4. It weighs one and one-half diezmos of the same fineness as the first. It is worth twenty-four maravedis.

3. No. 6. It weighs one maes and one diezmo of gold of twenty carats fine. It is worth five and one-half reals.

12. No. 7. The gold weighs one maes two diezmos of eighteen or nineteen carats fine. It is worth five and one-half reals.

3. No. 8. The gold weighs five and one-half diezmos of eighteen carats fine. It is worth two reals and twenty-four maravedis.

2. No. 9.

32. No. 10. The gold weighs six and one-half diezmos of sixteen carats fine. It is worth three reals.

8. No. 11. The gold weighs two maes four diezmos of twenty-two carats fine. It is worth thirteen reals twenty-four maravedis.

3. No. 12. It weighs two diezmos of sixteen carats fine. It is worth one real.

3. No. 13. It weighs two large diezmos of eighteen carats fine. It is worth one real.

2½. No. 14. It weighs one large diezmo of eighteen or nineteen carats fine. It is worth twenty-four maravedis.

6. No. 15. It weighs a scant one-half diezmo of eighteen carats fine. It is worth six maravedis.

4. No. 16. It weighs a scant one-half diezmo of eighteen carats fine. It is worth six maravedis.

3. No. 17.

2½. No. 18. It weighs one diezmo of eighteen carats fine. It is worth one-half real.

2. No. 19. It weighs nine and one-half diezmos of sixteen carats fine. It is worth three reals twenty-four maravedis.

1. No. 21. It weighs four diezmos of eighteen or nineteen carats fine. It is worth two reals.

½. No. 22. It weighs three diezmos of fourteen carats fine. It is worth one real.

2. No. 24. It weighs six and one-half diezmos of metal [but of a] very base alloy; to judge by its points, there is no standard with which to compare it. All the rest is copper.

No. 26. It is silver. Pelayo Hernandez. All of it is worth 5 pesos 6 tomins.

In the city of Manila, on the thirteenth of July, one thousand six hundred and twenty-four, while Doctor Don Alvaro de Mesa y Lugo of his Majesty's council and his auditor in the said royal Audiencia, who exercises the office of its president; and Don Geronimo de Silva, captain-general on sea and land and of the artillery of these islands; Licentiate Juan de Saavedra Balderramas, Licentiate Don Matthias Flores, and Licentiate Zapata de Galvez, auditors and fiscals of the said royal Audiencia; and the judicial officials of the royal revenues, Diego de Castro Lizon, factor and overseer, and Martin Ruiz de Salazar, accountant—were in the hall of the Audiencia; and while they were thus assembled: the said president declared that inasmuch as a quantity of ores had been brought from the mines of the Ygolotes, so that the tests might be made here, in order to ascertain whether they conformed to those made there, of which Sargento-mayor Alonso Martin Quirante, chief magistrate and commandant of the province of Pangasinan, sent a relation and attestation, it was advisable to discuss it and determine whether it would be advisable to send the ore brought thence to Nueva España in the ships which are next to be sent thither. Inasmuch as there are many persons skilled in mines and assay of ore in that kingdom, they might perhaps be able to furnish the accurate tests there that had not been arrived at here. If they did not succeed in ascertaining its quality there, that would be a greater proof of the disillusion that is talked of here. He trusted that what might be done in this matter be most expedient for the service of the king our sovereign. The assembly having discussed and conferred upon the question put by the said president, all were unanimously and harmoniously of one accord and opinion. They declared and voted that for the present the expenses and costs that are being incurred in the working

of the mines of the Ygolotes be curtailed; that the officials and workmen there be withdrawn and disbanded; that the one hundred *chiculetes* [*sc.* quintals] of ore and dirt which are in this city, together with the gold obtained, from the assays and tests which were made there, be sent in those vessels next to be despatched to Nueva España, to the royal officials of the City of Mexico; and that the matter be entrusted to the royal officials of this city—not only to attend to it, but to send a relation of all that has taken place and of the efforts expended in the working of those mines, and the results thereof. Thus they may there prove it, and attempt to make new efforts to know whether the greatest profit has been obtained from what was got here—for it is understood that there are persons there of greater experience in that art—so that advice of it may be given to the royal Council of the Indias, and may also be sent to the said royal officials of this city.

The president also declared that the infantry stationed in the city of Nueva Segovia are very needy and destitute, as it is many days since any aid has been sent to them from this city; and, as the greater part of that province has revolted, his Majesty does not possess in it any royal revenues with which to be able to sustain the soldiers. [Accordingly, it should be considered] whether it would be advisable that the infantry established in the presidio at the mines be assigned to the province of Nueva Segovia, so that, with greater forces, our purpose to subdue the natives who have revolted there might be attained, since the said mines are in the middle of the path. He also declared that, above all, the said men present at the meeting should give their opinion, so that whatever might be voted be carried out as might be most advisable for his Majesty's service. The said men in the assembly having discussed and conferred concerning the proposition of the said president, all were unanimously and uniformly of one mind and opinion. They declared that four installments of pay be sent to the infantry established in the presidio at the city of Nueva Segovia; and that the royal judges and officials send directions for the order that must be observed in relieving them. In what pertains to the infantry established in the presidio of the mines being taken to the city of Nueva Segovia, they declared that that be referred to the captain-general, so that he may take what measures are most expedient for his Majesty's service. They gave their opinion in writing, and affixed their signatures.

DOCTOR DON ALVARO DE MESA Y LUGO
DON GERONIMO DE SILVA
LICENTiate DON JUAN DE SAAVEDRA BALDERRAMA
LICENTiate DON MATHIAS DELGADO FLORES
LICENTiate MARCOS ZAPOTA DE GALVEZ
DIEGO DE CASTRO LIZON
MARTIN RUIZ DE SALAZAR

Before me: PEDRO ALVAREZ

Collated with the original minute: PEDRO ALVAREZ

Between lines are: “me;” “in;” “they find;” “that was brought from the old mines called;” “corrected;” “me;” “who;” “should be worth;” “erased;” “Ygolotes;” “in-[des];” “ten;” “it is not worth.”

Revised with a copy of the originals that is in this royal accountancy, to which we refer. Manila, August eleven, one thousand six hundred and twenty-four.

DIEGO DE CASTRO LISON
JOAN PEREZ DESCALONA
MARTIN RUIZ DE SALAZAR

¹ Probably the same as Ramón Beguer, who arrived in the islands in 1615, and ministered in various missions in Pangasinan. Finally he retired to the Dominican convent in Manila, where he died in 1661 (*Reseña biog. Sant. Rosario*, i, p. 348).

² George F. Becker in his “Report on Geology of the Philippine Islands”—in *Twenty-first Annual Report of U.S. Geological Survey* (Washington, 1901), part iii, pp. 487–625—cites (p. 622; cf. also p. 517) the geologist R. von Drasche thus: “Layers of tuff [or tufa—a volcanic rock formed of agglutinated volcanic earth or scoria] are also exposed (*Fragmente zu einer Geologie der Insel Luzón*, pp. 29–31) at many points between Aringay and Benguet, but these tuffs toward the interior, even at Galiano, are ‘no longer earthy, but quite hard, crystalline, and sandstone like.’” This probably explains Martin’s description of the hard ground.

Ariñgay is located on the northwestern coast of Luzón, at the mouth of Ariñgay River, in the province, of Unión.

³ Bacacayes; see description of these weapons in Vol. XVI, p. 55, note 26.

⁴ The distance from the end of the thumb to the end of the forefinger (both extended)—about equivalent to the English span.

⁵ For the dress of the Igorrotes, see Sawyer's *Inhabitants of the Philippines*, pp. 254, 255, and the names of their various articles of dress, p. 264.

Concerning the Igorrotes, Bulletin No. I, of the *Census of the Philippine Islands: 1903*, "Population of the Philippines" (Department of Commerce and Labor, Bureau of the Census: 1904) contains the following (p. 6): "Of the other wild tribes in the Philippine Islands, one of the most important is the Igorot, which inhabits the central Cordillera from the extreme north of Luzón south to the plains of Pangasinán and Nueva Ecija. Under this general name there are various subgroup designations, such as the Gaddans, Dadayags, or Mayoyao. Another branch of the Igorot tribe is the Kalinga, along the Cagayán river, near Ilagan, in the province of Isabela. To the westward, in the sub-province of Bontoc, is another branch of the Igorot people, who are said to be the most famous of the head-hunters. Another branch is the Tinguian, inhabiting the provinces of Nueva Ecija, Ilocos Sur, Lepanto-Bontoc, and Abra."

⁶ See Sawyer, *ut supra*, p. 263. The spear described is probably the *say-aug*. The sharp-pointed stakes are of bamboo, and are called *sayac* or *dayac*.

⁷ That is, the bones of the animals that they had killed for their feasts, and which they hung up in their houses as ornaments and display.

⁸ See Becker's account of the gold-producing districts in Luzón, their geological conditions, and the native methods of mining (*Twenty-first Annual Report of U.S. Geological Survey*, part iii, pp. 576–580). He states that the Igorrotes have always refused, even to the present day, to allow any outsiders, of any race, to visit the quartz mines in their country.

⁹ "Roasted and powdered copper pyrites added to ores of silver when reduced to the state of a magma [*i.e.*, a thin paste], in order to reduce the horn silver; formerly so called at the Spanish mines of Mexico and South America" (Webster's *Dictionary*).

"The *magistral* is a mixture of pyritous copper and sulphuretted salt, roasted for some hours in a reverberating oven, and slowly cooled" (Humboldt's *New Spain*, Black's trans., iii, p. 260).

¹⁰ Spanish, *greta*, an old word used for *almártaga*; oxide of lead in the form of small scales, and lustrous; commonly called "litharge of silver," or "of gold," as it resembles those metals.

¹¹ Also written *temesquitato*; a Mexican word, applied to the dross from the surface of lead into which pulverized silver ore is introduced.

¹² See Humboldt's account of the mining methods and processes in vogue in Nueva España, in his *New Spain* (Black's trans.), iii, pp. 231–280.

Various laws and ordinances concerning the discovery and operation of mines in the Spanish colonies may be found in *Recopilación de leyes*. mainly in lib. iv, tit. xix, xx, and lib. viii, tit. xi.

¹³ The first figure refers to the number of onzas loss of quicksilver, and the second to the number of the assay. Thus ten onzas of quicksilver were lost in the second assay.

Bibliographical Data

The following documents are obtained from MSS. in the Archivo general de Indias, Sevilla, the pressmark of each being thus indicated:

1. *Letter by Fajardo* (July 21).—"Simancas—Secular; Audiencia de Filipinas; cartas y expedientes del gobernador de Filipinas vistos en el Consejo; años 1600 á 1628; est. 67, caj. 6, leg. 7."
2. *Letter by Serrano* (1621).—"Simancas—Eclesiastico; Audiencia de Filipinas; cartas y expedientes del arzobispo de Manila vistos en el Consejo; años 1579 á 1679; est. 68, caj. 1, leg. 32."
3. *Affairs in Franciscan province*.—"Simancas—Eclesiastico; Audiencia de Filipinas; cartas y expedientes de religiosos misioneros de Filipinas vistos en el Consejo; años 1617 á 1642; est. 68, caj. 1, leg. 38."
4. *Letter by Silva*.—"Simancas—Secular; Audiencia de Filipinas; cartas y expedientes del presidente y oydores de dicha Audiencia vistos en el Consejo; años 1607 á 1626; est. 67, caj. 6, leg. 20."
5. *Letter by Fajardo* (December 10).—The same as No. 1.
6. *Letters by Messa y Lugo*—The same as No. 4.
7. *Letters by Serrano* (1622).—The same as No. 2.
8. *Decrees regarding religious*.—"Audiencia de Filipinas; registro de oficio; reales ordenes dirigidos á las autoridades del distrito de la Audiencia; años 1597 á 1634; est. 105, caj. 2, leg. 1."
9. *Expedition to Igorrotes mines*.—"Simancas—Secular; Audiencia de Filipinas; cartas y expedientes de los oficiales reales de Manila vistos en el

Consejo; años 1623 á 1641; est. 67, caj. 16, leg. 30.”

The following is from a MS. in the collection “Papeles de los Jesuitas,” in the Real Academia de la Historia, Madrid:

10. *News from province of Filipinas*.—“Tomo 87, n^o 48.”

The following is taken from the “Cedulario Indico” of the Archivo Historico Nacional, Madrid:

11. *Letter by Felipe IV*.—“Tomo 40, fol. 7, verso, n^o 15.”

The following is found in the Ventura del Arco MSS. (Ayer library):

12. *Death of Doña Catalina*.—In vol. i, pp. 509–514.

The following document includes two, as thus indicated:

13. *Royal permission for Dominican college*.—From *Algunos documentos relat. Univ. de Manila* (Madrid, 1892), p. 21; and Pastells’s edition of Colin’s *Labor evangélica*, iii, p. 565.

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